

2023

Number

REPORT

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INFORMATION COMMISSIONER

ANNUAL REPORT 2023

INTRODUCTORY WORD FROM THE INFORMATION COMMISSIONER

Dear,

The year 2023 has been marked in the field of personal data protection by the commencement of the long-awaited new Personal Data Protection Act. At the same time, it has also been a year of significant shifts in the development of European regulations in the field of privacy and digitalization, as well as a year of ratification of the Council of Europe Convention on Access to Official Documents (Tromsø Convention) in the area of access to public information. This does not mean new obligations for Slovenia, but it does represent a long-term commitment of the state to continue efforts for a more open and transparent operation of the public sector. Despite exemplary legislative arrangements, the public sector in Slovenia faces significant challenges, as the number of complaints in this area, particularly due to the silence of authorities, has increased significantly over the past year.

For several years, the total number of complaints related to requests for access to public information has been rising annually (in 2023, the Information Commissioner received a total of 704 complaints), while the number of reports and initiatives for the initiation of inspection supervision in the field of personal data protection remains high (a total of 1,146), as does the number of cross-border cases in this area involving the Information Commissioner (270), and the number of complaints for the enforcement of individuals' rights regarding data protection (a total of 251). In both areas, the Information Commissioner has also received a large number of requests for opinions or clarifications. This indicates a high level of awareness among individuals about the existence of both constitutional rights, as well as numerous challenges in their effective implementation.

Obligated parties for access to public information have responded less effectively to received requests for information compared to the previous year, resulting in a decrease in the level of transparency. The majority of complaints were lodged against state authorities, and the Information Commissioner also noted an increase in the number of complaints regarding municipalities, with the number of complaints due to silence regrettably increasing again after several years of decline. The number of complaints against business entities under the predominant influence of public law has also increased.

Unfortunately, the Information Commissioner increasingly observes individual cases of abuse of this right.

According to the assessment of the Information Commissioner, the increase in the number of complaints can be attributed, on one hand, to the simplification of the enforcement of the right to access public information, for which the obligated parties were not adequately prepared, and on the other hand, to personnel changes and changes in official persons due to the reorganization of the state administration, which affected the responsiveness of the obligated parties. Access to public information is an important tool for monitoring the work of public administration in a democratic society; therefore, the Information Commissioner again calls on the obligated parties and the competent Ministry of Public Administration to pay more attention to this area.

In the field of access to public information in 2023, the Information Commissioner, with the aim of strengthening this area, provided 317 written responses to requests from obligated parties and also responded to 837 requests within the framework of telephone duty. Cases from practice are regularly published on its website.

In the field of personal data protection, the Information Commissioner in 2023 focused on the challenges and novelties brought by the new Personal Data Protection Act amidst a large number of reports and complaints. In many respects, the law follows already established solutions, while in some areas it introduces changes whose long-term sustainability and compliance with EU regulations will be

demonstrated over time. In particular, some procedural provisions of the new law are unclear and cause numerous dilemmas in implementation. At the same time, the new law has allowed for the initiation of the first misdemeanor proceedings for violations of the General Regulation, specifically for violations committed after January 26, 2023. In the area of inspection supervision, the Information Commissioner finds that the reason for numerous reports remains the inadequate awareness of individuals regarding the legal basis for processing and information about processing.

INFORMATION COMMISSIONER

ANNUAL REPORT 2023

In 2023, the Information Commissioner devoted considerable attention to the field of personal data protection by providing opinions on significant new proposals for legislative changes and related impact assessments. In this regard, the Information Commissioner submitted a request for a review of the constitutionality of the Patient Rights Act concerning the restriction of individual rights. Particularly in the area of systematic collection and processing of personal data by the state, quality regulations are a prerequisite for the existence of the right to privacy and data protection. With digitalization, challenges in this area are exponentially increasing both in Slovenia and in the EU, making it essential for the state to strategically, wisely, and thoughtfully introduce and prepare legislative solutions related to strengthening the digitalization of state systems and implementing new EU regulations in the field of digitalization of society, such as the Data Governance Act and the Digital Services Act, which will be followed in 2024 and 2025 by a new Artificial Intelligence Act, regulations related to the digitalization of financial operations, and the European Health Data Space Regulation.

In 2023, the Information Commissioner advised 2,580 individuals and legal entities through written opinions and telephone consultations with the aim of facilitating the use of the new law and enhancing knowledge of regulations in the field of data protection. It also conducted 73 pro bono lectures. For this purpose, the Information Commissioner comprehensively updated the content on its website and prepared numerous guidelines for data controllers and individuals. In strengthening awareness and effective data protection, the key interlocutor of supervisory authorities is the designated data protection officers at the data controllers, which is why the Information Commissioner focused on them within the framework of a joint supervisory action of the European Data Protection Board (EDPB). The action demonstrated that more attention needs to be paid both at the level of the organizations themselves and at the level of supervisory authorities. The Information Commissioner also participated in the preparation of guidelines and recommendations developed by the EDPB, including regarding the technical scope of Article 5 of the ePrivacy Directive and Article 37 of the Data Protection Directive concerning law enforcement authorities, as well as opinions together with the European Data Protection Supervisor regarding legislative acts at the EU level, such as the opinion on the proposal for the Digital Euro Regulation.

Particularly within the framework of its membership in the EDPB, the Information Commissioner responds to numerous and increasingly complex data protection challenges at the EU level, which confirm that personal data protection cannot exist without cross-border cooperation. Among the notable cases of cross-border supervision addressed by the EDPB were significant fines imposed for violations identified by online giants, issued based on binding decisions of the board. Indeed, cross-border supervisory cooperation and activities within the EDPB also represented a significant share of the Information Commissioner's activities in 2023 concerning controllers engaged in cross-border processing of personal data. The Information Commissioner participated in 277 cross-border cooperation procedures under Article 60 of the General Regulation, acting as the concerned supervisory authority in 274 newly initiated procedures, while in three cases, it served as the leading supervisory authority. Additionally, the Information Commissioner initiated 18 cross-border cooperation procedures based on received notifications or complaints.

The significant volume of challenges and legislative shifts in the EU in 2023 indicate the path and pitfalls of privacy protection in the coming years. Even in the area of transparency of acquired rights, the complexity of requirements and digital creation of information is by no means (any longer) self-evident. The new commissioner will face significant tasks in 2024. I have no doubt that the

Information Commissioner, just as before, will strive to effectively safeguard both rights with efficient management of appeals and supervisory procedures, continuing active cooperation with all stakeholders, and maintaining openness to individuals, companies, and all other organizations in both areas of constitutional rights protection in the future. An excellent team of professionals, who have demonstrated their expertise and commitment to protecting both constitutional rights over the past ten years amid numerous challenges, is an important guarantee for this.

Mojca Prelesnik, Information Commissioner
INFORMATION COMMISSIONER
ANNUAL REPORT 2023
SUMMARY OVERVIEW OF 2023

Access to Public Information

In the area of access to public information, the Information Commissioner addressed 1,021 cases in 2023, the highest number since its establishment (in 2022, 971 cases were addressed), of which 704 were complaints (which represents a 10% increase compared to 2022).

It is particularly concerning that the total number of complaints due to silence has increased by a quarter: in 2022, there were 241 such complaints, while in 2023, the Information Commissioner received 302 complaints of this nature. This indicates a poorer response from the obligated parties to the requests for the provision of public information, and it also means that the level of transparency has decreased. The majority of received complaints were filed against state authorities (state administration and other state bodies), where, compared to the previous year, the number of complaints against refusals and against silence of the authority has increased. The Information Commissioner also noted an increase in received complaints regarding municipalities, where, after several years of decline, the number of complaints due to silence has unfortunately risen again (in 2022, there were 44 such complaints, while in 2023, there were 67). In 2023, the number of complaints against decisions of business entities under predominant influence has also increased to 16, although it remains relatively low.

According to the Information Commissioner, this situation can be attributed primarily to changes in regulations and the simplification of administrative procedures, which have led to an increase in the number of requests and a faster mode of communication, for which the obligated parties were not adequately prepared (most requests were submitted via email). At the same time, due to the reorganization of the state administration, there were personnel changes and changes in officials responsible for this area among the obligated parties. The Information Commissioner therefore urges the obligated parties to pay more attention to this area, as it is observed in practice that they are still not sufficiently familiar with it. At the same time, the Information Commissioner again calls on the Ministry of Public Administration to provide more support to the obligated parties and applicants, for example, in the form of additional free training, issuing opinions and guidelines, and publishing preliminary opinions on their websites. The Information Commissioner has also prepared 317 responses to their requests and conducted 837 consultations as part of the telephone duty to familiarize the obligated parties and applicants with its decisions.

Part of the increase in complaints can also be attributed to the fact that individuals are increasingly and more quickly resorting to legal protection in appeal procedures before the Information Commissioner, as this procedure is simple, quick, and without special costs (there is no administrative fee), and applicants usually represent themselves. In 2023, the Information Commissioner unfortunately noted several cases of abuse or inappropriate conduct by applicants. The right to access public information as a fundamental constitutional right must not become a tool in the hands of applicants to harass and overwhelm the obligated parties, thereby hindering their work and jeopardizing their public mission. It should be noted that criteria for defining the abuse of rights have already been developed in the practice of the Information Commissioner and judicial practice, which the obligated parties should follow as much as possible to avoid costs and delays in procedures.

Protection of Personal Data

The area of personal data protection in 2023 was marked by the commencement of the new Personal

Data Protection Act (ZVOP-2), which, together with the General Data Protection Regulation and the Act on the Protection of Personal Data in the Area of Criminal Offenses (ZVOPOKD), represents a set of systemic regulations for the field of personal data protection in Slovenia. Significant developments also occurred in the preparation and adoption of legislation in the area of digital business and artificial intelligence, all of which directly impact the protection of personal data.

INFORMATION COMMISSIONER

ANNUAL REPORT 2023

The ZVOP-2 came into effect on January 26, 2023, and a significant innovation in the field of oversight is the supervisory procedures, within which the Information Commissioner addresses complaints from applicants in a special position. In these procedures, the Information Commissioner deals with violations asserted by individuals in their requests, who believe that the processing of personal data by the controller or processor violates the provisions of the General Regulation, ZVOP-2, or other laws governing the processing or protection of personal data.

In 2023, the Information Commissioner received 1,146 complaints or initiatives for the initiation of inspection procedures and 251 complaints from applicants in a special position under Article 77 of the General Regulation and Article 30 of ZVOP-2 due to violations of individuals' rights. Of these, 130 complaints were filed due to suspicion of unlawful processing of the complainant's personal data, 121 due to suspicion of violation of the complainant's rights, specifically 75 due to suspicion of violation of the right of access to one's own personal data, 41 due to suspicion of violation of the right to erasure, four due to suspicion of violation of the right to rectification, and one due to suspicion of violation of the right to object. Additionally, nine complaints were received regarding violations by controllers related to the enforcement of rights under ZVOPOKD, 14 complaints due to violations in the enforcement of patients' rights under Article 41 of the Patients' Rights Act (ZPacP), and 12 complaints under Article 42 of ZPacP. The Information Commissioner participated in 270 inspection procedures of cross-border oversight as the relevant supervisory authority under Article 60 of the General Data Protection Regulation (cross-border cooperation procedure).

The Information Commissioner was also granted the authority to decide on complaints from applicants who were denied access to personal data from official records or public registers in the fourth paragraph of Article 41 of ZVOP-2. In 2023, four such complaints were addressed. In addition to the aforementioned complaints and initiatives, the Information Commissioner received a report of seven cases of unlawful communication or other unlawful processing of personal data about patients based on Article 46 of ZPacP and 183 official notifications of personal data security breaches, which were sent to the Information Commissioner by data controllers during this time based on Article 33 of the General Data Protection Regulation.

Complaints for the initiation of inspection procedures were also filed in 2023 for similar reasons as in the past. The majority of complaints were filed due to unlawful disclosure and transfer of personal data to unauthorized persons, implementation of video surveillance, use of personal data for direct marketing purposes, unlawful or excessive collection of personal data, unlawful access to personal data collections, and inadequate provision of personal data security. Many complaints related to the implementation of video surveillance by individuals who conducted video monitoring with cameras installed on their properties. In these cases, it is generally considered that an individual conducts video surveillance exclusively for their own domestic purposes, and the General Regulation (to which the authority of the Information Commissioner is tied) does not generally apply, except when an individual conducts video surveillance in the course of professional or commercial activities, records public space, unlawfully shares recordings of individuals with third parties, or publishes them online.

It can also be concluded in 2023 that complaints are often filed due to misunderstandings of the provisions of the General Data Protection Regulation and that data controllers themselves are still often to blame for filing complaints, as they do not provide individuals with all the information required by Articles 13 and 14 of the General Regulation when collecting or obtaining personal data. Despite raising awareness among controllers and despite the templates of such notifications published by the Information Commissioner on its website, inadequate information provided to individuals remains one

of the frequently identified violations.

Similarly, in 2023, it can be noted that official notifications of personal data security breaches most often related to unlawful disclosure or transfer of personal data to unauthorized or incorrect persons, unauthorized access to personal data due to software errors or abuse of authority by employees, and loss or theft of personal data carriers. Recently, notifications of personal data security breaches due to cyberattacks or breaches of information systems with ransomware have also become increasingly common.

INFORMATION COMMISSIONER ANNUAL REPORT 2023

The Information Commissioner conducted regular and systematic inspections in 2023 in the areas of verifying the legality of personal data processing and compliance with general principles for personal data processing; the adequacy of procedures and measures for ensuring the security of personal data; the implementation of provisions of the General Regulation regarding informing individuals about processing, contractual processing of personal data, and maintaining records of processing. In these inspection procedures, the legality of video surveillance in workplaces and the related legality of direct monitoring of events in front of cameras was also verified.

In 2023, the Information Commissioner prepared a comprehensive content overhaul of its website to help individuals and data controllers better understand the novelties brought by the ZVOP-2, as well as the relationships between various fundamental regulations in the field of personal data protection. Updated guidelines for administrators of multi-apartment buildings, guidelines on the use of cookies and similar tracking technologies, guidelines regarding the implementation of video surveillance, guidelines for event organizers, guidelines regarding biometrics under ZVOP-2, and guidelines regarding the transfer of personal data to third countries and international organizations were also published.

The Information Commissioner was also actively involved in the preparation of regulations in the field of personal data protection – it prepared 93 opinions on proposed regulations and 13 opinions on received legislative impact assessments, which mostly followed the methodology prepared by the Information Commissioner for this purpose. In this regard, the Information Commissioner particularly notes the need to raise awareness about the purpose and obligation of preparing the so-called legislative impact assessment regarding personal data protection, as required by the third paragraph of Article 24 of ZVOP-2. The purpose of the legislative impact assessment is to consider in a timely manner how to appropriately take into account the fundamental principles of personal data protection when determining the text of the law before the final text of the articles is formed. To assist data controllers, the Information Commissioner prepared an infographic explaining the purpose and process of preparing the legislative impact assessment. It is estimated that legislative impact assessments regarding personal data protection positively contribute to timely addressing risks and thus particularly to the quality of regulations.

In addition to legislative impact assessments, ZVOP-2 also establishes additional obligations regarding the impact assessment related to maintaining processing logs (Articles 22 and 24 of ZVOP-2), processing personal data for research purposes (Article 69 of ZVOP-2), video surveillance of road traffic (Article 80 of ZVOP-2), and linking personal data collections (Article 87 of ZVOP-2).

With the adoption of ZVOP-2, the area of certification and related accreditation under the General Regulation has also gained significant momentum, which was not possible before the adoption of ZVOP-2. According to ZVOP-2, the accreditation of bodies that will carry out certification (so-called certification bodies) will be performed by the Slovenian Accreditation, while the Information Commissioner will prescribe additional requirements for accreditation criteria. At the end of 2023, the Information Commissioner prepared such requirements and sent them for opinion to the European Data Protection Board; for easier understanding of the relevant procedures, a special infographic was published on the website.

Key interlocutors of the Information Commissioner, who play a crucial role in ensuring the principle of

accountability and thus compliance, are data protection officers. Therefore, in 2023, the Information Commissioner particularly focused on them within the framework of the first coordinated enforcement action (Coordinated Enforcement Framework – CEF) of the European Data Protection Board (EDPB), in which all data protection officers on the list of the Information Commissioner were invited to complete a coordinated questionnaire. The analysis of the responses showed that in the future, more attention will need to be paid primarily to questions of whether data protection officers are adequately supported and trained, whether they perform the expected tasks in the areas of supervision, consulting, or awareness-raising, and whether they are in a potential conflict of interest due to performing tasks that do not fall within the responsibilities of data protection officers. Therefore, the Information Commissioner strengthened cooperation with data protection officers and organized a consultation at the end of 2023 with all data protection officers in ministries, as

INFORMATION COMMISSIONER ANNUAL REPORT 2023

is key to ensuring effective protection of personal data, both due to the management of numerous large collections of personal data and the preparation of legislative changes.

From the perspective of compliance and prevention, the Information Commissioner has developed an extensive set of instruments and tools over the years, which (in addition to those already mentioned) influence the level of awareness and thus compliance with the legislation. Therefore, it will continue to issue guidelines, infographics, opinions, regularly inform the public through its website, social media, and newsletters, collaborate with partner organizations, award recognitions on Data Protection Day, and conduct free lectures and participate in relevant professional consultations and conferences. In 2023, the Information Commissioner advised 1,011 individuals and organizations through written opinions, provided advice to 1,569 individuals and organizations by phone, and conducted 73 pro bono lectures.

The Information Commissioner also participates in various working groups of the EDPB and thus contributes to the development of key guidelines, recommendations, and decisions regarding the protection of personal data. Its representatives actively participated in 11 regular expert subgroups and in 12 special working and coordination groups or committees on specific topics, as well as in 15 plenary sessions; they attended a total of 147 meetings. The EDPB contributed to the interpretation of numerous provisions of the General Regulation in 2023 with guidelines and recommendations, e.g., with guidelines on the technical scope of Article 5 of the ePrivacy Directive and with guidelines on Article 37 of the Directive on the protection of individuals in relation to the processing of personal data, which competent authorities process for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or enforcing criminal sanctions.

In the area of EU operations, the most significant developments in 2023 were the adoption or preparation of new fundamental European acts in the field of digital business and artificial intelligence, such as the Data Governance Act, the Digital Services Act, the new Artificial Intelligence Act, regulations related to the digitalization of financial business, and the regulation on the European Health Data Space. In these areas, the Information Commissioner has already acquired some new powers, which will expand with the adoption of new acts in line with the development of the oversight of digital business and regulation of artificial intelligence, especially judging by the approach to regulating these areas in other member states. In 2023, the Information Commissioner actively participated as a member of the EDPB, including advising the European Commission on data protection issues and in the preparation of European regulations in the field of data protection; specifically, the EDPB prepared an opinion on the draft decision regarding the adequacy of the EU-U.S. Privacy Framework, expressing concerns about the implementation of individuals' rights. Together with the European Data Protection Supervisor, the EDPB prepared an opinion on the proposal for a regulation on the digital euro as a central bank digital currency, highlighting aspects of personal data protection in the use of the digital euro and providing various recommendations (including that individuals should always have the option to choose when paying with the digital euro or cash), as well as an opinion on the proposal for a regulation establishing additional procedural rules regarding the enforcement of the General Data Protection Regulation. Numerous opinions were also adopted regarding compliance procedures

concerning certification and accreditation mechanisms.

Meetings and thus collaboration among all supervisory authorities in the EDPB are essential for ensuring consistent implementation of the General Regulation across the EU and for effective oversight in the field of personal data protection. The EDPB has prepared a statement on closer cooperation among supervisory authorities in the implementation of strategic supervisory cases. As part of its strategy for intensified cooperation among supervisory authorities, the EDPB established a Support Pool of Experts, aimed at providing substantive support to EDPB members in their oversight activities. In 2023, the EDPB also established a new working group on ChatGPT, aimed at coordinating compliance issues of this generative artificial intelligence provider with the General Regulation.

INFORMATION COMMISSIONER

ANNUAL REPORT 2023

TABLE OF CONTENTS

1 ABOUT THE INFORMATION COMMISSIONER.....	1
1.1 ESTABLISHMENT AND PERSONAL PROFILE OF THE INFORMATION COMMISSIONER.....	1
1.1.1 ORGANIZATION.....	4
1.2 KEY AREAS OF OPERATION AND COMPETENCIES.....	6
1.3 FINANCIAL OPERATIONS IN 2023.....	13
2 ACCESS TO PUBLIC INFORMATION.....	17
2.1 LEGAL FRAMEWORK IN THE FIELD OF ACCESS TO PUBLIC INFORMATION.....	17
2.2 NUMBER OF FILED COMPLAINTS AND RESOLVED CASES.....	22
2.2.1 COMPLAINTS AGAINST REJECTION DECISIONS AND ISSUED DECISIONS.....	22
2.2.2 COMPLAINTS AGAINST SILENCE.....	24
2.3 NUMBER OF FILED LAWSUITS AND RECEIVED JUDGMENTS.....	25
2.4 OFFENSES UNDER THE ZDIJZ, ZInfP, AND ZMed.....	26
2.5 SELECTED CASES IN THE FIELD OF ACCESS TO PUBLIC INFORMATION.....	26
2.6 EDUCATIONAL AND AWARENESS ACTIVITIES.....	37
2.6.1 Day of the Right to Know.....	37
2.6.2 International Cooperation.....	38
2.7 GENERAL ASSESSMENT AND RECOMMENDATIONS.....	40
3 PERSONAL DATA PROTECTION.....	42
3.1 CONCEPT OF PERSONAL DATA PROTECTION IN THE REPUBLIC OF SLOVENIA.....	42
3.2 OVERSIGHT IN 2023.....	45
3.2.1 INSPECTION OVERSIGHT.....	45
3.2.2 INSPECTION OVERSIGHT IN THE PUBLIC SECTOR.....	46
3.2.3 INSPECTION OVERSIGHT IN THE PRIVATE SECTOR.....	47
3.2.4 REPORTS OF PERSONAL DATA SECURITY BREACHES.....	49
3.2.5 COMPLAINT PROCEDURES UNDER ARTICLE 77 OF THE GENERAL REGULATION.....	49
3.2.6 INDIVIDUAL RIGHTS.....	51
3.2.7 OTHER COMPLAINT PROCEDURES.....	53
3.2.8 COOPERATION IN CROSS-BORDER INSPECTION OVERSIGHTS.....	54
3.2.9 OFFENSE PROCEDURES.....	57
3.2.10 SELECTED CASES OF PERSONAL DATA PROCESSING.....	59
3.3 OTHER ADMINISTRATIVE PROCEDURES.....	69
3.3.1 PERMISSIBILITY OF BIOMETRIC MEASURES.....	69
3.3.2 LINKING PERSONAL DATA COLLECTIONS.....	70
3.3.3 TRANSFER OF PERSONAL DATA TO THIRD COUNTRIES.....	72
3.4 PREPARATION OF OPINIONS AND EXPLANATIONS.....	74
3.4.1 GENERAL EXPLANATIONS.....	74
3.4.2 OPINIONS ON REGULATIONS.....	74
3.4.3 REQUEST FOR ASSESSMENT OF CONSTITUTIONALITY AND LEGALITY.....	76
3.5 COMPLIANCE AND PREVENTION.....	79

3.5.1 NEW OBLIGATIONS FOR DATA CONTROLLERS UNDER ZVOP-2.....	79
3.5.2 AWARENESS UPON THE ADOPTION OF ZVOP-2.....	85
3.5.3 ASSESSMENTS OF IMPACTS ON PERSONAL DATA PROTECTION.....	85
3.5.4 AUTHORIZED PERSONS FOR DATA PROTECTION.....	89
3.5.5 EDUCATIONAL AND AWARENESS ACTIVITIES.....	89

INFORMATION COMMISSIONER

ANNUAL REPORT 2023

3.5.6 PREVENTIVE ACTIVITIES FOR COMPLIANCE.....	90
3.6 INTERNATIONAL COOPERATION.....	92
3.6.1 COOPERATION IN THE EUROPEAN DATA PROTECTION BOARD.....	92
3.6.2 COOPERATION IN OTHER SUPERVISORY BODIES OF THE EUROPEAN UNION.....	98
3.6.3 COOPERATION IN OTHER INTERNATIONAL BODIES.....	99
3.7 GENERAL ASSESSMENT OF THE STATE OF PERSONAL DATA PROTECTION.....	102

INFORMATION COMMISSIONER

ANNUAL REPORT 2023

LIST OF USED ABBREVIATIONS AND ACRONYMS OF LAWS

ZDIJZ – Act on Access to Public Information

General Regulation – General Regulation on Data Protection

ZVOP-1 – Personal Data Protection Act

ZVOP-2 – Personal Data Protection Act (valid from January 26, 2023)

ZInfP – Act on the Information Commissioner

ZVOPOKD – Act on Personal Data Protection in the Field of Criminal Proceedings

ZUP – General Administrative Procedure Act

ZMed – Media Act

ZPacP – Patients' Rights Act

ZPLD-1 – Act on Travel Documents

ZOIzk-1 – Act on Personal Identification Cards

ZEKom-2 – Electronic Communications Act

ZCKR – Act on the Central Credit Register

ZPotK-2 – Consumer Credit Act

ZBan-3 – Banking Act

ZUstS – Constitutional Court Act

ZJN-3 – Public Procurement Act

ZIN – Inspection Supervision Act

ZP-1 – Misdemeanor Act

ZSPJS – Act on the Salary System in the Public Sector

ZKP – Criminal Procedure Act

ZPPDFT-2 – Act on the Prevention of Money Laundering and Terrorist Financing

ZKSNKB – Act on Buyers and Servicers of Non-Performing Bank Loans

ABOUT THE INFORMATION COMMISSIONER

PAGE 1

1 ABOUT THE INFORMATION COMMISSIONER

1.1 ESTABLISHMENT AND PROFILE OF THE INFORMATION COMMISSIONER

The Information Commissioner is an independent and autonomous state authority with competencies in the area of two fundamental human rights protected by the Constitution of the Republic of Slovenia: the right to access public information and the right to personal data protection.

The National Assembly of the Republic of Slovenia adopted the Act on the Information Commissioner (ZInfP) on November 30, 2005, which established a new independent state authority on December 31, 2005. The law merged two bodies, namely the Commissioner for Access to Public Information, which already had the status of an independent body, and the Inspectorate for Personal Data Protection, which operated as part of the Ministry of Justice. Thus, the Information Commissioner became the state supervisory authority for personal data protection. It began its work on January 1, 2006.

The ZInFP brought significant innovations to the Slovenian legal order. This law established a new state authority, the Information Commissioner, which has numerous competencies in both the area of access to public information and the area of personal data protection. In addition to provisions regulating the position and appointment of the Information Commissioner, the ZInFP also contains provisions on personal data protection supervisors, on certain specifics of the procedure before the Information Commissioner, and some misdemeanor provisions. The Information Commissioner is an independent and autonomous state authority. Its independence is ensured in two ways. The first is the appointment procedure of the commissioner as an official, who is appointed by the National Assembly at the proposal of the President of the Republic of Slovenia. The second way, which primarily ensures financial independence, is that the funds for its work are provided in the budget of the Republic of Slovenia, with decisions made by the National Assembly at the proposal of the Information Commissioner.

In the context of the reform of personal data protection in the European Union (EU), the independence of the Information Commissioner remains a fundamental requirement for supervisory authorities in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of individuals with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, General Regulation) as well as Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of individuals with regard to the processing of personal data by competent authorities for the purposes of preventing, investigating, detecting or prosecuting criminal offenses or executing criminal sanctions, and on the free movement of such data, and repealing Framework Decision 2008/977/JHA (Directive (EU) 2016/680). Directive (EU) 2016/680 was transposed into the Slovenian legal order by the Act on Personal Data Protection in the Field of Criminal Proceedings (ZVOPOKD), which came into effect on December 31, 2020. The General Regulation required the adoption of a new Personal Data Protection Act to ensure comprehensive implementation of the mentioned regulation in the Republic of Slovenia, including sanctioning violations. The new Personal Data Protection Act (ZVOP-2) was adopted on December 15, 2022, and came into effect on January 26, 2023.

The Information Commissioner, as a supervisory authority, monitors the implementation of the General Regulation, ZVOP-2, and ZVOPOKD to protect the fundamental rights and freedoms of individuals in relation to the processing of personal data and to facilitate the free movement of personal data within the EU. The General Regulation, ZVOP-2, and ZVOPOKD define the tasks of the Information Commissioner as a supervisory authority and specify its powers. These regulations also strengthen cooperation among supervisory authorities in the EU, particularly through the participation of the Information Commissioner in the European Data Protection Board (EDPB).

Since July 17, 2014, the Information Commissioner has been led by Commissioner Mojca Prelesnik.

INFORMATION COMMISSIONER

PAGE 4

1.1.1 ORGANIZATION

The internal organization and job classification necessary for the execution of tasks at the Information Commissioner's Office are determined by the Act on Internal Organization and Job Classification at the Information Commissioner's Office and its annex Job Classification at the Information Commissioner's Office. The job classification is tailored to the tasks of the Information Commissioner and the work processes that take place within the office, and is designed to ensure the most efficient use of human resources.

The Information Commissioner performs its tasks in the following internal organizational units:

- Cabinet of the Information Commissioner,
- Sector for Public Information,
- Sector for Personal Data Protection,
-

Administrative and Technical Service.

Organizational chart by work areas.

INFORMATION COMMISSIONER

ADMINISTRATIVE AND TECHNICAL SERVICE

PERSONAL DATA PROTECTION AREA

PUBLIC INFORMATION ACCESS AREA

Inspection supervision and
offenses

International
cooperation and
supervision

Decision-making on the rights
of individuals

Compliance and
prevention

Legislation

Issuing decisions on
biometrics,
record linkage
and transfer

Advising and
training

Resolving complaints regarding
access to public information

Resolving complaints regarding
re-use of public information

Resolving complaints under
the Media Act

Informal
advising and
training

INFORMATION COMMISSIONER

PAGE 5

As of December 31, 2023, there was 1 official and 47 public employees employed at the Information Commissioner's Office. The educational structure of the employees is evident from the table.

Educational structure of employees at the Information Commissioner's Office as of December 31, 2023.

8WJISOF□

XYWTPT[SF□

school

Higher

XYWTPT[SF□

school

;NXTPF□

vocational school,

ZSN[JW_NYJYSN□

UWTLWFR

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N_TGWF_GF

2FLNXYJWNO

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Information Commissioner

☐
☐
3FRJXYSNP☐NSKTWRFHNOXPJ☐
commissioner

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☐
☐
;TIOF☐RJISFWTISJLF☐
XTIJQT[FSOF☐NS☐SFI_TWF

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☐
,JSJWFQSN☐XJPWJYFW

☐
☐
State Supervisor for
Data Protection
TXJGSNM☐UTIFYPT[

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8FRTXYTOSN☐X[JYT[FQJH☐
commissioner

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Commissioner's Advisor
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Commissioner's Advisor for
[FWXY[T☐TXJGSNM☐UTIFYPT[
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Commissioner's Advisor for
RJISFWTISJ☐TISTXJ
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Commissioner's Advisor for
UWJ[JSYN[T
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Commissioner's Researcher
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financial and personnel matters

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INFORMATION COMMISSIONER

PAGE 6

1.2 KEY AREAS OF OPERATION AND COMPETENCE

The Information Commissioner performs its legally defined tasks and competences in two areas:

- in the area of access to public information and
- in the area of personal data protection.

In the area of access to public information, which is regulated by the Access to Public Information Act (ZDIJZ), the Information Commissioner has the authority of an appellate body, as defined in Article 2 of the Act on the Information Commissioner (ZInfP). This means that it decides on appeals from applicants if the entity obliged to provide access to public information:

1. has rejected or dismissed the request for access to public information;
2. has not responded to the request within the prescribed time (is silent);
3. has provided access in a different form than requested by the applicant;
4. has provided information that the applicant did not request;
5. has unjustifiably charged fees for providing information or has charged excessive fees;
6. has not granted the request for the removal of the confidentiality level from data marked with confidentiality in violation of the law governing classified information;
7. has rejected, dismissed, or not responded to the request for re-use of public information.

The Information Commissioner is also responsible for maintaining a record of all granted exclusive rights in the area of re-use of public information (paragraph five of Article 36.a of the ZDIJZ).

In the area of access to public information, the Information Commissioner's competences are also conferred by the Media Act (ZMed) (Article 45). According to the ZMed, a negative response from the obliged entity to a question posed by a media representative is considered a negative decision.

Silence from the obliged entity on such a question is grounds for an appeal, which the Information Commissioner decides on according to the provisions of the ZDIJZ.

In cases of violations of the provisions of the ZDIJZ and ZMed, the Information Commissioner is also

an offense authority.

The key regulation in the area of personal data protection in the EU is the General Data Protection Regulation (GDPR), which has been directly applicable in all EU countries since May 25, 2018.

The GDPR defines the tasks of the Information Commissioner as a supervisory authority in Article 57.

The Information Commissioner:

- (a) monitors and ensures the application of this regulation;
- (b) promotes public awareness and understanding of the risks, rules, protective measures, and rights related to the processing of personal data; special attention is given to activities specifically aimed at children;
- (c) in accordance with the law of the member state, advises the national parliament, government, and other institutions and bodies on legislative and administrative measures regarding the protection of the rights and freedoms of individuals in the processing of personal data;
- (d) promotes awareness among controllers and processors regarding their obligations under this regulation;
- (e) provides any individual to whom personal data relates, upon request, with information on the exercise of their rights under this regulation and, for this purpose, cooperates with supervisory authorities in other member states where appropriate;
- (f) deals with complaints lodged by individuals to whom personal data relates, or in accordance with Article 80, by a body, organization, or association, examines the content of the complaint to an appropriate extent, and informs the complainant of the progress and outcome of the investigation within a reasonable time, particularly if further investigation or coordination with another supervisory authority is necessary;

INFORMATION COMMISSIONER

PAGE 7

- (g) collaborates with other supervisory authorities, including through the exchange of information, and provides mutual assistance to ensure consistency in the application and enforcement of this regulation;
- (h) conducts investigations into the application of this regulation, including based on information received from another supervisory authority or another public authority;
- (i) monitors developments in the relevant field as far as it affects the protection of personal data, particularly the development of information and communication technologies and commercial practices;
- (j) adopts standard contractual clauses as referred to in the eighth paragraph of Article 28 and point (d) of the second paragraph of Article 46;
- (k) establishes and maintains a list related to the requirement for a data protection impact assessment in accordance with the fourth paragraph of Article 35;
- (l) advises on processing actions as referred to in the second paragraph of Article 36;
- (m) encourages the preparation of codes of conduct in accordance with the first paragraph of Article 40 and provides opinions and, in accordance with the fifth paragraph of Article 40, approves such codes of conduct that ensure adequate protective measures;
- (n) promotes the establishment of mechanisms for data protection certification and seals and marks for data protection in accordance with the first paragraph of Article 42 and approves certification criteria in accordance with the fifth paragraph of Article 42;
- (o) where appropriate, conducts regular reviews of certificates issued in accordance with the seventh paragraph of Article 42;
- (p) develops and publishes criteria for the accreditation of bodies monitoring codes of conduct in accordance with Article 41 and certification bodies in accordance with Article 43;
- (q) carries out the accreditation of bodies monitoring codes of conduct in accordance with Article 41 and certification bodies in accordance with Article 43;
- (r) approves contractual clauses and provisions from the third paragraph of Article 46;
- (s) approves binding corporate rules in accordance with Article 47;
- (t) contributes to the activities of the European Data Protection Board;
- (u) maintains an internal record of breaches of this regulation and measures taken in accordance with the second paragraph of Article 58; and

(v) performs all other tasks related to the protection of personal data.

In accordance with the third paragraph of Article 55 of the General Regulation, the Information Commissioner is not competent to supervise processing actions of courts when acting as a judicial authority. The General Regulation also specifies the powers of supervisory authorities that they may use in exercising their competencies (investigative powers, corrective powers, and powers related to authorizations and advisory competencies). The commencement of the General Regulation required the adoption of a new Personal Data Protection Act (ZVOP-2) to ensure the implementation of the General Regulation. ZVOP-2 was adopted on December 15, 2022, and came into effect on January 26, 2023. The competencies of the Information Commissioner are specified particularly in Articles 29, 55, and 56 of ZVOP-2, namely the Information Commissioner:

1. conducts supervision over the implementation of the provisions of the General Regulation, ZVOP-2, and other regulations in the field of personal data protection;
2. decides in appeal procedures, decides in procedures for complaints from applicants in special situations, and conducts inspection supervision under ZVOP-2;
3. orders supervisory measures from Article 29 of ZVOP-2, namely orders: the rectification of irregularities or deficiencies, restrictions on processing (such as anonymization, blocking, and archiving), prohibition of transfer to a third country or disclosure to foreign users, deletion or destruction of personal data, or other measures that mean a prohibition on the processing of personal data;
4. orders other supervisory measures in accordance with the law governing general administrative procedures and the Personal Data Protection Act in the field of handling criminal offenses (ZVOPOKD) and implements preventive measures and issues warnings in accordance with the law governing inspection supervision;
5. may file a criminal complaint or conduct proceedings in accordance with the law governing misdemeanors if, during inspection supervision, it finds that there is a suspicion of the commission of a criminal offense or misdemeanor;

INFORMATION COMMISSIONER

PAGE 8

6. provides and publishes preliminary opinions to ministries, the National Assembly, local self-government bodies, other state authorities, and holders of public authorizations regarding the compliance of provisions of draft laws and other regulations with laws and other regulations governing personal data;
7. conducts prior consultations in accordance with the General Regulation and ZVOP-2;
8. manages proceedings on offenses in the field of personal data protection (fast-track procedure);
9. conducts administrative procedures for issuing declaratory decisions on whether the intended introduction of biometric measures is in accordance with the provisions of ZVOP-2;
10. provides and publishes non-binding opinions, explanations, and positions to competent authorities and individuals on issues regarding personal data protection in relation to laws and related regulations in the field of personal data protection;
11. promotes public awareness and understanding of risks, rules, protective measures, and rights related to processing and, for this purpose, conducts free education and training;
12. encourages awareness among controllers and processors about their obligations under this law;
13. collaborates with supervisory authorities of other countries or international organizations (e.g., in supervisory authorities dealing with the oversight of personal data processing in the Schengen Information System, in the customs information system, in the visa information system, within Europol, and in the Eurodac system);
14. collaborates with supervisory authorities of other European Union member states in conducting cross-border supervisory procedures, in sanctioning procedures, and in other matters of cross-border personal data processing in accordance with Chapter VII of the General Regulation;
15. acts as the lead supervisory authority in conducting cross-border supervisory procedures in accordance with the General Regulation;
16. participates in the operation of the EDPB;
17. notifies the competent court of violations of the law, and may also provide the court with an opinion

on identified violations during judicial proceedings;

18. collaborates with controllers and processors in conducting oversight in accordance with ZVOP-2;

19. facilitates the process of submitting complaints and requests from individuals by preparing forms that can also be submitted electronically (e.g., regarding the exercise of individuals' rights or in relation to inspection oversight applications);

20. issues internal newsletters and professional literature and publishes on its website and through other appropriate means: decisions or opinions of the Information Commissioner, decisions and rulings of the Constitutional Court of the Republic of Slovenia regarding requests for assessment of constitutionality submitted by the Information Commissioner, and decisions of the Constitutional Court of the Republic of Slovenia regarding them, pseudonymized decisions and rulings of courts related to personal data protection, pseudonymized significant decisions in supervisory and appeal procedures of the Information Commissioner, data on the initiation and conclusion of supervisory procedures initiated ex officio, and other important notifications;

21. provides opinions on the compliance of general terms and conditions of business or their proposals with regulations in the field of personal data protection;

22. prepares and provides non-binding guidelines and recommendations regarding personal data protection in specific areas;

23. issues public statements regarding oversight in individual cases in accordance with this law and conducts press conferences related to its work; and

24. performs other tasks specified in Article 57 of the General Regulation and in ZVOP-2.

The aim of the new ZVOP-2 was, among other things, to ensure effective oversight regarding personal data protection and to ensure effective penalization of violations of personal data protection. The Information Commissioner is the supervisory authority for personal data protection under ZVOP-2, and is responsible for overseeing personal data protection for all processing of personal data in the Republic of Slovenia, except for instance when it comes to oversight and sanctioning of personal data processing carried out in the exercise of judicial authority by courts and the Constitutional Court of the Republic of Slovenia. The Information Commissioner is also not responsible for personal data processing by bankruptcy administrators, enforcement agents, court interpreters, court experts, and court appraisers in matters where they operate under procedures within the framework of court proceedings. Certain limitations are also specified regarding the conduct of oversight, e.g., on

INFORMATION COMMISSIONER

PAGE 9

the field of intelligence and security activities and in the execution of oversight by the Human Rights Ombudsman.

With the adoption of ZVOP-2, the Information Commissioner is also empowered to impose fines for violations of the General Regulation. Article 95 of ZVOP-2 stipulates that sanctions for violations prescribed by the General Regulation are imposed on legal entities, sole proprietors, and individuals who independently carry out activities, as fines for misdemeanors in the amounts and ranges determined by the General Regulation. Additionally, ZVOP-2 also defines fines for responsible persons and individuals.

The Information Commissioner also exercises powers in accordance with the Personal Data Protection Act in the area of dealing with criminal offenses (ZVOPOKD), which has transposed Directive (EU) 2016/680 and Directive (EU) 2016/681 of the European Parliament and Council dated April 27, 2016, on the use of data from the Passenger Name Record (PNR) for the prevention, detection, investigation, and prosecution of terrorism and serious criminal offenses in the part relating to the position and tasks of authorized persons for the protection of personal data. In accordance with ZVOPOKD, the Information Commissioner acts as an appellate, inspection, and misdemeanor authority, ensuring the uniform implementation of measures in the field of personal data protection according to the provisions of ZVOPOKD, so that human rights and fundamental freedoms of individuals concerning the processing of personal data are protected, and the free flow of personal data between the member states of the European Union is enabled in accordance with the provisions of ZVOPOKD.

The powers of the Information Commissioner are as follows in accordance with Article 76 of

ZVOPOKD:

1. Conducting inspection oversight over the implementation of the provisions of ZVOPOKD and other laws, subordinate regulations, or other general acts for the execution of public authorizations regarding the processing of personal data in the fields of prevention, investigation, detection, or prosecution of criminal offenses or execution of criminal sanctions;
2. Making decisions in appellate procedures and in procedures for reports from applicants in special positions and conducting inspection oversight;
3. Giving preliminary opinions to ministries, the National Assembly, local self-government bodies, other state authorities, and holders of public authorizations regarding the compliance of provisions of proposed laws and other regulations with laws and other regulations governing personal data in the fields of prevention, investigation, detection, or prosecution of criminal offenses or execution of criminal sanctions;
4. Conducting preliminary consultations;
5. Giving non-binding opinions, explanations, and positions to competent authorities and individuals on issues regarding personal data protection in relation to laws and related regulations in the fields of dealing with criminal offenses;
6. Promoting public awareness and understanding of risks, rules, protective measures, and rights related to processing;
7. Encouraging awareness among competent authorities, other controllers, and processors about their obligations under this law;
8. Collaborating with supervisory authorities of other countries or international organizations;
9. Collaborating in the functioning of the European Data Protection Board;
10. Preparing an annual report on the implementation of the law in accordance with the provisions of the laws governing the Information Commissioner and personal data protection;
11. Informing the competent court about violations of the law or providing opinions to the court regarding identified violations;
12. Collaborating with competent authorities, other controllers, and processors in conducting oversight in accordance with the provisions of ZVOPOKD;
13. Preparing forms that facilitate the submission of reports, complaints, notifications, initiatives, and other applications in the inspection oversight procedure regarding personal data protection from Articles 27, 33, and 40 of this law;
14. Performing other tasks defined by this law.

In accordance with the first paragraph of Article 77 of ZVOPOKD, the Information Commissioner is not competent to conduct oversight and misdemeanor oversight regarding the processing of personal data that is processed in

INFORMATION COMMISSIONER

PAGE 10

criminal matters of the court, conducted within the framework of independent judicial decision-making or decision-making by professional associates or judicial assistants by order of the judge, as defined by the law governing courts, or by provisions of other laws that stipulate their independent operation. The Information Commissioner also has competencies under the Patient Rights Act (ZPacP), the Passport Act (ZPLD-1), the Identity Card Act (ZOIzk-1), the Electronic Communications Act (ZEKom-2), the Central Credit Register Act (ZCKR), the Consumer Credit Act (ZPotK-2), and the Act on Buyers and Servicers of Non-Performing Bank Loans (ZKSNKB).

Based on the ZPacP, the Information Commissioner acts as an appellate, inspection, and misdemeanor authority.

In the context of appellate procedures, the Information Commissioner:

- based on the tenth paragraph of Article 41 of the ZPacP, decides on appeals by patients and other entitled persons regarding violations of provisions governing access to health documentation;
- based on the fifth paragraph of Article 42 of the ZPacP, decides on appeals by legally defined persons against partially or fully rejected requests for access to health documentation after the patient's death;

- based on the seventh paragraph of Article 45 of the ZPacP, decides on appeals by entitled persons against partially or fully rejected requests for access concerning the obligation to protect information about the patient's health status, but only if it pertains to information originating from health documentation;
- in accordance with the fourth paragraph of Article 85 of the ZPacP, the Information Commissioner conducts inspection oversight and leads misdemeanor procedures due to violations of the following provisions of the ZPacP:
 - Article 44, which defines the patient's right to confidentiality of personal data and the conditions for the use and further processing of personal data for treatment purposes or outside health treatment procedures,
 - Article 45, which stipulates the obligation to protect professional secrecy or to safeguard information about the patient's health status,
 - Article 46, which obliges health service providers to investigate any detected unauthorized processing of personal data about the patient and to inform the Information Commissioner of the findings,
 - the second paragraph of Article 63, which specifies the manner and duration of the retention of documentation created in the procedure for addressing violations of patient rights,
 - Article 68, which defines the conditions for access to the patient's health documentation by the Commission of the Republic of Slovenia for the Protection of Patient Rights.

Fines for violations of Articles 46, 63, and 68 are specified in Article 87 of the ZPacP; for other misdemeanors, the misdemeanor provisions of the ZVOP-2 apply.

The competencies of the Information Commissioner under the ZPLD-1 and ZOIZK-1 are limited to provisions that specify in what cases and how data controllers may copy passports or identity cards and the manner of storing copies (Article 4 of the ZOIZK-1 and Article 4.a of the ZPLD-1). The Information Commissioner performs the tasks of an inspection and misdemeanor authority concerning the aforementioned provisions, deciding on misdemeanors in accordance with Article 27 of the ZOIZK-1 and Article 34.b of the ZPLD-1.

The ZEKOM-2 specifies the competencies of the Information Commissioner in Article 229, namely, the Information Commissioner:

- conducts inspection oversight over the implementation of the provisions of Article 216 of the ZEKOM-2, which governs internal procedures for responding to requests from competent authorities for access to users' personal data based on sectoral laws;

INFORMATION COMMISSIONER

PAGE 11

- - conducts an inspection at least once a year over the processing of data under Article 220 of the Electronic Communications Act (ZEKOM-2), which sets forth the conditions and procedures for the provision of traffic and location data in cases of protecting the life and body of an individual;
 -
 - performs inspection oversight over the implementation of the provisions of Article 223 of ZEKOM-2, which regulates the tracking of malicious or nuisance calls upon written request of the individual receiving the calls, and the procedures regarding the provision of data that reveals the identity of the caller;
 -
 - executes inspection oversight over the implementation of the provisions of Article 225 of ZEKOM-2, which governs the storage of data or access to data stored in the terminal equipment of the subscriber or user through the use of cookies and similar technologies.
- In the area it supervises, the Information Commissioner decides on violations of ZEKOM-2 and regulations issued on its basis, acting as a misdemeanor authority in accordance with the law governing misdemeanors (Articles 298 to 303 of ZEKOM-2).
- The Act on the Establishment of a Central Credit Register (ZCKR) establishes a central national

database on the indebtedness of individuals and business entities. Part of this register is also the system for the exchange of information on the indebtedness of individual persons, known as SISBON. Both the register and the information exchange system are managed by the Bank of Slovenia (second paragraph of Article 3 of ZCKR). In accordance with Article 26 of ZCKR, the Bank of Slovenia determines the technical conditions that members of the system and included credit providers must meet for membership or inclusion in the information exchange system and for ensuring the confidentiality of the data collected in the information exchange system. Before determining these acts, the Bank of Slovenia obtains the opinion of the Information Commissioner, who conducts inspection oversight regarding the collection and processing of personal data in the central credit register and the information exchange system in accordance with the Personal Data Protection Act (ZVOP-2). In accordance with Article 31 of ZCKR, the Information Commissioner publicly announces information regarding oversight measures and sanctions for violations that it has imposed, with the aim of preventing and deterring actions that constitute illegal processing of personal data.

The Act on Consumer Credit (ZPotK-2) retains in Article 78 the authority granted to the Information Commissioner in 2013 regarding the oversight of credit providers and credit intermediaries concerning the implementation of Articles 10 and 42 in the part relating to informing, collecting, and processing personal data when assessing the creditworthiness of the consumer, which the credit provider must perform before concluding a credit agreement and before concluding a credit agreement for real estate, as well as Articles 11 and 44 of ZPotK-2, which stipulate access to personal data from the information exchange system regarding the creditworthiness or indebtedness of individuals and the protection of this data. The fines that the Information Commissioner may impose for violations of the articles it supervises are specified in Article 96 of ZPotK-2.

The Act on the Protection of Personal Data in the Field of Criminal Proceedings (ZKSNKB) came into force on February 24, 2024, and in the fifth paragraph of Article 42, it stipulates that the Information Commissioner is responsible for overseeing compliance with obligations in the field of personal data protection.

The Information Commissioner may initiate a procedure for assessing the constitutionality or legality of a regulation or general act issued for the execution of public authorizations in accordance with item 6 of the first paragraph of Article 23.a of the Constitutional Court Act (ZUstS) if a question of constitutionality or legality arises in connection with the procedure it is conducting.

Powers of the Information Commissioner are also defined by the rules of the Schengen Information System (and the second generation of the system, known as SIS II), which enables national law enforcement authorities and judicial and administrative bodies to exchange and access data on crossing external borders and visa policy; in addition, the system includes data on European arrest warrants, extradition, biometric data, and data on searches due to terrorist activities. The legal framework of SIS II includes: Regulation (EC) No. 1987/2006 of the European Parliament and Council of December 20, 2006, on the establishment, functioning, and use of the second generation Schengen Information System (SIS II); Council Decision 2007/533/JHA of June 12, 2007, on the establishment, functioning, and use of the second generation Schengen Information System (SIS II); and Regulation (EC) No. 1986/2006 of the European Parliament and Council of December 20, 2006, on access by the services of Member States responsible for issuing vehicle registration certificates to the second generation Schengen Information System (SIS II).

The Information Commissioner, based on Article 60 of Council Decision 2007/533/JHA and Article 44 of Regulation (EC) No. 1987/2006, oversees the legality of the processing of personal data in SIS II on its territory and during transfer from its territory, including the exchange and further processing of supplementary data.

Powers of the Information Commissioner.

Personal Data Protection Act

Electronic Communications Act

Patients' Rights Act

Media Act

Access to Public Information Act

INFORMATION COMMISSIONER

Identity Card Act
Passport Act
INFORMATION COMMISSIONER
Central Credit Register Act
Consumer Credit Act
General Data Protection Regulation
Personal Data Protection Act in the Field of Criminal Proceedings
INFORMATION COMMISSIONER

PAGE 13

1.3 FINANCIAL OPERATIONS IN 2023

The financial resources for the work of the Information Commissioner are provided in accordance with Article 5 of the ZInfP from the state budget and are determined by the National Assembly of the Republic of Slovenia at the proposal of the Information Commissioner. For the execution of its tasks, the Information Commissioner had a valid budget for the year 2023 amounting to 2,674,238.00 EUR, of which 2,289,417.00 EUR was allocated for salaries, 376,322.00 EUR for material costs, and 8,499.00 EUR for investments. As of December 31, 2023, the recorded orders on the integral budget items amounted to 2,661,477.82 EUR, of which 2,280,885.53 EUR was for salaries, 372,093.62 EUR for material costs, and 8,498.67 EUR for investments.

Budget of the Information Commissioner 2018–2023.

In 2023, the Information Commissioner had designated funds amounting to 7,317.92 EUR. There were no expenditures of designated funds in 2023.

In the budget for 2024, the Information Commissioner transferred a total of 7,321.05 EUR of designated funds and donation funds financed by the European Union (7,317.92 EUR of designated funds, 0.14 EUR of donations – international website, and 2.99 EUR of project financial resources from TAIX).

No funds were transferred to budget item 7640 – Reserve of the Republic of Slovenia in 2023 from integral budget items for the purpose of ensuring the rights of expenditure for the formation and use of budget reserve funds.

A total of 67,701.00 EUR was reallocated from material costs and investments to the salary item, and 5,840.00 EUR from the general current budget reserve based on Article 41 of the Public Finance Act (ZJF) in December 2023.

A more detailed breakdown of financial resources according to measures and projects managed by the Information Commissioner is evident from the table on the following page.

Budget year

Valid budget

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Available budget

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Information Commissioner

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reimbursements from 2023 in the amount of 7,896.71 EUR (sickness benefits in June, October, and November 2023), which were received at the end of the year and could not be used for the purpose of settling salary costs in December.

To cover the shortfall in the salary item for December 2023, the Information Commissioner secured financial resources in the amount of 67,701.00 EUR by reallocating saved funds from the material costs item in the amount of 44,200.00 EUR (30,000.00 EUR in January and 14,200.00 EUR in December 2023) and investments in the amount of 23,501.00 EUR, as well as reallocating 5,840.00 EUR from the general current budget reserve based on Article 41 of the ZJF in December 2023.

From the salary item, the Information Commissioner did not reallocate free spending rights to the budget item 7640 – Reserve of the Republic of Slovenia at the end of 2023.

For material costs, 372,093.62 EUR was spent in 2023, specifically for office and general materials and services 68,027.02 EUR (office supplies, cleaning of business premises, building and premises security services, media monitoring and archiving, translation and proofreading costs, representation, auditing, current operating costs, and other general materials and services); for special materials and services 3,300.60 EUR (purchase of small inventory, medical examinations of employees, professional tasks in the field of occupational safety, tests and masks for protection against COVID-19, package liability insurance, and other special materials and services); for energy, water, utility services, postage, and communication 47,015.79 EUR (electricity, heating, water and utility services, waste disposal, telephone costs, and postal services); for transportation costs and services 5,772.41 EUR (maintenance, repairs, insurance, and registration of two official vehicles, fuel for official vehicles, taxi services, and other transportation and transport costs); for expenses related to business trips 29,354.18 EUR (costs associated with employees' business trips, per diems, accommodation, airline tickets, hotel services, and other transportation costs); for current maintenance 8,938.94 EUR (current maintenance related to the rental of business premises, insurance premiums, maintenance of other unlicensed software – attendance records, current maintenance of the operational information environment – website maintenance); for business rents and leases 160,747.08 EUR (rent and leases for business premises and parking spaces, rental of software – IUS-INFO and the misdemeanor portal, as well as other rents, leases, and licenses – rental of two photocopiers and licenses); for other operational expenses, 48,937.60 EUR was spent (costs of conferences and seminars, payment for student work, expenses for professional education of employees, court costs, annual memberships, contributions for promoting the employment of persons with disabilities – quotas to the Public Guarantee, Maintenance, and Disability Fund).

The Information Commissioner received 15,052.04 EUR from the European Commission for the reimbursement of travel costs (airline tickets and transportation costs) and 128.15 EUR from the insurance company Generali for the settlement of insurance premiums.

To cover the shortfall in the salary item for December 2023, the Information Commissioner secured financial resources in the amount of 44,200 EUR by reallocating saved funds from the material costs item (30,000.00 EUR in January and 14,200.00 EUR in December 2023).

There was no reallocation from budget item 1271 – material costs to budget items 1273 – investments, 7640 – Reserve of the Republic of Slovenia, and other items in 2023.

INFORMATION COMMISSIONER

PAGE 16

PROJECTS

By the end of 2023, a total of €8,498.67 was spent on investments. The funds were used for the purchase of office furniture amounting to €283.99 (office desk), office equipment amounting to €413.06 (binding machine), hardware computer equipment amounting to €1,510.00 (one laptop), servers and disk systems amounting to €337.40 (two hard drives), security equipment amounting to €606.36 (iron safe), telecommunications equipment amounting to €100.00 (one mobile device), other equipment amounting to €2,512.98 (two webcams, access control and time registration system, mailbox, and bicycle stand), and intangible assets amounting to €2,734.39 (access control and upgrade of time tracking license, and license for the automatic proofreader Amebis Besana for six users, HCL license for 50 users – upgrade of the mail Domino server and Microsoft software for ten users). At the end of 2023, the balance of the available budget for the investment item was €0.33.

To cover the shortfall in the salary item for December 2023, the Information Commissioner secured financial resources amounting to €23,501 by reallocating saved funds from the investment item. Designated funds from the sale – in 2023, €7,317.92 of financial resources from sales were carried over. In 2023, there were neither inflows nor outflows in this item. The financial resources amounting to €7,317.92 will be carried over to 2024.

International website info-commissioners.org – in 2023, €0.14 of financial resources were carried over. There was no expenditure on this item in 2023. The project will conclude in 2024, and the remaining funds will be transferred to the budget execution sub-account.

Taix project – €2.99 was carried over from 2022 to 2023. There were neither inflows nor outflows for the Taix project in 2023. The project will conclude in 2024, and the remaining funds will be transferred to the budget execution sub-account.

PROJECTS

Valid budget

Obligations incurred

Available budget in EUR

at year-end

Total funds by projects

€7,321.05

€0

€7,321.38

1215-21-0001

PP 1273 Investments

€8,499.00

€8,498.67

€0.33

1215-21-0001

7459 Designated funds from sales

€7,317.92

€0

€7,317.92

1215-16-0001

PP 9958 International website

€0.14

€0

€0.14

1215-16-0001

PP130134 Taix project

€2.99

€0

€2.99

ACCESS TO PUBLIC INFORMATION

PAGE 17

2 ACCESS TO PUBLIC INFORMATION

2.1 LEGAL FRAMEWORK IN THE FIELD OF ACCESS TO PUBLIC INFORMATION

The right to access public information is guaranteed by the Constitution of the Republic of Slovenia. It is stated in the second paragraph of Article 39 that everyone has the right to obtain public information for which they have a legally justified interest, except in cases specified by law. Although the right to access public information is one of the fundamental human rights and is thus protected at the constitutional level, it began to be enforced only 11 years after the adoption of the Constitution of the Republic of Slovenia, specifically with the adoption of the Access to Public Information Act. Until then, individual provisions regarding the public nature of information appeared only in some laws; they were comprehensively regulated only by the APIA, which came into force in 2003.

The APIA follows the guidelines of international acts and EU regulations. Its purpose is to ensure the public nature and openness of public administration operations and to enable everyone to access public information, namely those related to the areas of work of public administration bodies. The law has established a procedure that allows everyone free access to and reuse of public information held by state authorities, local government bodies, public agencies, public funds, and other public law entities, holders of public authority, and providers of public services. With this law, two directives of the European Community were transposed into the legal order of the Republic of Slovenia: Directive 2003/4/EC of the European Parliament and of the Council on public access to environmental information and repealing Directive 90/313/EEC, which came into force on January 28, 2003, and Directive (EU) 2019/1024 of June 20, 2019, on open data and the reuse of public sector information, which came into force on July 16, 2019, and was implemented into law by the amendment ZDIJZ-G.

ACCESS TO

PUBLIC

INFORMATION

IN THE NAME OF THE PEOPLE AND FOR THE PEOPLE

ACCESS TO PUBLIC INFORMATION

PAGE 18

In 2005, the amendment ZDIJZ-A made a further step forward. The amendment narrowed the possibility of unjustifiably restricting access to information and introduced numerous innovations, such as the reuse of public information and the powers of the administrative inspection in the implementation of this law. The most important innovation was undoubtedly the public interest test. The amendment also emphasized openness regarding data on the use of public funds and data related to employment relationships or the performance of public functions. With this, Slovenia joined those democratic countries that treat exceptions with caution when it comes to public interest.

In 2014, the amendments ZDIJZ-C and ZDIJZ-D were adopted. The most significant change they brought was that the obligation to provide public information was extended from public sector bodies to economic entities and other legal persons under the predominant influence (or majority ownership) of the state, municipalities, or other public law entities, and that AJPES established an online Register of Obligated Entities for Public Information within six months of the enactment of ZDIJZ-C, which is public, and the data in it is accessible free of charge. The purpose of the changes to ZDIJZ was to strengthen transparency and responsible management in the handling of financial resources of economic entities under the predominant influence of public law entities, in addition to ensuring public access and openness in the operation of the public sector. Public oversight, limited only to state bodies, municipalities, and the broader public sector, proved to be insufficient. The financial and economic crisis of recent years has increased public sensitivity to corruption, abuse of power, and poor governance. Greater transparency was also contributed by the proactive publication of public information on websites, as required by the amendment ZDIJZ-C.

On May 8, 2016, the amendment ZDIJZ-E came into effect, which was adopted at the end of 2015.

The amendment introduced innovations in the field of reuse of public information (e.g., reuse of information from museums and libraries, reuse of archival material, provision of open data for reuse).

The amendment stipulates that bodies must publish on the national open data portal of the public sector, managed by the Ministry of Public Administration, a list of all data collections within their jurisdiction with metadata, as well as collections of open data or links to websites where collections of open data are published. The data published on this portal can be reused free of charge for commercial or other purposes by anyone, provided that it is done in accordance with ZVOP-1 and that the source of the data is cited. The amendment also changed the area of charging for access and reuse of public information. Only material costs may be charged for access to public information, but not hourly rates for the labor costs of public employees who handle such requests. Based on the amendment ZDIJZ-E, the Government of the Republic of Slovenia adopted a new Regulation on the Provision and Reuse of Public Information, which established a uniform price list for the provision of public information. This eliminated the special price lists of bodies, based on which they charged labor costs, and specified the types of public information that must be provided online.

In 2018, the amendment ZDIJZ-F came into force, which in Article a26.a stipulates that the party in the

procedure with a request for access to public information or reuse is only the applicant if the subject of the decision is access to data that is defined by law as public. This regulated the institute of third-party participation specifically in relation to the general regulation in the legislation governing administrative procedures.

In 2022, the amendment ZDIJZ-G was adopted, which belatedly transposed Directive (EU) 2019/1024 into Slovenian law. The amendment stipulates that bodies must enable the reuse of research data from publicly funded research to the greatest extent possible, allow the reuse of high-value datasets (e.g., environmental data, traffic data, satellite data, meteorological data), and make dynamic data (data that is frequently updated) available as soon as it is collected. Access to high-value data and dynamic data must be ensured by bodies using so-called API interfaces. Data for reuse must be available without charging costs (or reimbursement of marginal costs may be charged, e.g., for reproduction, provision, and dissemination of documents).

ACCESS TO PUBLIC INFORMATION

PAGE 19

Timeline of the development of the Law on Access to Public Information.

ACCESS TO PUBLIC INFORMATION

PAGE 20

The Public Information Access Act (ZDIJZ) ensures access to information that has already been created, in any form. This law guarantees transparency in the expenditure of public funds and decisions made by public administration, as it operates on behalf of and for the people.

Who are the entities obliged to provide public information?

Entities obliged to provide public information are divided into two groups:

- authorities (state authorities, local community authorities, public agencies, public funds, and other public law entities, holders of public mandates, and providers of public services) and
- business entities under the predominant influence of public law entities.

Obligated entities must provide public information in two ways: by publishing it online and by enabling access based on individual requests. For each of the groups of obliged entities, the term "public information" (i.e., information that must be provided to the requester) is defined differently; for the entities in the second group, it is narrower. While it generally applies to authorities that all documents, matters, files, registers, records, and documentary material they possess (regardless of whether the authority created them itself, in cooperation with another authority, or obtained them from other persons) are public information, with exceptions, for business entities under the predominant influence of public law entities, the opposite thought process applies: public information includes only those documents, matters, files, registers, records, and documentary material defined as such by the ZDIJZ (e.g., information related to concluded legal transactions and information about members of the management board, supervisory board, and control bodies). For these obliged entities, there is also a time limitation, as the obligation to provide information only pertains to information created during the period of predominant influence. Entities that meet the criteria for inclusion in both groups (e.g., companies wholly owned by a municipality that also provide public services) are obliged to provide both types of public information. Those business entities under the predominant influence of public law entities that do not fall under the category of authorities may use a so-called simplified decision-making procedure regarding requests (e.g., they do not issue a rejection decision but inform the applicant in writing of the reasons for not providing the information). Other obliged entities (e.g., holders of public mandates that are also under the predominant influence of legal entities of public law) are required to conduct an administrative procedure as prescribed for authorities.

How to obtain public information?

Public information is freely accessible to everyone, so there is no need to demonstrate a legal interest in obtaining it; curiosity and a desire for knowledge and information are sufficient. Every requester has the right to obtain public information upon request, either by viewing it or by receiving a copy,

photocopy, or electronic record. The obliged entity must decide on the request within 20 working days; authorities may extend the deadline by a maximum of 30 working days in exceptional circumstances. Access to the requested information is free of charge unless it requires partial access. For providing a copy, photocopy, or electronic record of the requested information, the obliged entity may charge the requester for material costs. If the obliged entity does not provide the requested public information, the requester has the right to file an appeal against the rejection decision or notification within 15 days, in which the obliged entity rejected the request. The Information Commissioner decides on the appeal. The requester also has the right to appeal if the obliged entity does not respond to the request within the statutory deadline (or is silent) or if they do not receive the information in the form they requested.

What are the exceptions?

The obliged entity may refuse the requester access to the requested information if the request pertains to one of the exceptions specified in the first paragraph of Article 6 of the ZDIJZ and Article 5.a of the ZDIJZ (classified information, business secret, personal data, tax secrecy, judicial proceedings, administrative proceedings, statistical).

ACCESS TO PUBLIC INFORMATION

PAGE 21

confidentiality, document in preparation, internal operation of the authority, protection of natural or cultural values...). Despite the mentioned exceptions, the authority always allows access to the requested information if it concerns data on the use of public funds or data related to the performance of public functions or the employment relationship of a public servant. The obliged party under prevailing influence must generally not refuse access to the applicant if it concerns absolutely public information (basic data on transactions related to expenditures); a business entity can only avoid disclosing this data if it demonstrates that such disclosure would severely harm its competitive position in the market.

If the document requested by the applicant partially contains information from Article 5.a or Article 6 of the Access to Public Information Act (ZDIJZ), this is not a reason for the obliged party to refuse access to the entire document. If this information can be excluded from the document without compromising its confidentiality, it shall be redacted, and the remaining part of the public information shall be provided to the applicant. The obliged party must, in accordance with Article 19 of the Regulation on the Dissemination and Reuse of Public Information, redact the protected data and allow the applicant to view the remainder of the document (or photocopy or electronic record).

What about requests based on the Media Act?

If a media outlet submits a request for the provision of information under Article 45 of the Media Act (ZMed), the procedure is somewhat different, as the information under ZMed is not the same as public information under the provisions of ZDIJZ. Information for the media is a broader concept than public information, as it also includes the preparation of responses to questions (i.e., explanations, clarifications, analyses, comments). If the media requests an answer to a question, its request is processed under the provisions of ZMed, but if it requests access to a document, its request is processed under ZDIJZ. The media must submit the question in writing via regular or electronic mail (digital certificate or electronic signature is not required), and the obliged party must notify it of the refusal or partial refusal in writing by the end of the next working day. Otherwise, the obliged party must send the answer to the question no later than seven working days from the receipt of the question, and may only refuse the answer if the requested information is exempt from free access under ZDIJZ. After receiving the answer, the media may request additional clarifications, which the obliged party must provide no later than three days. If the obliged party does not have the information that constitutes the answer to the question in a materialized form, the media cannot appeal against the notification of refusal or partial refusal of the answer. An appeal is allowed when the answer to the question is derived from a document.

ACCESS TO PUBLIC INFORMATION

PAGE 22

2.2 NUMBER OF FILED APPEALS AND RESOLVED CASES

In 2023, the Information Commissioner conducted 704 appeal procedures, of which 386 were against

refusals by authorities and 302 were due to the so-called silence of the authority or non-responsiveness. The Information Commissioner conducted 16 appeal procedures against business entities under prevailing influence, of which four were due to silence and 12 against refusals by business entities under prevailing influence.

In 2023, the Information Commissioner responded to 317 written requests for informal assistance or opinions received from first-instance obligated parties and applicants, and also responded to 837 requests during telephone duty hours. All were responded to within its competencies, most often directing them to the competent institution. The Information Commissioner is a second-instance authority that decides on appeals and is not competent to answer specific questions at the stage when the first-instance authority must decide whether a specific document is public information or not. According to Article 32 of ZDIJZ, opinions in the area of access to public information are provided by the ministry responsible for public administration.

2.2.1 APPEALS AGAINST REFUSAL DECISIONS AND ISSUED DECISIONS

In the context of appeal procedures against decisions whereby obligated parties refused requests for access to public information, the Information Commissioner substantively addressed 399 appeals in 2023. It issued 389 decisions, six appeals from applicants were dismissed by decision (the appeals were inadmissible or late), and in four cases, due to the withdrawal of the applicant's appeal, it issued a decision to terminate the procedure. The Information Commissioner issued 353 decisions related to appeal procedures initiated in 2023 and 36 decisions related to procedures initiated before 2023. During the resolution of appeals, it conducted 35 inspections in camera (i.e., inspections without the presence of the party requesting access to public information), during which it ascertained the factual situation at the authority.

In the issued decisions (389):

- appeal dismissed – 210,
- appeal partially or fully granted or resolved in favor of the applicant – 126,
- appeal granted and the case returned to the first-instance authority for re-decision – 49,
- first-instance authority's decision declared null – 4.

Appeals from applicants due to refusal of access to public information, which the Information Commissioner decided on with a decision, concerned the following groups of obligated parties:

- state authorities – 168, of which ministries and bodies within their composition and administrative units 154, while courts, the Supreme State Prosecutor's Office, and the State Attorney's Office accounted for 14,
- public funds, institutes, agencies, public service providers, holders of public authorizations, and other legal entities under public law – 136,
- municipalities – 69,
- business entities under the prevailing influence of the state, municipalities, or other public law entities – 16.

ACCESS TO PUBLIC INFORMATION

PAGE 23

Against which subjects were complaints filed?

In 296 cases, the applicants were natural persons, in 61 cases legal entities from the private sector filed complaints, in 27 cases journalists and media houses, and in five cases legal entities from the public sector filed complaints.

Complaints against refusals of access to information.

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ACCESS TO PUBLIC INFORMATION

PAGE 24

2.2.2 COMPLAINTS AGAINST SILENCE

In 2023, the Information Commissioner received 302 complaints due to the silence of the authority and four complaints due to the non-response of business entities under dominant influence. The most cases of silence were among state administration bodies (ministries, subordinate bodies, etc.), with 107 cases (this number increased compared to 2022, when 89 cases of silence of state administration bodies were recorded), followed by municipalities (67 cases in 2023 compared to 45 cases the previous year) and public institutions (58 cases in 2023, 51 cases in 2022).

Against which subjects were complaints filed?

The majority of complaints against the silence of the authority were filed by natural persons, accounting for 73.9% (226). In 15% of cases (46), journalists or media filed complaints due to the silence of the authority. In 8.8% of cases (27), complaints were filed by legal entities of private law, and in 2.3% of cases (7) by legal entities of public law.

After examining the formal prerequisites, the Information Commissioner did not initiate proceedings in 69 cases due to silence; in 29 cases, the complaint was dismissed by a decision, of which 21 cases were dismissed due to premature filing, in four cases the complaint was incomplete and the applicant did not supplement it, in one case the complaint was filed by an unauthorized person, and in three cases the complaint was not permitted. In 19 cases, the applicant withdrew the complaint during the proceedings, as they had already received the requested information from the obligated party. The Information Commissioner did not take over any complaint for decision-making and did not refer any case to the Administrative Inspectorate.

In 21 cases, the Information Commissioner concluded the proceedings regarding silence by explaining to the applicant:

- that it is not competent to resolve their application, and advised them on how to proceed regarding their request,
- that the application submitted by the applicant to the obligated party is formally incomplete,
- that the obligated party justifiably did not consider their application under the Access to Public Information Act (ZDIJZ), but rather on another legal basis,
- that a decision had already been made regarding their application.

In the appeal proceedings, the Information Commissioner, due to silence, urged the obligated parties in 232 cases to decide on the applicant's request as soon as possible. Following the Information Commissioner's call, the obligated parties provided the applicant with information in 96 cases, denied access to the applicant in 69 cases and issued a rejection decision, and partially enabled access to the applicant in 64 cases (certain data was redacted or access was granted only to certain information, while access to the remaining information was denied by decision). In two cases, the obligated party dismissed the applicant's request by decision, and in one case the authority referred the applicant's request for access to documents to another authority for resolution.

The Information Commissioner currently has two cases still open and under resolution.

In the context of the request for access to public information from business entities under dominant influence, the Information Commissioner conducted four appeal proceedings due to the silence of the obligated parties, in which, following the Information Commissioner's call, the obligated party granted access to the applicant in one case, while in three cases the request was denied. Of the 306 cases of silence, 40 cases were related to the Media Act, with the majority (in 19 cases) involving state

administration bodies.

How did the obligated parties respond to the Information Commissioner's call due to silence?

2.3 NUMBER OF LAWSUITS FILED AND RECEIVED JUDGMENTS

A complaint against the decision of the Information Commissioner is not permissible, but an administrative dispute can be initiated. In 2023, 38 lawsuits were filed at the Administrative Court of the Republic of Slovenia against the decisions of the Information Commissioner (against 9.51% of issued decisions). The proportion is relatively small, indicating the enforcement of transparency and openness in the public sector, as well as that obligated parties and applicants accept the decisions of the Information Commissioner.

In 2023, the Administrative Court decided on 28 lawsuits filed against the decisions of the Information Commissioner, and:

- rejected the lawsuit – 16,
- upheld the lawsuit, annulled the challenged decision or part of the decision and returned the case to the Information Commissioner for re-decision – 9,
- upheld the lawsuit, annulled the challenged decision or part of the decision and returned the case to the obligated party for re-decision – 3.

In 2023, four appeals were filed with the Supreme Court of the Republic of Slovenia against the judgment of the Administrative Court.

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ACCESS TO PUBLIC INFORMATION

PAGE 26

2.4 OFFENCES COMMITTED UNDER THE ZDIJZ, ZInfP AND ZMed

In 2023, the Information Commissioner did not issue any decisions regarding offences due to violations of the provisions of the ZDIJZ, ZInfP, or ZMed.

2.5 SELECTED CASES IN THE FIELD OF ACCESS TO PUBLIC INFORMATION

Invoices, both conceptually and in content, do not constitute a concluded legal transaction, and therefore cannot be classified as public information in business entities under the predominant influence of public law entities.

The applicant requested from the company Top energija d.o.o. the received invoices for the actual consumption of natural gas and the issued invoices for produced heat during a specified period. The obligated party rejected the request, stating that the requested documents are not public information. The Information Commissioner, in the appeal process, determined that the obligated party is not a public service provider, and therefore the requested documents are not public information under Article 4 of the ZDIJZ. Although the obligated party is a business entity under predominant influence, the requested documents do not fall under the definition of public information according to the first paragraph of Article 4.a of the ZDIJZ, based on which public information is defined as "information

from a concluded legal transaction, ... relating to the expenditures of the entity for the order ... of services," and it must be interpreted according to its linguistic meaning and not broadened in scope. The phrase "information from a concluded legal transaction" means information that directly arises from a legal transaction. The requested documents, both conceptually and in content, do not represent a concluded legal transaction (a legal transaction represents, for example, a contract), and therefore cannot be classified under the definition of public information from the first paragraph of Article 4.a of the ZDIJZ. They also do not meet the definition of public information under the second paragraph of Article 4.a of the ZDIJZ. The Information Commissioner did not follow the applicant's assertions that this concerns the use of public funds and that consequently there is a prevailing public interest for the disclosure of this information. The obligated party is neither a direct nor indirect budget user, nor does it manage public funds obtained through the provision of public services. The applicant also did not demonstrate a direct connection as to how the disclosure of the requested information would contribute to informing the public about an important social issue (e.g., public health, safety, etc.) that is in the public interest of a broader group of people. Merely establishing that the obligated party, as a producer of thermal energy, supplies heat to Javne službe Ptuj d.o.o., which then incorporates it into the sales price of heat for end users, is not sufficient to conclude that the obligated party's operations in this regard are in the prevailing public interest, as the production of thermal energy is not publicly regulated but occurs according to market principles. In assessing whether a public interest for access to the requested information under the ZDIJZ has been demonstrated, it cannot be based on a general stance that it would be beneficial for the public and thus in the public interest for the requested information to always be freely accessible; rather, a specific public interest for the disclosure of specific documents or parts of documents must be demonstrated. In the case at hand, the applicant did not provide justified specific reasons for which all requested invoices should be considered public information. This is also evident from the practice of the Administrative Court, which has repeatedly held that the public interest for the disclosure of information pertains to a specific piece of data and cannot arise from a general demand for transparency in certain procedures. The public interest would be stronger only if values such as life, health, or safety of people were endangered, or if there were a threat of direct damage to property of greater value. In the case at hand, such values are certainly not endangered. Consequently, the conditions for the disclosure of the requested information under the second paragraph of Article 4.a in connection with the second paragraph of Article 6 of the ZDIJZ are not met.

KEYWORDS: business entity under predominant influence, whether it concerns the area of work of the authority, decision number 09021-1/2023

ACCESS TO PUBLIC INFORMATION

PAGE 27

The data that are absolutely public are those that were relevant to the authority's decision regarding the selection of the offer based on the public procurement and that the bidder was required to submit as part of proving compliance with the tender conditions.

The applicant submitted a request to the City Municipality of Kranj for access to the entire bidding documentation submitted by the selected bidder in the public procurement. The authority partially rejected the request due to the protection of business secrets (point 2 of the first paragraph of Article 6 of the Access to Public Information Act - ZDIJZ). The Information Commissioner found in the appeal process that the selected bidder had demonstrated a business secret with a decision on the determination of business secrets; however, the Business Secrets Act (ZPosS) in the third paragraph of Article 2 stipulates that information that is public by law cannot be designated as a business secret. These are so-called absolute public data, i.e., data whose disclosure is not influenced by the will of the "affected" business entity. The requested documentation was submitted in the public procurement process, therefore, it is necessary to consider the second paragraph of Article 35 of the Public Procurement Act (ZJN-3), according to which the following are always public: the specification of the offered goods, services, or construction and the quantity from that specification, the price per unit, the value of each item, and the total value from the offer, as well as all data that influenced the ranking of the offer within other criteria. Furthermore, the subject of the appeal includes data from the selected bidder and its subcontractor, so it is necessary to consider the provision of point 1 of the third

paragraph of Article 6 of the ZDIJZ, which states that, notwithstanding the exceptions from the first paragraph of Article 6 of the ZDIJZ, access to the requested information is granted if it concerns data on the use of public funds. For business secrets in public procurement procedures, it is not possible to designate those data from the submitted offer that reflect compliance with the conditions, as it is based on the authority's assessment that the bidder met all the conditions, which led to the use of public funds (as also stated by the Administrative Court in judgment no. I U 1647/2017-29 dated March 6, 2019). Since the Information Commissioner found that the applicant requested data that were relevant to the authority's assessment when deciding on the selection of the offer regarding the public procurement in question, and that are also explicitly listed as documents that the bidder was required to submit as part of proving compliance with the tender conditions, he determined as freely accessible: the ESPD form of the selected bidder and its subcontractor and the list of reference projects. The authority is obliged to forward the specified documents to the applicant, while it must redact protected personal data (point 3 of the first paragraph of Article 6 of the ZDIJZ).

KEYWORDS: business secret, public procurement, decision number 090-355/2022

Data affecting the appointment of a consular officer are not protected personal data

The applicant sought to obtain from the Ministry of the Interior the proposal for the appointment of an honorary consul and a copy of the justification for his appointment to this position. The authority partially complied with her request, but in the documents provided, due to the protection of personal data (point 3 of the first paragraph of Article 6 of the ZDIJZ), it redacted all data in the resume of the appointed individual. The Information Commissioner found in the appeal process that the authority did not take into account that the requested data pertained to the appointment of an individual to the position of honorary consul of the Republic of Slovenia. The procedure and conditions for this appointment are governed by the Foreign Affairs Act (ZZZ-1). Since the appointment of a consular officer is influenced, among other things, by data regarding his education and professional and other activities, which the authority verifies before the appointment to determine whether the candidate enjoys a good reputation and trust and whether his professional and other activities are compatible with the position of a consular officer, these data are related to the performance of a public function, which according to the third paragraph of Article 6 of the ZDIJZ are not protected. Consequently, the Information Commissioner decided that the authority must provide these data to the applicant, while it must, in accordance with Article 7 of the ZDIJZ, redact data in the reviewed documents that are not related to the performance of a public function (handwritten signature, date of birth, date of graduation, date of resuming studies, and all employment and membership dates in organizations, address (along with phone numbers and email address), dates of professional development, dates of acquired professional experience, all data under "other work experience," all employment and membership dates in organizations). Unprotected personal data related to the employment relationship of public...

ACCESS TO PUBLIC INFORMATION

PAGE 28

of employees or in connection with the performance of public functions, personal data at the authority of employees, which are mentioned in documents related to the performance of their work.

KEYWORDS: public officials, personal data, decision number 090-368/2022

In assessing access to a document that legally belongs to the European Commission, European law must be directly applied, and the position obtained from the European Commission must be taken into account.

The applicant requested the Office of the Republic of Slovenia for Recovery and Resilience to provide documentation regarding the technical assistance project of the European Commission to Slovenia.

The authority, referring to Regulation (EC) No. 1049/2001 of the European Parliament and of the Council regarding public access to documents of the European Parliament, the Council, and the Commission (Regulation) and to the internal functioning of the authority (point 11 of the first paragraph of Article 6 of the Access to Public Information Act - ZDIJZ), denied access to the initial report on the mentioned project. The Information Commissioner, in the appeal process, determined that this document legally belongs to the European Commission, therefore, he considered that the Republic of Slovenia, as a member state, must respect the principle of loyal cooperation with European institutions

and thus must not hinder the primary application of the Regulation and the rules regarding the security of European institutions (point 15 of the preamble of the Regulation). The principle or doctrine of loyal interpretation of European law means that member states must interpret their national law in light of and in the spirit of EU law, or in such a way that their internal regulations do not prevent the implementation of European regulations. From the opinion provided by the European Commission based on Article 5 of the Regulation, it follows that the disclosure of the requested report to the public would jeopardize: the public interest concerning the financial, monetary, or economic policy of the Community or the member state (point (a) of the first paragraph of Article 4 of the Regulation); the decision-making process of the European Commission (third paragraph of Article 4 of the Regulation), and the protection of the purpose of inspections, investigations, and audits (second paragraph of Article 4 of the Regulation). In this specific case, it is an absolute exception. According to the provision of the first paragraph of Article 4 of the Regulation, documents protected by absolute exceptions are not accessible to the public if their disclosure would jeopardize one of the expressly prescribed public or private interests. Despite the "absoluteness," these exceptions are only of a "relatively mandatory nature," as they only apply when the disclosure of the document would actually jeopardize the protected legal good, and not merely when there could (theoretically) be a risk of jeopardizing it. According to the provision of point (a) of the first paragraph of Article 4 of the Regulation, documents must not be disclosed in any case if such disclosure would jeopardize the public interest concerning public safety, defense and military matters, international relations, or financial, monetary, or economic policy of the EU or the member state. The European Commission proposed that access to the document in question be denied in its entirety, based on the fourth indent of point (a) of the first paragraph of Article 4 of the Regulation, i.e., the protection of the public interest concerning the financial, monetary, or economic policy of the Community or the member state. It justified its opinion with the fact that this is an ongoing technical support procedure, and the disclosure of the document at this stage would harm Slovenia's objectives in the protected area and the implementation of the advice and recommendations of the European Commission regarding Slovenia's request for technical support in implementing the Slovenian Recovery and Resilience Plan. The Information Commissioner, with direct application of European law and considering the position obtained from the European Commission, determined that the document in question fully represents an exception to free access based on the fourth indent of point (a) of the first paragraph of Article 4 of the Regulation (protection of the public interest concerning the financial, monetary, or economic policy of the Community or the member state). Therefore, partial access, as provided for in the sixth paragraph of Article 4 of the Regulation, cannot be implemented. Since the requested document does not represent an exception under the ZDIJZ, but an absolute exception under the superior Regulation, the public interest test proposed by the applicant cannot be applied in this specific case.

KEYWORDS: EU law, decision number 090-7/2023

ACCESS TO PUBLIC INFORMATION

PAGE 29

Data on the mass and type of packaging for individual manufacturers directly relates to waste, therefore it constitutes environmental data, which is absolutely public.

The Environmental Agency of the Republic of Slovenia rejected a journalist's request for access to certain

data on packaging for each of the manufacturers required to report this data to the authority. In doing so,

it referred to the existence of business secrecy (point 2 of the first paragraph of Article 6 of the Access to

Public Information Act - ZDIJZ) in connection with the provisions governing access to data in the information system on the producer's extended responsibility in the Environmental Protection Act (ZVO-2),

and with the provisions of the Regulation on Packaging and Waste Packaging that govern the records of

producers. In the appeal process, the Information Commissioner found that the authority had not met the

burden of proof regarding the existence of the conditions defined by the Business Secrets Act (ZPosS) for the definition of business secrecy, nor had it established the presumption of business secrecy that it claimed in connection with the aforementioned regulations. The claimed exception is therefore not present; moreover, the information in question cannot be classified as business secrecy at all, as it concerns environmental data that is public by law. The Information Commissioner emphasized that the term waste should not be interpreted narrowly. Packaging placed on the market was defined as waste in the sense of the third paragraph of Article 6 of the ZDIJZ in connection with point 7 of Article 3 of the ZVO-2, from which it follows that in this specific case, the requested data on the mass and type of packaging for each manufacturer directly relates to waste, thus constituting waste data and consequently environmental data. The fundamental data for determining the extent of financial or financial and organizational responsibility for managing such waste is precisely the data on the mass and type of packaging placed on the market for each manufacturer. It is based on this data that the costs of managing waste packaging for each manufacturer are calculated, which means that all the mentioned data relevant to waste management are closely interconnected and interdependent; therefore, the disclosure of data on the mass and type of packaging for each manufacturer is necessary to enable the public to have comprehensive access to all relevant environmental data. Only based on the data on the mass and type of packaging placed on the market for each manufacturer is it possible to comprehensively monitor various data that indicate the success of achieving the goal of preventing or reducing the impacts of packaging on the environment. Such a broad definition of environmental data is also consistent with the provisions of the Aarhus Convention, European legislation, and the practice of the Court of Justice of the European Union. The necessity of a broad interpretation also arises from the fact that the ZVO-2 is based on the principle of publicity, which, in addition to the general provision that environmental data is public, also grants the public a number of other rights that cannot be exercised if the public does not have access to relevant environmental data. A narrow interpretation of the basic concepts in this area and consequently limiting the scope of absolutely freely accessible public information would de facto mean the negation of all these rights. The Information Commissioner also found that there is a prevailing public interest in the public being informed about the requested information, taking into account the essential circumstance that the request was made by a media outlet that has the duty to convey information on all matters concerning the public. The media would not be able to fulfill this task if the public did not have the right to receive this information. Undoubtedly, these are important pieces of information for the public, as data on how much packaging is placed on the market and what type of packaging it is undoubtedly enables comprehensive public debate and consequently public oversight of the actual impacts of this packaging on the environment, and the state of the environment significantly affects human health. If the system of extended producer responsibility does not operate optimally, it certainly endangers human health. Publicly expressed doubts about the adequacy of the regulation and implementation of producers' obligations regarding packaging placed on the market arise in various media and at different times. The disclosure

of

the requested data would indeed contribute to a broader discussion and understanding of something that is

important for the wider public, as already publicly available data (e.g., in the publicly accessible part of the Producer Records) allow. The Information Commissioner concluded that the claimed exception is not

present; therefore, the authority is obliged to provide the requested data to the applicant.

KEYWORDS: business secrecy, environmental data, public interest test, decision number 090-1/2023

ACCESS TO PUBLIC INFORMATION

PAGE 30

When the manner of submitting requests indicates that the applicant's intention is to overwhelm the authority through access to public information or to compel the authority to respond to his complaints and analyses and to initiate an inspection procedure, this constitutes an abuse of rights, as such an intention is not in accordance with the Access to Public Information Act (ZDIJZ).

By invoking the abuse of rights (fifth paragraph of Article 5 of the ZDIJZ), the Market Inspectorate of the Republic of Slovenia denied the applicant access to the requested data. The Information Commissioner followed the authority's decision in the appeal process, with the findings of both referring to the entire set of requests, as only in this way can the manner of exercising the right of access be assessed in the case at hand. Considering the circumstances of the specific case and the criteria for defining abuse of rights from the ZDIJZ as well as from legal theory and practice, the Information Commissioner found that the manner of submitting the requests by the applicant indicates his intention to demonstrate the authority's incompetence or lack of professionalism, and that through the procedures under the ZDIJZ he aims to compel the authority to respond to his complaints and analyses or to initiate inspection procedures. This is evidenced by the frequency and manner of submitting requests. The applicant's submissions represent a blend of warnings about irregularities in certain areas and requests for the initiation of inspection procedures, and on the other hand, requests for access to public information, such as, for example, extracts of documents from specific inspection cases or extracts of documents that should have arisen based on the applicant's complaint. The applicant also provides a negative value judgment of the authority's work in his submissions, both based on his specific complaints and generally accusing the authority of ineffective work. The Information Commissioner determined that the applicant requests access to public information, that is, to documents from specific cases, solely and exclusively for the purpose of proving the authority's ineffective work or to achieve that the authority considers his complaints and initiates inspection procedures regarding the products the applicant points out. The purpose of the ZDIJZ is to ensure the public nature and openness of the authorities' operations and to enable the realization of the right of natural and legal persons to obtain public information; however, the ZDIJZ is by no means a tool for controlling the authority's work or "forcing" it to initiate inspection procedures in specific cases.

Furthermore, the number and extent of the requests under consideration excessively burden the authority. Most requests are extensive, accompanied by analyses, supplemented with new products or additional irregularities, and contain questions and requests for access to public information.

Therefore, various claims intertwine in individual submissions. It is not reasonable to expect that the authority will be able to decide on such a large number of extensive requests with varying content within the statutory time frame. Therefore, the applicant could not have such an expectation, and according to the assessment of the Information Commissioner, he did not have it. Nevertheless, this does not mean that the authority is not working or that its work is ineffective and unprofessional; this is precisely what the applicant seeks to prove through requests for access to public information under the ZDIJZ. In the case at hand, it does not constitute a fair use of the applicant's right under the ZDIJZ.

Moreover, there is no doubt that such a manner of submitting requests by the applicant complicates or even prevents the authority from acting in accordance with the principle of procedural economy.

Therefore, the Information Commissioner followed the authority's findings in the contested decision, concluding that the applicant's actions clearly exceeded the limits of the right to access public information, thereby constituting an abuse of rights.

KEYWORDS: whether it constitutes an abuse of rights, decision number 090-127/2023

The exception that protects judicial proceedings cannot be applied to procedures that do not have the nature of judicial proceedings.

A journalist requested a response from the General Hospital Celje regarding the amount of the compensation claim received by the authority in the case of mistaken patient identities. The authority denied the request, citing the exception under point 8 of the first paragraph of Article 6 of the ZDIJZ, arguing that the parties are in an intensive phase of handling the compensation claim and that the authority does not exclude the possibility of alternative dispute resolution based on the confidentiality of the data; therefore, disclosing the information could cause harm to the continuation of the procedure. For the existence of the claimed exception, two conditions must be cumulatively met, namely (1) the requested information represents data that was obtained or compiled due to a specific litigation, non-litigation, or other judicial proceeding, and (2) the disclosure of the requested information...

ACCESS TO PUBLIC INFORMATION

PAGE 31

the data would harm the conduct of a specific procedure. The Information Commissioner found in the appeal process that in the case at hand, there is no ongoing civil, non-civil, or other judicial procedure. The authority took an incorrect stance regarding this, asserting that the claimed exception can be interpreted more broadly and applied to other procedures that do not have the nature of judicial procedures. Case law indicates that all exceptions to free access must be interpreted restrictively or narrowly and cannot be extended to cases that are substantially similar to the exceptions explicitly listed in the first paragraph of Article 6 of the ZDIJZ. The authority also failed to demonstrate the existence of the second condition; on the other hand, the applicant's justified appeal claims that it is not possible to conclude from the amount of the requested compensation about specific victims, their number, the nature of the requested compensation (material/non-material damage), the amount of individual parts of the requested compensation, or the relevant circumstances for which the compensation is claimed and that will affect its amount. Likewise, it is not possible to conclude from the amount of the requested compensation how the insurance company will handle the claim, whether it will consider it justified, on what legal basis, and in what amount, and, above all, it is not possible to conclude whether and how the parties will settle (i.e., whether and what the actual agreed compensation will be). The Information Commissioner concluded that the second condition for the existence of the claimed exception is not met, which means that the authority is obliged to provide the applicant with the total amount of the requested compensation.

KEYWORDS: protection of judicial procedure, decision number 090-96/2023

Due to broader public discussion, the public interest in disclosing data on the serving of prison sentences for certain individuals prevailed over the interests of personal data protection.

The Administration for the Enforcement of Criminal Sanctions rejected the journalist's request for access to data on the serving of prison sentences for certain individuals due to the protection of personal data (point 3 of the first paragraph of Article 3 of the ZDIJZ). The Information Commissioner granted the applicant's appeal, finding that the public interest in disclosing the requested data outweighs the rights of the individuals concerned to privacy protection. In conducting the public interest test, significant weight was given to the following findings: that all individuals in question are absolutely public figures; that it does not involve the disclosure of data from their intimate lives; that the requested data demonstrates how the competent state authorities decided on certain issues related to the enforcement of prison sentences; that the topic has already sparked public discussion multiple times; and that the applicant is a journalist who has a duty to convey information on all matters concerning the public; that the disclosure of data would indeed contribute to broader discussion and understanding of something important for the wider public, as already enabled by publicly published data; that the disclosure is also important from the perspective of positive general prevention, as the public would be informed about how and to what extent the individuals in question actually served their prison sentences. In conducting the public interest test in the case at hand, the key question was whether the disclosure of the requested documentation would indeed contribute to broader discussion and understanding of something important for the wider public, as already enabled by publicly accessible data regarding the enforcement policy of prison sentences for specific individuals. The Information

Commissioner found that some of the data subject to the request has been partially published; however, this data was not published directly by the authority but by various media, consequently rendering this data inaccurate and unreliable, which means it does not allow for a comprehensive and informed public discussion and understanding of the topic at hand. Only comprehensive information is transparent and enhances understanding of current issues in public discussion and contributes to credible and responsible debate. In this way, we avoid exposing only those pieces of information that would serve private interests while concealing information that is detrimental to the public interest. The Information Commissioner concluded that the disclosure of the requested data would indeed contribute to broader discussion and understanding of something important for the wider public, as already enabled by publicly published data. Given all of the above, the harm that would arise from the disclosure of the discussed personal data is less than the public interest in being informed about them, and the Information Commissioner ordered the authority to provide them to the applicant.

KEYWORDS: personal data, public interest test, decision number 090-78/2023/21

ACCESS TO PUBLIC INFORMATION

PAGE 32

The proposal of the Government of the Republic of Slovenia, signed by the competent minister and sent to the Government of the Republic of Slovenia, is not a document in preparation.

The applicant submitted a request to the Ministry of Public Administration for access to the analysis and alternative solutions for eliminating precariousness in public administration, prepared by the authority. The authority rejected the request, justifying that it concerns a document in preparation, that the government material has not yet been coordinated interdepartmentally, and that the decision (of the government) has not yet been signed by the competent person. In the appeal process, the Information Commissioner assessed whether all the conditions for the existence of the claimed exception, as defined in point 9 of the first paragraph of Article 6 of the Access to Public Information Act (ZDIJZ), are cumulatively met: (1) the document must still be in the process of preparation, (2) the document must still be subject to consultation, and (3) the disclosure of the document would lead to a misunderstanding of its content. The requested document is an attachment to the proposal of the Government of the Republic of Slovenia, which was signed by the competent minister and sent to the Government of the Republic of Slovenia (although later withdrawn), from which it follows that the first two conditions are not met. The authority merely claimed that the disclosure of the requested document would lead to a misunderstanding of its content; however, the Information Commissioner found that, given the content of the requested document, its disclosure could not, by its very nature, lead to a misunderstanding of its content. It does not contain a decision regarding one of the alternative solutions and thus does not provide the public with an opportunity to prematurely conclude and misunderstand the content of the document. The requested document analyzes the current situation, presents various alternative solutions, describes the expected consequences and impacts of these solutions, all based on economic analysis and studies, and therefore cannot influence any misconceptions that the public might form about future decisions of the competent decision-makers. On the contrary, access to the mentioned document would allow the public to verify how the authority has addressed the current issue of precarious work, after the topic of eliminating precariousness has already been the subject of public discussion multiple times. Since the claimed exception is not present, the authority is obliged to provide the requested document to the applicant.

KEYWORDS: document in preparation, decision number 090-167/2023

Data from the contract on the provision of a concession for a public utility service are public data by law and therefore do not constitute a business secret.

The City Municipality of Murska Sobota denied the applicant access to the concession contract for the provision of the public utility service of cleaning wastewater and stormwater on the grounds of business secrecy (point 2 of the first paragraph of Article 6 of ZDIJZ). The Information Commissioner found in the appeal process that the requested contract, which was created before the enactment of the Business Secrets Act (ZPosS), does not constitute a business secret, as the criteria from Article 39 of the Companies Act (ZGD-1) are not met in relation to it. Neither the requested contract nor the response from the interested parties indicates that this contract was marked as a business secret;

merely referencing that the authority or the interested parties protect the data from this contract from unauthorized access and as a business secret is insufficient to substantiate the subjective criterion. For the existence of the objective criterion, the need for protection must be evident and the damage must be significant, with the burden of proof resting on the interested party. The interested parties merely claimed in a general manner that the requested contract constitutes a business secret and did not specifically demonstrate the damage that would occur from the disclosure of the data; therefore, the occurrence of damage was not substantiated, which means that the objective criterion for determining a business secret is also not met. Furthermore, the requested contract pertains to the performance of a public function and the use of public funds, thus it constitutes absolutely public data under the first indent of the third paragraph of Article 6 of ZDIJZ. The subject of the requested contract is the provision of the public utility service of cleaning municipal wastewater and stormwater in the area of the authority. The content of such a contract is legally regulated and is not left to the discretion of the participating parties. The provision of public services is in the public interest; therefore, public oversight of the concession activity is of utmost importance in these segments. If we were to allow the possibility for the concessionaire and the conceding authority to designate data from concession contracts as business secrets, we would completely hinder public oversight of the legality of the process of concluding and executing the concession contract. Data from the concession contract are therefore public by law, as they are related to the performance of a public function. The term "public function" is not...

ACCESS TO PUBLIC INFORMATION

PAGE 33

is related solely to officials in state bodies and local community bodies, but it must be systematically and teleologically connected to the concept of "public service" in the public law sense of this conceptual connection. Furthermore, the content of the concession agreement also pertains to the use of public funds. In this regard, the Information Commissioner emphasized that the term "use of public funds" includes not only budgetary funds but also resources that the provider acquires from other sources for the provision of public services, e.g., from end users. The use of public funds is not merely "spending," but encompasses all forms of disposal of public funds. Anyone entering into a legal transaction with a public law entity must be aware that they are engaging in a transaction with the public sector, where specific rules regarding transparency, publicity, and accountability apply. Everyone has the right to know how public funds are disposed of, regardless of whether the other partner in a transaction where a public law entity disposes of public funds is a public law entity or a private law entity. Data on the use of public funds is always public. The Information Commissioner concluded that the content of the requested contract is freely accessible.

KEYWORDS: business secret, decision number 090-184/2023/9

The body, as a legal entity of public law, is obliged to operate transparently in all its activities, including regarding the audited internal processes of the body's operations.

The applicant requested documents related to internal audits from the Slovenian Sovereign Holding d.d. The body, in its refusal, referred to the exception of business secrecy (point 2 of the first paragraph of Article 6 of the Access to Public Information Act - ZDIJZ) and internal operations (point 11 of the first paragraph of Article 6 of the ZDIJZ). The Information Commissioner, in the appeal process, found that the claims of the body, which bears the burden of proof regarding the existence of business secrecy, were general and unsubstantiated, as the conditions for defining business secrecy set by the Business Secrets Act (ZPosS) were not cumulatively met concerning the documents in question. The Information Commissioner then also examined the existence of the exception for internal operations, for which two criteria must be cumulatively met: (1) the information must originate from a document that was created in connection with the internal operations or activities of the body, and (2) the disclosure of such information would cause disruptions in the operations or activities of the body. The Information Commissioner found that the requested documents met the first criterion of the claimed exception. In asserting the second criterion, the body claimed that disclosure would hinder its operations and stable business in all circumstances. The Information Commissioner did not accept such justification, as the body did not demonstrate, even to a degree of probability, any disruption in the operations of the body, but merely presented unexplained and unproven predictions. The

disclosure of the foundational document on the operation of internal audits, which defines the purpose, significance, and tasks of the audit, according to the Information Commissioner, cannot cause disruptions in the operations of the body, as it is a general act that defines the mission and position of internal audit service providers, the area of work, powers, and responsibilities of internal auditors and does not interfere with the fundamental activity of the body that is supposed to be disrupted, namely the management of the body's and the state's investments. It is a framework founding act of the internal audit service, the content of which is generally general and usually predictable. Consequently, the disclosure of this document cannot cause relevant disruptions in its operations. The same applies to the work plan of the internal audit for a specific year (or the rebalancing of that plan), as the fact that the public would be informed about the areas of internal operations that the body wishes to audit in a specific year cannot, in itself, represent a serious and concrete danger of causing disruptions in the operations of the body. The reports of regular internal audits were prepared for the purpose of reviewing the adequacy, effectiveness, compliance, and legality of the internal processes of the body's operations. From the internal audit reports themselves, it is not possible to identify what the body believes to be information that would prevent it from operating if disclosed, as the areas of the audit did not pertain to the fundamental business activity of the body, but rather to the technical and organizational processes of the body's operations, which must be effective and compliant with regulations, but do not represent the fundamental operations of the body, and their disclosure cannot consequently prevent the functioning and stable operation of the body, nor did the body explain or demonstrate this in the contested decision. The body did not specify the disruptions in relation to the actual state and did not assess why the disclosure of a specific report would hinder its operations.

ACCESS TO PUBLIC INFORMATION

PAGE 34

or data from a specific report of regular internal audit jeopardized its operations, and the vague and non-specific statements of the authority cannot be legally considered for the existence of the stated exception. It is also crucial that if the internal audit did not detect any irregularities, the disclosure of the report cannot harm or disrupt the functioning of the authority. However, if it is found that operations may be contrary to rules and legislation, it is right that such irregularities are disclosed, which can only be done if the audit report is accessible to the public. It must be based on the principled stance that the authority, as a legal entity of public law, is obliged to operate transparently in all its activities, including regarding the audited internal processes of the authority. From all of the above, it follows that the authority has not fulfilled its burden of proof with vague and abstract statements, and therefore there is no serious and concrete danger of causing disruptions in the functioning of the authority that would arise from the requester or the public being informed about the requested documents. Since the second cumulative condition, which is stipulated for the existence of an exception under point 11 of the first paragraph of Article 6 of the ZDIJZ, is not met in the case at hand, the exception for the internal functioning of the authority does not apply. The Information Commissioner therefore ordered the authority to provide the requested documents to the requester with protected personal data redacted.

KEYWORDS: internal functioning, decision number 090-251/2023

In deciding on access to the judgment, it is necessary to consider to what extent the public was excluded; otherwise, there could be a distortion of the purpose of excluding the public at hearings and during the announcement of the judgment.

The District Court in Ljubljana did not grant the request in which the requester sought access to the judgment in a criminal case on the grounds of personal data protection (point 3 of the first paragraph of Article 6 of the ZDIJZ). The Information Commissioner, upon reviewing the appeal, found that the requested judgment contains protected personal data, as various personal data and many related circumstances intertwine throughout the entire content, from which individual persons can be identified, and there is no known legal basis that would stipulate that all this data can be shared with the public as freely accessible information of public nature. In implementing partial access to the judgment in question, the Information Commissioner meaningfully followed the purpose of those provisions of the Criminal Procedure Act (ZKP) regarding the exclusion of the public, which aim to protect the personal lives of victims and defendants and the participation of minors in the proceedings

(Article 360 of the ZKP in connection with Article 295 of the ZKP). In this specific case, the public was excluded from the main hearings and from part of the announcement of the judgment against the minor perpetrator and entirely regarding the announcement of the reasons and brief explanation of the judgment. The Information Commissioner took this into account when deciding on access to the judgment, as otherwise, there could be a distortion of the purpose of excluding the public at hearings and during the announcement of the judgment. The authority was thus ordered to redact individual personal data in the introduction, the ruling, and the conclusion of the judgment, while the reasoning must be redacted in its entirety. The latter contains such a volume and concentration of protected personal data that partial access cannot be implemented in a way that confidential (protected) data can be excluded, as the excluded data could be inferred from other information contained in the document. In this regard, the Information Commissioner also considered the result of the public interest test, within which it was determined that the case at hand does not involve data that would be important to the broader public (e.g., a broader topic that is of general public interest, public spending, public health issues, public safety, etc.). Given that the case in question pertains to a trial from which the public was excluded, there is a strong interest in not disclosing the judgment to the public in its entirety. Therefore, there are not enough arguments in the case to shift the balance towards public disclosure, and thus the prevailing public interest in the full disclosure of the judgment is not present. This position also stems from the established practice of the Administrative Court of the Republic of Slovenia, which holds that the disclosure of information based on the public interest test is only permitted in exceptional cases (public safety, public health, human life, and similar); mere media resonance of the case is not sufficient.

KEYWORDS: personal data, public interest test, decision number 090-307/2023

ACCESS TO PUBLIC INFORMATION

PAGE 35

The Access to Public Information Act (ZDIJZ) includes the bodies of all three branches of government, including the judiciary, not only in relation to administrative functions but also regarding the full execution of the function of adjudication.

The District Court in Kranj partially rejected the applicant's request for access to all documents and attachments of the court file. The applicant was granted access to judgments, while the remainder of the request was denied, citing the decision of the Supreme Court in case no. X Ips 4/2020 dated May 27, 2020. According to the authority's opinion, the application of the ZDIJZ is excluded for all documents from court files, except for judgments, and the applicant can request access to these documents based on Article 150 of the Civil Procedure Act (ZPP). The Information Commissioner found in the appeal process that the authority did not consider that the applicant in case no. X Ips 4/2020 was also a party to the criminal case from which documents were requested, while in the case at hand, the applicant is not requesting access to documents from the case in which they themselves are a party under the ZDIJZ. Furthermore, the decision in case no. X Ips 4/2020 was based on a provision of the Criminal Procedure Act (ZKP), which was later amended in such a way that, regardless of the provisions of the ZKP, a request for access to public information under the ZDIJZ is possible. Additionally, the authority overlooked that the Republic of Slovenia ratified the Council of Europe Convention on Access to Official Documents, which obliges judicial authorities not only to provide documents related to administrative functions but also those connected to the execution of the function of adjudication. Considering all the above, the Information Commissioner concluded that the subject of assessment under the ZDIJZ is the entire requested court file with attachments, noting that it contains data that are exceptions under points 2 and 3 of the first paragraph of Article 6 of the ZDIJZ, but that partial access can be granted to the request. Regarding the definition of exceptions to free access in the case at hand, the Information Commissioner also emphasized the fact that the court proceedings concerned a purchase agreement for land owned by the defendant, which is a municipality, meaning that this purchase agreement involved the disposal of public funds. Therefore, it concerns data on the use of public funds, which are absolutely public under the third paragraph of Article 6 of the ZDIJZ.

KEYWORDS: violation of substantive law, decision number 090-272/2023

An agreement between multiple opposing parties that rectifies an unconstitutional regulation and consequently enables the exercise of the human right to an independent court is not an exception to internal functioning and is also a matter that concerns the broader public interest.

The General Secretariat of the Government of the Republic of Slovenia, citing the exception for internal functioning (point 11 of the first paragraph of the ZDIJZ), rejected the applicant's request for access to agreements regarding the regulation of salaries for officials of the Constitutional Court of the Republic of Slovenia, officials of the judiciary, and state prosecutor officials. For the existence of this exception, two conditions must be cumulatively met: (1) the data must originate from a document that was created in relation to the internal functioning or activity of the authority, and (2) the disclosure of such data would cause disturbances in the functioning or activity of the authority. The Information Commissioner found in the appeal process that the first condition is not met, as it is not an act that arose within the Government of the Republic of Slovenia or a specific ministry, nor is it a document that is (still) in inter-ministerial coordination, but rather a document that reflects an agreement reached through negotiations among several "opposing" parties. Thus, it does not pertain to the internal functioning or activity of the authority and its internal policy, as since the content of the new salary regulation for officials (judges, officials of the Constitutional Court, and state prosecutors) became part of the agreement, in which various external parties participated and shaped, it cannot be referred to as the authority's policy and internal functioning, but rather as an agreed regulation. Furthermore, the Information Commissioner found that the second condition for the discussed exception is also not met. The authority justified the disturbances that would supposedly arise from the disclosure of the documents primarily with its negotiations with public sector unions, without convincingly explaining how the situation of the concerned officials (judges, officials of the Constitutional Court, and state prosecutors) is similar to or connected with the requested documents. The authority's arguments contradict the positions of state representatives expressed at the conclusion of the requested agreements, as well as the decision of the Constitutional Court (no. U-I-772/21-37 dated June 1, 2023). That the situation of the concerned officials and public employees is not connected to this...

ACCESS TO PUBLIC INFORMATION

PAGE 36

to arrange them simultaneously, the former Minister of Public Administration also stated for the public at the conclusion of the requested agreements, having publicly disclosed all essential elements of the document. Considering all of the above, the Information Commissioner determined that the claimed exception does not apply, and emphasized that the data is public based on the third paragraph of Article 6 of the Access to Public Information Act (ZDIJZ), as the requested agreements contain information related to the use of public funds, since all the officials involved are paid from public funds. Furthermore, the agreements regulate the rights (to payment) of the officials, and thus undoubtedly concern data related to the performance of public functions. At the same time, the transparency of this type of data is also stipulated by the Public Sector Salary System Act (ZSPJS) in Article 38. The Information Commissioner also conducted a public interest test, where the key question was whether the disclosure of the requested documents would actually contribute to broader public awareness and understanding of something important to the wider public, as already enabled by publicly published data. The agreement that rectifies the unconstitutional regulation and consequently enables the exercise of the human right to an independent court concerns the broader public interest. It is not merely a question of whether the requested agreements were concluded in a manner and spirit consistent with the Constitutional Court's decision, which links the regulation of the position and salaries of judges to their independence. It is a question of whether these agreements constitutionally ensure the protection of the right to an independent trial for all participants in judicial proceedings. Given the clear decision of the Constitutional Court that the regulation of judges' salaries is unconstitutional, without knowing the content of both concluded agreements, broader public discussion on whether the agreements rectify the unconstitutionality is not possible. Access to the concluded agreements indeed answers questions about whether the mentioned officials remain in a unified system, how their position is established, and what relationship they have to others governed by the public sector salary system. The Information Commissioner concluded that the public interest outweighs the interest asserted by the authority, and ordered the authority to grant the applicant

access to the requested documents on this basis.

KEYWORDS: internal operation, public interest test, decision number 090-304/2023

ACCESS TO PUBLIC INFORMATION

PAGE 37

2.6 EDUCATION AND AWARENESS ACTIVITIES

The principle of transparency is one of the fundamental postulates of any democratic society, and therefore must remain one of the guiding principles of the operation of public sector authorities. Openness and transparency in the functioning of public authorities are essential for their better operation, which in turn benefits all members of society. Therefore, the Information Commissioner also pays attention to raising awareness among professionals and the general public, thereby promoting good practice in the field of access to public information.

2.6.1 Right to Know Day

In the last week of September, activities take place worldwide to mark the International Right to Know Day (September 28). This day was proclaimed in 2002 by non-governmental organizations connected in the Freedom of Information Advocates Network (FOIANet), and in 2015 it was designated as the International Day for Access to Information by the General Conference of UNESCO. At the 74th United Nations General Assembly in 2019, this day was declared the International Day for Universal Access to Information.

As part of the events for the International Right to Know Day, the Information Commissioner held a ceremonial academy titled "Public Information is and Will Shape the Openness of Society" on September 27, 2023, at the Academy of Music in Ljubljana.

The event was opened by Dr. Nataša Pirc Musar, the President of the Republic, as the honorary guest, followed by greetings from Information Commissioner Mojca Prelesnik and the Minister of Public Administration Sanja Ajanović Hovnik. The Information Commissioner emphasized that the Access to Public Information Act has provided a solid foundation for the realization of the right to know in Slovenia for 20 years, and that the appeal procedures conducted under it always strive to open up information, thereby significantly contributing to the successful development of transparency in the public sector. She particularly highlighted the importance of informing the public about issues related to the adoption of regulations, the functioning of judicial authorities, the use of public funds, as well as environmental and confidential data. She concluded that our common goal must continue to be to build a strong culture of transparency on a solid legal foundation, which is a necessary condition for the realization of other rights in a democratic society.

During the event, the Information Commissioner also awarded the Transparency Ambassador Award. It was received by the organization "Today is a New Day," Institute for Other Issues, which strengthens public awareness of the importance of transparent operation and the inclusion of civil society in democratic decision-making processes at both the national and local levels through numerous projects. Participants were also addressed via video statement by Dr. Gregor Virant, former Minister of Public Administration. This was followed by a round table, where participants concluded that the law is being effectively implemented in practice and achieving its purpose; however, improvements are still possible, particularly in simplifying procedures and shortening the time for resolving matters. In light of the rapid development of modern technologies and artificial intelligence, they also pointed out the challenges that the future brings and agreed that the public sector must continue to promote a value system that strives for openness.

To make the processes for accessing public information even faster and more effective, the Information Commissioner took this opportunity to publish a manual for obligated parties and applicants, which compiles answers to the most frequently asked practical dilemmas.

ACCESS TO PUBLIC INFORMATION

PAGE 38

Event on the Day of the Right to Know, Ljubljana, September 27, 2023.

2.6.2 International Cooperation

From October 11 to 13, 2023, the 4th meeting of the Initiative 2020 took place in Dubrovnik, an association established in October 2020 at the initiative of the Slovenian Information Commissioner,

which has brought together appeal bodies in the field of access to public information from Slovenia, Croatia, Bosnia and Herzegovina, Montenegro, Serbia, Kosovo, and North Macedonia. The purpose of the association is to strengthen cooperation and exchange good practices in promoting and protecting the right to access public information.

Participants discussed the standards achieved in access to public information in individual countries, open questions regarding access to information in specific cases, and proactive information dissemination. Special attention was given to the issue of silence by authorities and the abuse of the right to access information. Regarding silence, it was emphasized that the silence of authorities undermines the right to access public information, and therefore effective means must be sought within the existing legal framework to sanction responsible individuals in authorities who most often ignore requests for access to information in practice. In relation to the abuse of the right to access information, it was pointed out that it excessively complicates the work of the obligated parties and harms the realization of this right in practice. The goal of these applicants is not to ensure transparency, openness, and oversight of public authorities, but to hinder the work of the obligated parties, with some requests even being financially motivated. Such exercise of the right is unacceptable and inconsistent with its purpose. Therefore, it is necessary to establish legal safeguards in national laws for such cases and to regulate the institute of abuse of rights or unfair use of law.

ACCESS TO PUBLIC INFORMATION

PAGE 39

4th meeting of the Initiative 2020 association in Dubrovnik.

ACCESS TO PUBLIC INFORMATION

PAGE 40

2.7 GENERAL ASSESSMENT AND RECOMMENDATIONS

In 2023, the Information Commissioner addressed 1,021 cases in this area, which is 50 more than in 2022 and the highest number since its establishment. Of these, 704 appeals were processed (386 against rejection decisions, 302 due to silence of the authority, and 16 against decisions of entities under dominant influence) and 317 responses were prepared to requests from obligated parties and applicants. The average resolution time for an appeal case was 28 days.

The Information Commissioner notes that compared to 2022, the total number of received appeals increased by 10%, with a concerning fact that the number of received appeals due to silence of the authority significantly increased (302 in 2023 compared to 241 in 2022). This means that obligated parties responded worse to received requests for the dissemination of public information compared to the previous year, and the level of transparency consequently decreased. The majority of received appeals were filed against state authorities (state administration and other state bodies), where both the number of appeals against rejection decisions and against silence of the authority increased compared to the previous year. The Information Commissioner also noted an increase in the number of received appeals regarding municipalities, where, after several years of decline, the number of appeals due to silence unfortunately increased again (there were 44 in 2022 and 67 in 2023).

According to the Information Commissioner, this is a consequence of several circumstances. With the change in administrative business rules (most requests are submitted via regular email to the electronic mailboxes of the obligated parties), the method for applicants to assert their right to access public information has been further simplified, while obligated parties are not adequately prepared for such an increased number of requests and faster communication methods, and consequently do not respond quickly enough. At the same time, due to organizational reasons (reorganization of the state administration), there have been personnel changes among obligated parties and changes in official persons responsible for this area. Since access to public information is an important tool for citizens to monitor the work of public administration in a democratic society, the Information Commissioner urges obligated parties to pay even more attention to this area. The procedures for access to public information are becoming increasingly complex in substance and procedurally more demanding, so they should appoint persons with appropriate professional (pre)knowledge and good knowledge of conducting administrative procedures at the first level as official persons for the dissemination of public information, and all employees should be informed about the basic obligations imposed by the law. In

practice, the Information Commissioner observes that obligated parties in this area are still not sufficiently informed, even though more than 20 years have passed since the law came into force. As the Information Commissioner is an appeal body in the field of access to public information, it can only provide informal advice to obligated parties and the public within the framework of existing practice. In 2023, it responded to 317 requests from obligated parties and applicants regarding the application of the law in practice, which is significantly more than in 2022, when there were 275 such requests. Since the Ministry of Public Administration is responsible for advising the public and obligated parties regarding the application of the law in practice, the Information Commissioner again urges it (as it did in 2022) to pay more attention to this, for example, in the form of additional free training, issuing opinions and guidelines, publishing preliminary opinions on its websites... On the other hand, applicants are well aware of the rights granted by this law, and the increase in appeal cases can undoubtedly be attributed to the fact that legal protection in appeal procedures before the Information Commissioner is used more frequently and quickly. The appeal process before the Information Commissioner is indeed simple, fast, and without special costs (there is no administrative fee), and applicants usually represent themselves, which indicates that the appeal process is not overly formalized and is also accessible to lay applicants.

****ACCESS TO PUBLIC INFORMATION****

PAGE 41

They understand this well. In the past year, the Information Commissioner has unfortunately observed several cases in practice where the manner of exercising this right was not in accordance with the law. Clearly, excessively addressing extensive and unreasonable requests to the obligated parties does not enjoy legal protection. The right to access public information, as a fundamental constitutional right, is indeed designed broadly; however, it must not be a tool in the hands of those applicants who, with the intention of harassment and overwhelming the obligated parties, hinder their work and jeopardize their public law mission. In such cases, we can also speak of an abuse of rights, which is regulated by the law on access to public information in the fifth paragraph of Article 5. The criteria for determining when there is an abuse of rights must be interpreted narrowly in practice and on a case-by-case basis, and the justification for the existence of an abuse of rights must always remain a last resort and may only be used in cases where it is objectively impossible to expect the authority to handle the applicant's requests in accordance with the provisions of the ZDIJZ. It should also be noted that criteria for defining abuse of rights have already been developed in the practice of the Information Commissioner and judicial practice, which the obligated parties should follow as much as possible to avoid costs and delays in proceedings.

Regarding appeal procedures against business entities under dominant influence, the Information Commissioner noted an increase in cases (12) in 2023; however, the number of these complaints remains low (1.7%) in the total number of all complaints over the years.

****PROTECTION OF PERSONAL DATA****

PAGE 42

3 PROTECTION OF PERSONAL DATA

3.1 CONCEPT OF PERSONAL DATA PROTECTION IN THE REPUBLIC OF SLOVENIA

The concept of personal data protection in the Republic of Slovenia is based on the provision of Article 38 of the Constitution of the Republic of Slovenia, which states that the protection of personal data is one of the guaranteed human rights and fundamental freedoms. This provision ensures the protection of personal data, prohibits the use of personal data contrary to the purpose of their collection, guarantees everyone the right to be informed about the collected personal data relating to them, and the right to judicial protection in case of their abuse.

For the normative regulation of personal data protection, the second paragraph of Article 38 of the Constitution of the Republic of Slovenia is particularly important, which stipulates that the collection, processing, purpose of use, supervision, and protection of the confidentiality of personal data shall be determined by law (general, systemic law, and sectoral laws). This is the so-called processing model, according to which, in the field of personal data processing, everything is prohibited except what is expressly permitted by law. Any processing of personal data constitutes an interference with the

constitutionally protected human right. The purpose of processing personal data determined by law must be constitutionally permissible, and only those personal data that are appropriate and necessary for achieving the purpose may be processed.

The regulation of personal data protection in systemic law is necessary for the uniform determination of principles, rules, and obligations, as well as for filling legal gaps that may arise in sectoral laws. The key systemic law regarding personal data protection was the Personal Data Protection Act until May 25, 2018.

****PROTECTION OF PERSONAL DATA****

****PROTECTION OF THE FUNDAMENTAL HUMAN RIGHT TO PRIVACY****

PROTECTION OF PERSONAL DATA

PAGE 43

As part of the reform of personal data protection at the EU level, on May 4, 2016, two key components of the new EU legislative package on personal data protection were published in the Official Journal of the EU, namely:

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Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of individuals with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) and

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Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of individuals with regard to the processing of personal data by competent authorities for the purposes of preventing, investigating, detecting or prosecuting criminal offenses or executing criminal sanctions, and on the free movement of such data, and repealing Framework Decision 2008/977/JHA (Directive 2016/680).

The General Data Protection Regulation (GDPR) entered into force on May 25, 2016, and has been directly applicable since May 25, 2018. Directive (EU) 2016/680 was transposed into national legislation by the Personal Data Protection Act in the area of handling criminal offenses (ZVOPOKD), which came into effect on December 31, 2020.

With the General Regulation, individual rights have been strengthened; in addition to the existing right of access to personal data and the right to rectification, there is now also the right to erasure, the right to restriction of processing, the right to object, and the right to data portability. There is now a significantly greater emphasis on the transparency of processing, i.e., on providing clear and easily accessible information to individuals about the processing of their data.

The General Regulation also establishes new obligations for data controllers and processors, such as the obligation to implement appropriate security measures and the obligation to formally notify of personal data breaches, the appointment of data protection officers, and the conduct of impact assessments. Controllers are no longer required to register personal data collections in the register of personal data collections, but the obligation to maintain a record of collections (the so-called record of processing activities) remains; these obligations are also strengthened and introduced for (contractual) processors. The General Regulation places significantly more emphasis on the principle of accountability and preventive measures, and in addition to the aforementioned compliance mechanisms, it introduces the possibility of certifying sectoral codes of conduct and certification.

The General Regulation confirms the existing obligation of Member States to establish an independent supervisory authority at the national level. Its aim is also to establish mechanisms that ensure consistency in the application of data protection legislation throughout the EU. It is essential that in cases where personal data processing takes place in more than one Member State, the lead supervisory authority, i.e., the authority of the Member State where the main or sole establishment of the controller or processor is located, is responsible for overseeing these activities under the "one-stop-shop" principle. Other supervisory authorities participate in oversight procedures as concerned authorities.

The General Regulation also includes the establishment of the European Data Protection Board (EDPB). The Board consists of representatives from all 27 independent supervisory authorities of the

EU and EEA (Iceland, Norway, and Liechtenstein), the European Commission, and the European Data Protection Supervisor; the Board replaces the Article 29 Working Party.

The General Regulation necessitated the adoption of a new Personal Data Protection Act (ZVOP-2), which ensures the implementation of the Regulation in the Republic of Slovenia. The new Personal Data Protection Act (ZVOP-2) was adopted only on December 15, 2022, and came into effect on January 26, 2023.

PROTECTION OF PERSONAL DATA

PAGE 44

Timeline of the Personal Data Protection Act.

Article 38 of the Constitution of the Republic of Slovenia stipulates that

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human rights and fundamental freedoms in the country.

In all EU Member States, the General Data Protection Regulation (GDPR) comes into effect.

The General Regulation necessitated the adoption of a new Personal Data Protection Act (ZVOP-2), which ensures the implementation of the Regulation in the Republic of Slovenia. The new Personal Data Protection Act (ZVOP-2) was adopted only on December 15, 2022, and came into effect on January 26, 2023.

PROTECTION OF PERSONAL DATA

PAGE 45

3.2 SUPERVISION IN 2023

3.2.1 INSPECTION SUPERVISION

The procedure for inspection supervision carried out by the Information Commissioner or state supervisors for the protection of personal data is governed, in addition to the Personal Data Protection Act (ZVOP-2), the Act on the Information Commissioner (ZInfP), the General Regulation, and the Act on the Protection of Personal Data in the Area of Criminal Offenses (ZVOPOKD), also by the Inspection Supervision Act (ZIN) and the General Administrative Procedure Act (ZUP). The Information Commissioner supervises the implementation of the provisions of the General Regulation, ZVOP-2, and all those regulations governing the area of personal data protection in inspection procedures.

In the context of inspection supervision, the Information Commissioner particularly supervises:

- the legality and transparency of personal data processing;
- the adequacy of personal data security measures and the implementation of procedures and measures to ensure personal data security;
- the implementation of provisions of the General Regulation that govern specific expressions of the principle of accountability (official notification of supervisory authorities and individuals about security breaches, impact assessments, designated data protection officers, records of processing activities);
- the implementation of provisions of the General Regulation regarding the transfer of personal data to third countries or international organizations and regarding their disclosure to foreign users of personal data;
- the implementation of provisions of the General Regulation regarding processing based on a data processing agreement.

The General Regulation grants the Information Commissioner the following inspection powers in Article 58:

1. Investigative powers:

- to instruct the controller and processor and, where appropriate, the representative of the controller or processor to provide all information necessary for the performance of its tasks;
- to conduct investigations in the form of audits in the area of data protection;
- to conduct reviews of compliance certificates (certifications);
- to officially notify the controller or processor of an alleged breach of the General Regulation;
- to obtain access from the controller or processor to all personal data and information necessary for the performance of its tasks;

- to gain access to all premises of the controller or processor, including all equipment and means for data processing, in accordance with EU law or the procedural law of the Member State.

2. Corrective powers:

- to issue a warning to the controller or processor that the intended processing actions are likely to violate the provisions of the General Regulation;
- to reprimand the controller or processor when the processing actions have violated the provisions of the General Regulation;
- to instruct the controller or processor to comply with the requests of the individual to whom the personal data relates regarding the exercise of his or her rights under the General Regulation;
- to order the controller or processor to bring processing actions, where appropriate, into compliance with the provisions of the General Regulation in a specified manner and within a specified period;
- to instruct the controller to notify the individual to whom the personal data relates about a personal data breach;
- to impose a temporary or definitive restriction on processing, including a prohibition on processing;
- to order the correction or deletion of personal data or restriction of processing concerning the rights of the individual and to officially notify the users whose personal data have been disclosed about such measures;
- to revoke a certificate or instruct the certifying body to revoke a certificate issued in accordance with Article 42 and...

PROTECTION OF PERSONAL DATA

PAGE 46

Article 43, or to order the certifying authority not to issue the certificate when the requirements related to the certificate are not or are no longer met;

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to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures from this paragraph, depending on the circumstances of the individual case;

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to order the suspension of data transfers to a user in a third country or an international organization.

In 2023, the Information Commissioner conducted 702 inspection cases due to suspected violations of the provisions of the General Regulation and/or ZVOP-2, of which 198 in the public sector and 504 in the private sector. In the public sector, 187 inspection procedures were initiated based on received reports, and 11 on the Commissioner's own initiative, while in the private sector, 499 procedures were conducted based on received reports, and five were initiated on the Commissioner's own initiative.

The inspection reports received by the Information Commissioner related to the following suspected violations of the provisions of the General Regulation and ZVOP-2:

3.2.2 INSPECTION SUPERVISION IN THE PUBLIC SECTOR

Due to suspected violations of the provisions of the General Regulation and/or ZVOP-2, the Information Commissioner conducted 198 cases against public sector entities in 2023, 187 of which were initiated based on received reports, and 11 on the Commissioner's own initiative.

The Information Commissioner provided written explanations to 37 reporters as to why the behavior described in the report did not constitute a violation of data protection legislation. In 36 cases, after reviewing the reports, the Commissioner concluded that initiating an inspection procedure would not be meaningful, as these were one-time actions or past violations of personal data protection that could no longer be prevented or remedied by inspection measures retroactively. In these cases, procedures for misdemeanors were initiated against 31 violators, or measures were imposed on the violators in accordance with the Misdemeanor Act (ZP-1). In four cases, it was assessed that initiating a misdemeanor procedure would not be appropriate, as the behavior described in the report constituted a minor violation, and in one case, the procedure was not initiated due to the expiration of the statute of limitations.

In 35 cases, the Information Commissioner did not initiate a procedure, as the alleged irregularities had already been remedied. The Information Commissioner referred 16 reporters to the rights of individuals under the General Regulation (primarily to the right to access their own personal data). In 27 cases, reporters did not provide appropriate evidence in support of the alleged violation, and in 28

cases, the Information Commissioner...

Suspected Violation

Number of Reports

Illegal disclosure, transmission of personal data to unauthorized users and...

Illegal processing of personal data in the implementation of direct marketing

Violation of the right to information under Article 13

Cookies

Miscellaneous – processing of personal data after the expiration of the retention period, use of inaccurate data, violation of the right to access personal data and the right to object, suspected violations that do not fall under the jurisdiction of the Information Commissioner.

PROTECTION OF PERSONAL DATA

PAGE 47

found that it was not competent for the alleged violations. In four cases, the Information Commissioner referred the matter to the competent authority.

In 2023, the Information Commissioner issued 10 so-called preliminary decisions to public sector entities and two regulatory decisions; all other violations were voluntarily rectified by the entities immediately after the call from the state supervisor for the protection of personal data.

In 2023, there were 74 inspection procedures in the public sector concluded with a decision to terminate the procedure. The Information Commissioner terminated 38 procedures because the entities rectified the identified irregularities, in 15 procedures no violations of the provisions of the General Regulation or ZVOP-2 were detected, in seven cases there was insufficient evidence submitted for the continuation of the procedure, and 14 procedures were terminated because they involved violations that constituted one-time acts in the past, which could no longer be rectified with retroactive inspection measures.

The Information Commissioner received two judgments from the Administrative Court of the Republic of Slovenia, whereby the court granted the lawsuit filed in 2020 and returned the matter concerning the processing of personal data of applicants for international protection to the Information Commissioner for re-decision. The court also granted the lawsuit filed in 2020 against the decision regarding the transmission of reports from the Operational-Communication Center of the Police Specialties Administration of the General Police Administration and annulled the contested decision of the Information Commissioner.

3.2.3 INSPECTION SUPERVISION IN THE PRIVATE SECTOR

The Information Commissioner conducted 504 cases against entities in the private sector, of which 499 were based on received reports, and five procedures were initiated on its own initiative. 270 procedures were initiated at the initiative of other supervisory authorities in the EU within the framework of cross-border cooperation – in these, the Information Commissioner participated as the concerned authority (more in Chapter 3.2.8).

After reviewing the reports, the Information Commissioner informed 70 reporters that it would not initiate an inspection supervision procedure because there was no suspicion of violations of the provisions of the General Regulation and ZVOP-2 arising from the report, and 60 reporters were referred to the rights they must assert themselves with data controllers, most often the right to access their own personal data and the right to object. In 25 cases, the Information Commissioner did not initiate an inspection procedure because they involved one-time acts or violations of personal data protection in the past, and these violations could no longer be prevented or rectified with retroactive inspection measures. The identified violations were addressed within the scope of the powers it has as a misdemeanor authority, whereby it imposed measures under ZP-1 on 13 violators, and in 12 cases, it assessed that it would not impose measures under ZP-1 because it was a minor offense. In 122 cases, the Information Commissioner did not initiate a procedure because appropriate evidence was not submitted to substantiate the alleged violation, and in 59 cases, it was not competent to act. In 45 cases, the inspection procedure was not initiated because the violator had already rectified the irregularities. In 15 cases, the Information Commissioner referred the matter to the competent authority.

In 2023, the Information Commissioner issued 39 so-called preliminary decisions to entities in the

private sector and 11 regulatory decisions; the remaining violations were voluntarily rectified by the entities immediately after the call from the state supervisor for the protection of personal data.

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The Information Commissioner must, in cases where it finds unlawful processing of personal data, prior to issuing a decision ordering the cessation of such processing, inform the entity in accordance with the principle of hearing the party (Article 9 of the Administrative Procedure Act) about why, in its opinion, there is no legal basis for the processing of personal data in question, and inform it of the arguments that support its opinion. According to case law, the entity must be given the opportunity to respond to the position of the Information Commissioner before the issuance of a regulatory decision (principle of adversarial proceedings). This means in practice that, after being informed of the arguments of the Information Commissioner, entities in most cases cease to unlawfully process personal data themselves, thus making the issuance of a regulatory decision no longer necessary.

PROTECTION OF PERSONAL DATA

PAGE 48

In 2023, the Information Commissioner terminated 156 procedures against entities in the private sector by decision: 35 procedures were terminated because no violations of the provisions of ZVOP-2 were detected, 81 procedures were terminated after the entities rectified the identified irregularities, 28 procedures were concluded because it was not possible to impose inspection measures regarding the identified violations, as they were one-time acts in the past, and in 12 cases, there was insufficient evidence submitted for the continuation of the procedure.

The Information Commissioner received one judgment from the Administrative Court of the Republic of Slovenia regarding a lawsuit filed in 2020 against the decision concerning the implementation of video surveillance; the court dismissed the lawsuit.

Overview of inspection cases in the public and private sectors in 2023.

972 CASES

198 PUBLIC

SECTOR

774 PRIVATE

SECTOR

BASED ON REPORT

187 INITIATED

PROCEDURES

11 EX OFFICIO

5 EX OFFICIO

BASED ON REPORT

499 INITIATED

PROCEDURES

TOTAL 198 PROCEDURES

TOTAL 774 PROCEDURES

240 at the request

of foreign supervisory
authorities

- 37 NO VIOLATION

- 31 MEASURES UNDER ZP-1

- 16 REFERRALS

- 4 REFERRALS

- 70 NO VIOLATION

- 13 MEASURES UNDER ZP-1

- 60 REFERRALS

- 15 REFERRALS

PROTECTION OF PERSONAL DATA

PAGE 49

3.2.4 REPORTING PERSONAL DATA SECURITY BREACHES

In accordance with Article 33 of the General Regulation, data controllers are obliged to notify the supervisory authority (Information Commissioner) of detected personal data security breaches if it is likely that the rights and freedoms of individuals could be at risk due to the breach. The notification must be made immediately after the breach is detected, and no later than 72 hours. When it is likely that the personal data security breach will result in a high risk to the rights and freedoms of individuals, the controller must also inform the individual to whom the personal data relates. In the case of severe breaches, the Information Commissioner may require the controller to notify the affected individuals as well.

In 2023, the Information Commissioner received 183 official notifications of personal data security breaches, known as self-reports, submitted by data controllers. 87 notifications were submitted by controllers from the private sector (e.g., banks, retail companies, insurance companies), while 96 were submitted by controllers from the public sector (primarily healthcare and educational institutions).

The personal data security breaches (183) related to:

- the transmission of documents containing personal data (e.g., medical reports, invoices, documents in administrative procedures, debit cards) to incorrect persons as a result of unintentional human error or inaccurate data in personal data collections (e.g., clients' email addresses) – 50,
- hacking or cyber attacks – 38,
- unlawful disclosure of personal data to unauthorized persons – 37,
- unauthorized access to personal data or their processing by employees – 23,
- loss of access to personal data (inaccessibility of data due to encryption by malicious software, known as ransomware, loss or theft of username and password) – 10,
- unlawful publication of personal data – 10,
- loss or theft of a laptop or other carriers of personal data (USB flash drive, health records, notebook with clients' personal data) – 7,
- disclosure of personal data due to an application error or technical malfunction – 4,
- inadequate provision of personal data security – 3,
- unlawful use of email addresses for other purposes – 1.

The Information Commissioner has clarified on its website which breaches constitute security breaches in the sense of the General Regulation and about which breaches and within what timeframe they are obliged to notify him. For notifications, a dedicated email address has been opened (report-breach@ip-rs.si), and a form titled "Official Notification of Personal Data Security Breach" is available on the website, which controllers can use for notifications. Guidelines from the European Data Protection Board regarding the official notification of personal data breaches and an infographic on Reporting Security Breaches (Data Breach Notification) have also been published.

3.2.5 COMPLAINT PROCEDURES UNDER ARTICLE 77 OF THE GENERAL REGULATION

In addition to inspection procedures, the Information Commissioner also conducts complaint procedures under Article 30 of the ZVOP-2, which are initiated at the request of the complainant with a special status, thereby ensuring the right to appeal under Article 77 of the General Regulation (appeal due to violation of personal data protection).

The procedure for a complaint regarding a violation of personal data protection is conducted at the request of the individual to whom the personal data relates. In this case, it is a supervisory procedure of a special kind, in which the complainant also has the status of a party in the supervisory procedure, which is why such an application or complaint must contain all the elements required for an application by the General Administrative Procedure Act (ZUP). In this procedure, the Information Commissioner may also exercise all supervisory powers (e.g., all previously listed investigative and corrective powers from Article 58 of the General Regulation) and issues all

PROTECTION OF PERSONAL DATA

PAGE 50

supervisory measures provided by regulations (ZVOP-2, General Regulation, ZUP, and sectoral laws). In this procedure, each party bears its own costs. In the case of identified violations, the Information

Commissioner may also initiate a sanction procedure under the General Regulation, ZVOP-2, and ZP-1.

An individual to whom the personal data relates may request in the application process:

1. determination of whether their personal data is being processed unlawfully or in violation of the General Regulation and ZVOP-2 at the time of submitting the application (and propose a measure to rectify the irregularity) or
2. information, access, deletion, correction, etc., within the framework of the rights they have under the General Regulation (Articles 15–22) – the right to be informed about their own personal data, the right to deletion or to be forgotten, the right to restrict processing, the right to correction, the right to object, etc.; in this case, the individual must assert their rights with the controller of their personal data before filing a complaint with the Information Commissioner. The controller is obliged to respond within one month of receiving the request. If the controller does not respond within the prescribed period or if the individual's request is denied, the individual may file a complaint with the Information Commissioner. The deadline for filing a complaint is 15 days from receiving the denial response. Procedures related to the assertion of rights are described in the following chapter.

If the state supervisor for the protection of personal data detects a suspicion of such a violation of personal data protection in such a supervisory procedure that could also affect the rights of other individuals, they must, ex officio, initiate an inspection procedure.

In handling applications from applicants in a special position, it often happens that the applications or requests are incomplete, with the biggest problem being that applicants most frequently assert a one-time past violation (e.g., unlawful access to their personal data or the transfer of personal data to an unauthorized user), which no longer exists at the time of submitting the application. Such an application generally cannot be the subject of a supervisory procedure, within which the Information Commissioner addresses the application of the applicant in a special position, as only those alleged violations of the processing of personal data of the applicant in a special position that still exist at the time of submitting the application are addressed in this procedure, in accordance with Articles 30 and 34 of ZVOP-2. An individual may request the determination of past violations of personal data protection from the court in accordance with the provisions of Article 11 of ZVOP-2, and the Information Commissioner may address violations in such cases within the framework of misdemeanor proceedings, while the supervisory procedure can generally only be initiated if it is evident from the application that measures need to be imposed on the controller (e.g., organizational and technical measures to ensure the security of personal data) to prevent similar possible violations in the future. The Information Commissioner also frequently receives complete applications from applicants in a special position, indicating that the described violation of personal data protection does not pertain solely to the applicant but to several individuals. Based on such an application from an applicant in a special position due to identical violations (e.g., unlawful processing of personal data) against the same controller, the Information Commissioner must conduct two supervisory procedures: a supervisory procedure in which it verifies and decides solely on the legality of the processing of personal data of the applicant in a special position, and an inspection procedure in which it verifies and decides on the legality of the processing of personal data of all other individuals.

In 2023, individuals submitted a total of 130 applications (in 51 cases against public sector controllers and in 79 cases against private sector controllers), requesting the determination that their personal data is being processed unlawfully or in violation of the General Regulation or ZVOP-2.

In the procedures conducted against public sector controllers, the Information Commissioner issued a total of eight decisions, in which it found violations of the General Regulation or ZVOP-2 in two cases, while in six cases it found that there was no violation. In 22 cases, the application was rejected on procedural grounds.

PROTECTION OF PERSONAL DATA

PAGE 51

for formal reasons, dismissed the case by decision or did not initiate proceedings, after providing clarification in one case that no violation exists, and after three notifications that the evidence provided for substantiating the violation is insufficient, as the applicants did not adequately supplement their submissions.

In 2023, the Information Commissioner issued five decisions to private sector controllers, in which he found a violation of the General Regulation or ZVOP-2 in one case, while in four cases he determined that no violation occurred. In 28 cases, he dismissed the applicant's submission, and in six cases, he terminated the proceedings by decision. In ten cases, the Information Commissioner did not initiate proceedings after receiving an incomplete submission.

3.2.6 RIGHTS OF INDIVIDUALS

The right to access one's own personal data is guaranteed to every individual in the third paragraph of Article 38 of the Constitution of the Republic of Slovenia and in Article 15 of the General Regulation. Procedural rules are regulated in Articles 11 and 12 of the General Regulation and in Articles 12 to 21 of ZVOP-2.

According to Article 15 of the General Regulation, an individual is entitled to request that the controller: (1) confirm whether personal data concerning him or her are being processed; (2) provide access to or transmit a copy of such personal data, thus ensuring access to their content; (3) if personal data concerning the individual are indeed being processed by the controller, the individual is entitled to the following additional information:

- the purpose of data processing,
- the types of data,
- the recipients of the data,
- the retention period of the data,
- the existence of rights of the individual regarding his or her data,
- the source of the data, and
- the existence of automated decision-making, including profiling, as well as information about the reasons for it, as well as the significance and anticipated consequences of such processing for the individual to whom the personal data relate.

The General Regulation also defines several other rights of individuals that can be exercised upon request:

1. The right to data portability, which means the ability for an individual to obtain the transfer of personal data processed in an automated format to another controller in such a way that these data can be incorporated or used in the same format by another controller. The individual may also obtain this data in the same manner for himself or herself.
2. The right to object, which means that an individual can, under certain conditions (e.g., if the data are processed for direct marketing), require that the controller no longer carry out certain processing.
3. The right to object to the controller's decision regarding the individual (e.g., regarding his or her rights and obligations), if the decision was made solely based on automated processing of personal data.
4. The right to rectification, which means the ability for an individual to require that the controller rectify or complete inaccurate or incomplete data held by him or her.
5. The right to erasure, which means that the controller must erase personal data under certain conditions – typical are the absence of a legal basis for processing the data, the absence of a legitimate purpose for processing the data, and a requirement of a specific regulation to erase the data.
6. The right to restrict processing, which allows for the complete or partial and long-term or temporary blocking of certain processing of personal data under certain conditions.

According to the provisions of Article 12 of the General Regulation, the controller must decide on the individual's request within one month. The provision of personal data and additional information to the individual is generally free of charge. If the controller does not respond to the individual within the prescribed period or if he or she rejects the request, the individual may file a complaint with the Information Commissioner.

PROTECTION OF PERSONAL DATA

PAGE 52

In 2023, the Information Commissioner received 75 complaints from individuals regarding violations of the right to access their personal data under the General Regulation. Individuals are increasingly aware of their constitutional right to access their personal data, yet many data controllers still fail to

fulfill their obligations and do not allow individuals to exercise the rights granted to them by various regulations.

The complaints filed involved data controllers from the public sector in 44 cases (particularly ministries and their subordinate bodies, schools, and public health institutions), while 31 complaints pertained to data controllers from the private sector (e.g., banks, insurance companies, electronic communications operators, retail companies, and other business entities).

In 37 cases (i.e., 49.33%), individuals complained because the data controllers did not respond to their requests or were silent; in another 38 cases, individuals complained because the data controllers rejected their requests or did not provide all the requested data. The reason for the silence (based on the response after receiving a call from the Information Commissioner) among most data controllers was a lack of knowledge regarding individuals' rights to access their personal data and the obligations of data controllers related to its enforcement.

In 39 cases, which were conducted due to the silence of the data controller (including procedures that began before 2023), data controllers, after receiving a call from the Information Commissioner regarding individuals' requests, decided to provide the requested data and documents or rejected the requests with a formal notification containing an explanation (against which a substantive appeal is possible), leading the Information Commissioner to terminate the procedures. Five individuals informed the Information Commissioner after filing their complaints that they were withdrawing their complaints because they received appropriate explanations and data from the data controller, and the Information Commissioner subsequently terminated the procedures with a decision.

In 2023, the Information Commissioner, including procedures initiated in 2021 and 2022, issued 22 administrative decisions regarding access to personal data and 12 preliminary decisions. In 17 decisions, it was determined that a violation of the General Regulation or the ZVOP-2 existed at the time of the complaint, and data controllers were ordered to provide certain personal data, while in five decisions, it was determined that no violation occurred. A data controller initiated an administrative dispute before the Administrative Court of the Republic of Slovenia against two decisions of the Information Commissioner, specifically against partial decisions issued in 2022 concerning the same data controller. The Information Commissioner dismissed six complaints with a decision due to procedural deficiencies (incomplete, late, or premature application, the application did not pertain to the right to access personal data, or the Information Commissioner was not competent to handle the matter), and with a decision, 19 procedures were terminated. The Information Commissioner provided four individuals with a proposal for action, while six complaints were referred to the competent authorities for resolution.

In 2023, the Information Commissioner also addressed four complaints regarding violations of the right to rectification under Article 16 of the General Regulation, one complaint regarding violations of the right to object under Article 21 of the General Regulation, and 41 complaints regarding violations of the right to erasure under Article 17 of the General Regulation. Including procedures initiated in previous years, the Information Commissioner issued six decisions due to violations of the right to erasure, determining in three cases that a violation existed, in two cases that no violation occurred, and in one case, which was conducted in accordance with Article 32 of the ZVOP-1, the individual's request was denied.

Against two decisions on dismissal and one decision of denial, data controllers or individuals filed lawsuits before the Administrative Court of the Republic of Slovenia. In 15 cases, the complaint was further dismissed (because it was inadmissible, late, not supplemented, or the individual did not assert any of their rights or legal interests), while in nine cases, the procedure was terminated (due to the withdrawal of the complaint).

For requests from individuals related to the prevention, detection, investigation, and prosecution of criminal offenses and the enforcement of criminal sanctions, the ZVOPOKD applies. This applies to the processing of personal data by the police, state prosecutors, the Administration of the Republic of Slovenia for Probation, the Administration of the Republic of Slovenia for the Enforcement of Criminal Sanctions, and other state authorities of the Republic.

PROTECTION OF PERSONAL DATA

Slovenia, which are legally designated as competent in the areas of prevention, investigation, detection, or prosecution of criminal offenses or enforcement of criminal sanctions, process for the purposes of exercising the aforementioned competencies. In accordance with the General Regulation and ZVOPOKD, the Information Commissioner is the appeal body for the enforcement of all rights, not just the right to access, as was previously the case under ZVOP-1. The rights of individuals in the case of asserting rights before the competent authorities under ZVOPOKD are governed by Articles 23 to 27 of ZVOPOKD, while procedural rules are governed by Articles 18 to 22 of ZVOPOKD.

In 2023, the Information Commissioner received seven complaints from individuals regarding violations of the right to access their own personal data under ZVOPOKD and two complaints regarding violations of other rights. In relation to the complaints under ZVOPOKD, the Information Commissioner issued six decisions. Regarding the individual's right of access, the Information Commissioner issued four decisions, three of which were favorable and one was unfavorable. In the case of complaints regarding correction and deletion under ZVOPOKD, the Information Commissioner granted one decision and rejected one decision.

3.2.7 OTHER APPEAL PROCEDURES

The Information Commissioner also decides at the appeal level on special rights regarding access to health documentation under ZPacP, specifically regarding:

1. the right of the patient to access their own health documentation, which also includes the right to obtain explanations about the content of the documentation and the right to make comments on the content of the health documentation;
2. the right of relatives and other entitled persons to access the health documentation of the deceased patient;
3. the right of certain other persons to access the health documentation of the patient.

There were 26 complaints related to the right to access health documentation under ZPacP (of which 14 were regarding the right to access one's own health documentation and 12 regarding the right to access health documentation after the patient's death).

Regarding the complaints that the Information Commissioner handled under ZPacP, eight decisions were issued, of which three were unfavorable decisions regarding the right to access health documentation under Article 41 of ZPacP, and five decisions regarding access to health documentation after the patient's death (the Information Commissioner rejected two decisions as unfounded and granted three). The Information Commissioner suspended three procedures by decision due to withdrawal. Three applications were dismissed by decision, and in six cases, the controllers provided the requested data or rejected the individuals' complaints, which led the Information Commissioner to suspend the procedures.

The Information Commissioner now also decides on appeals against the decisions of controllers regarding requests for the provision of personal data from official records or public registers based on the fourth paragraph of Article 41 of ZVOP-2. In 2023, the Information Commissioner received four such appeals, and in all four cases, the appeals were dismissed. In three cases, the requests were not for the provision of personal data from official records or public registers, and in one case, the Information Commissioner was not competent to decide on the appeal based on the third paragraph of Article 55 of the General Regulation, according to which supervisory authorities under the General Regulation are not competent to supervise processing actions of courts when they act as judicial authorities. Regarding all requests for the provision of personal data from both official records or public registers and from other collections, individuals have judicial protection available.

PROTECTION OF PERSONAL DATA

PAGE 54

3.2.8 COOPERATION IN CROSS-BORDER INSPECTION OVERSIGHT

The General Regulation mandates close cooperation among supervisory authorities for the protection of personal data in EU and EEA member states (Iceland, Norway, and Liechtenstein) in cross-border cases, specifically through the following mechanisms:

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under the principle of "one stop shop," which stipulates that the oversight procedure in a cross-border case of personal data processing is led by the so-called lead authority, which collaborates with other

data protection authorities (Article 60 of the General Regulation);

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mutual assistance among data protection authorities in EU and EEA member states (Article 61 of the General Regulation);

-

joint actions by data protection authorities in EU and EEA member states (Article 62 of the General Regulation).

Cooperation under the "one stop shop" principle can begin once it is determined which supervisory authority will take on the role of lead authority in the procedure and which authority(-ies) will participate as concerned authority(-ies). The lead authority comes from the EEA member state where the data controller, who operates cross-border, has its main establishment – the headquarters that assumes responsibility for the processing of personal data. Supervisory authorities from other EEA member states join the oversight procedure as concerned authorities when the controller has, for example, branches or business units in their territory or when the processing of personal data significantly affects individuals in those member states. The main authority in the inspection oversight procedure leads the cooperation with other authorities and prepares a draft decision, while the concerned authorities can express their reservations. In the event of disagreement between the lead and concerned authorities regarding a dispute, the European Data Protection Board (EDPB) makes the decision.

Cooperation within all three mechanisms takes place through the Internal Market Information System (IMI) of the European Commission; this ensures secure and confidential communication among supervisory authorities and enables the execution of individual phases and procedures of cross-border cooperation within specified deadlines.

In 2023, the Information Commissioner was involved in a total of 524 cooperation procedures under Articles 60 and 61 of the General Regulation concerning controllers engaged in cross-border processing of personal data. In 274 newly initiated cooperation procedures for cross-border oversight under Article 60 of the General Regulation, the Information Commissioner acted as a concerned authority (under Article 56 of the General Regulation), while in three cases, it served as the lead authority. The Information Commissioner also participated in 247 mutual assistance procedures among supervisory authorities under Article 61 of the General Regulation in 2023.

Cooperation of the Information Commissioner in cross-border oversight procedures in 2023.

368 PROCEDURES

200 PROCEDURES

216 PROCEDURES

2022

2020

2021

524 PROCEDURES

2023

PROTECTION OF PERSONAL DATA

PAGE 55

The basis for the implementation of cross-border cooperation under Article 60 of the General Regulation is the definition of the lead and concerned supervisory authorities under Article 56 of the General Regulation. The Information Commissioner identifies the concerned supervisory authority primarily:

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because the data controller against whom proceedings are ongoing in another Member State has a business unit in Slovenia or has been established here,

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because the services of the data controller against whom proceedings are ongoing in another Member State are used by individuals in Slovenia and the issue of the alleged violation of personal data protection significantly affects them. This also applies in cases involving popular providers of communication online services, such as Meta, Google, Amazon, Apple, Twitter, Microsoft, TikTok, etc.

Procedures for cooperation under Article 60 of the General Regulation ("one-stop shop")

Based on the procedures for determining the lead and concerned supervisory authorities, in 2023, the Information Commissioner addressed 277 new cases of cross-border cooperation in the supervision of companies operating cross-border, in addition to procedures initiated before 2023 that are still ongoing. In these procedures, a decision by the supervisory authorities under Article 60 of the General Regulation is expected, based on the principle of "one-stop shop." The lead supervisory authority is very often the Irish supervisory authority, as well as the supervisory authorities of Luxembourg, France, the Netherlands, Germany, France, and Austria.

In 274 cross-border procedures, the Information Commissioner acted as the concerned authority. The cases did not only involve services from popular online giants (Facebook, Google, Amazon, etc.), but also inappropriate handling of personal data by various actors, providers of banking services, online providers of various services, streaming service providers, connected vehicles, etc., from numerous EU Member States. The cases of disputed practices included violations regarding the appropriate protection of data, with affected users from Slovenia, violations regarding the exercise of individuals' rights to access data and deletion of data, excessive requests for data for customer identification, transmission of data to third parties, processing of personal data without an appropriate legal basis, inadequate information about the processing of personal data, etc. The Information Commissioner received 18 reports or complaints against entities outside Slovenia (EU and third countries). When it concerns an entity based in an EU Member State, the Information Commissioner collaborates with the lead authority in supervision.

In three new cross-border cases under Article 60 of the General Regulation, the data controller was based in Slovenia, therefore the Information Commissioner took on the role of the lead authority. The cases in which the Information Commissioner was the lead supervisory authority in 2023 primarily involved cases concerning the exercise of individuals' rights by website operators, as well as the processing of personal data for the purpose of genetic testing.

In 2023, in cross-border procedures in which the Information Commissioner participated, 221 draft decisions were issued under Article 60 of the General Regulation, with two draft decisions issued by the Information Commissioner as the lead supervisory authority. 291 procedures were concluded with a final decision under Article 60 of the General Regulation. A public register of final decisions in cross-border cooperation procedures under Article 60 is available on the website of the European Data Protection Board:

https://edpb.europa.eu/our-work-tools/consistency-findings/register-for-article-60-final-decisions_en.

PROTECTION OF PERSONAL DATA

PAGE 56

"One-stop shop" procedures in 2023.

Procedures for mutual assistance between supervisory authorities under Article 61 of the General Regulation

In 2023, the Information Commissioner also participated in 247 procedures for mutual assistance between supervisory authorities under Article 61 of the General Regulation. He received 219 requests from other authorities, and in 44 cases provided opinions regarding the implementation of the provisions of the General Regulation. The Information Commissioner sent 28 requests for cooperation to other authorities in the EU. Procedures under Article 61 differ regarding their voluntary nature in terms of formally defined deadlines. A more detailed overview of the procedures follows in the table below.

Voluntary assistance procedures usually concern requests from supervisory authorities in the EU for clarifications regarding specific cross-border cases they are dealing with, or for guidance on addressing a specific topic, and the forwarding of reports when the local competent supervisory authority for the supervision of the processing of data of a specific controller is in another Member State. Mutual assistance procedures, on the other hand, usually involve a request for the implementation of measures against controllers who carry out cross-border processing of personal data.

Dispute procedures under Article 65

In 2023, two final decisions were adopted following a dispute procedure under Article 65 before the EDPB:

- The dispute procedure in the case of TikTok Technology Limited, headquartered in Ireland, concerned issues related to the processing of personal data of registered minor users of TikTok (aged 13–17 years), specifically violations of the principle of fairness due to misleading patterns used by the network in the user registration process and violations of the principle of default data protection due to inadequate age verification of users. The EDPB analyzed TikTok's practices in two cross-border cooperation procedures in the inspection supervision of companies operating cross-border (based on the principle of "one-stop shop"):

277 procedures for voluntary mutual assistance between supervisory authorities under Article 61:
240

- 22 requests from the Information Commissioner,
- 218 requests from other authorities,
- 44 opinions provided by the Information Commissioner.

Procedures for mutual assistance between supervisory authorities under Article 61:

7

- 6 requests from the Information Commissioner to other authorities,
- 1 request from other authorities.

PROTECTION OF PERSONAL DATA

PAGE 57

pop-up windows that the network used during user registration and video sharing. In both cases, the design of the pop-up window encouraged minor users to select privacy-unfriendly settings. Furthermore, the consequences of different choices in the pop-up windows should have been presented more clearly to individuals, especially since they pertain to minor users. The Irish supervisory authority also examined the compliance of age verification measures with the principle of data protection by design as stated in the first paragraph of Article 25 of the General Regulation (privacy by design). The age verification mechanism involving the entry of a date of birth (the so-called age gate) was also easily circumvented by users under the age of 13, and measures to remove users below the permissible age limit were not applied systematically enough. However, the EDPB in its decision found that due to a lack of information, particularly regarding the level of technological development during the period to which the final decision pertains, it could not definitively determine whether TikTok processed personal data in accordance with the first paragraph of Article 25 of the General Regulation. In the final decision, the Irish supervisory authority imposed a fine of 345 million euros on the TikTok network for violations.

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The dispute procedure in the case of Meta Platforms Ireland Limited, with its main establishment in Ireland, concerned the legality of the transfer of personal data of Facebook users to the United States, at a time when the so-called Privacy Shield, an agreement that provided the basis for the transfer of personal data to the U.S., was annulled by the EU Court. The procedure before the EDPB concerned whether a fine and a measure to restore legality should be imposed on Meta due to identified violations. In the final decision, the Irish supervisory authority imposed a fine of 1.2 billion euros on the entity for identified violations, namely for transferring user data to the U.S. without a legal basis, the highest fine imposed under the General Regulation.

Urgent Binding Decision under Article 66

In 2023, the EDPB adopted an urgent binding decision, instructing the Irish data protection authority as the lead supervisory authority to take final measures regarding Meta Ireland Limited (Meta IE) within two weeks and to prohibit the processing of personal data for behavioral advertising based on contract and legitimate interest. The urgent binding decision was made based on a request from the Norwegian data protection authority for final measures to be taken in this matter, which would apply throughout the European Economic Area (EEA).

Key Judgments of the EU Court

In 2023, the EU Court also issued an important judgment regarding the cooperation of competent

authorities (in this case, the competition authority and the data protection authority). In judgment No. C-252/21, it clarified that a national competition authority, in the context of examining the abuse of a dominant position by a company under Article 102 of the Treaty on the Functioning of the European Union (TFEU), can determine that the general terms of use of that company regarding the processing of personal data and their implementation are not in compliance with the General Regulation if such a finding is necessary to establish the existence of such abuse. However, the national competition authority must not deviate from the decision of the competent national supervisory authority or the competent lead supervisory authority, or in case of doubt, must consult with data protection authorities and request their cooperation.

3.2.9 OFFENSE PROCEDURES

In 2023, the Information Commissioner initiated 111 offense procedures due to suspected violations of the provisions of the ZVOP-1 or ZVOP-2, of which 55 were against legal entities in the public sector and their responsible persons, 29 against legal entities in the private sector and their responsible persons, and 27 against individuals. Among the latter are also procedures against responsible persons of state authorities and self-governing local communities, as under the ZP-1, the Republic of Slovenia and self-governing local communities are not liable for offenses; only their responsible persons are liable.

PROTECTION OF PERSONAL DATA

PAGE 58

For the established offense, the misdemeanor authority may issue a warning in accordance with Article 53 if the committed offense is minor and if the authorized official assesses that, considering the significance of the act, a warning is a sufficient measure. In the case of a more serious offense, the misdemeanor authority issues a decision on the offense, imposing a sanction on the offender.

According to Article 4 of the Misdemeanor Act (ZP-1), the sanctions for an offense are a fine and a reprimand, and according to Article 57 of ZP-1, the fine may also be imposed in the form of a payment order.

In 2023, the Information Commissioner issued:

- 77 decisions on offenses (38 fines and 39 reprimands),
- 60 warnings.

In addition to the warnings issued in misdemeanor proceedings, the Information Commissioner, in accordance with the principle of economy, also issued 30 warnings under Article 53 of ZP-1 within the framework of inspection oversight procedures. Six misdemeanor proceedings were terminated by the Information Commissioner.

Regarding the 77 decisions, which are initially issued without justification according to ZP-1, 10 decisions with justification were issued based on anticipated requests for judicial protection, with all offenders filing a request for judicial protection upon receiving the justified decision. Thus, offenders filed ten requests for judicial protection against the issued decisions on offenses (against 12.98% of the decisions). Seven requests for judicial protection were filed against decisions in which the Information Commissioner imposed fines on offenders, while three requests were for judicial protection against the decision that issued a reprimand. The relatively small percentage of requests for judicial protection indicates that the offenders acknowledge the committed offenses and are aware of their responsibility.

The table below shows the violations that the initiated misdemeanor proceedings related to in 2023. Violations of personal data protection in 2023.

Type of violation

Number of violations (within one proceeding, there may be multiple violations)

Illegal processing of personal data and violation of fundamental principles for processing (Article 8 of the Personal Data Protection Act - ZVOP-1 and Articles 5, 6, 7, and 9 of the General Regulation)

Inadequate protection of personal data (Articles 24 and 25 of ZVOP-1)

Violations of provisions regarding the implementation of video surveillance (Articles 74, 75, 76, and 77 of ZVOP-1 and Articles 76, 78, and 80 of ZVOP-2)

Failure to comply with measures imposed in inspection oversight procedures, violation of the second paragraph of Article 29 of the Act on the Implementation of the General Data Protection Regulation (Article 4 of ZOIZK-1)

PROTECTION OF PERSONAL DATA

PAGE 59

With the adoption of the new ZVOP-2, the Information Commissioner has also become competent to impose sanctions for violations prescribed by the General Data Protection Regulation. These violations, in accordance with the provisions of ZVOP-2, are imposed on legal entities, sole proprietors, and individuals who independently carry out activities as fines for misdemeanors.

The General Data Protection Regulation does not prescribe sanctions for violations of this regulation committed by responsible persons, while ZVOP-2 has also prescribed sanctions for violations of the General Data Protection Regulation imposed on responsible persons of legal entities, sole proprietors, or individuals who independently carry out activities, as well as responsible persons in state authorities or local self-government bodies. In addition, ZVOP-2 has prescribed sanctions for individuals for certain violations of the General Data Protection Regulation.

The Information Commissioner emphasizes that the delay in the adoption of ZVOP-2 has affected the conduct of misdemeanor proceedings and the imposition of sanctions for established violations. In 2023, the Information Commissioner could only conduct misdemeanor proceedings for violations of the provisions of the General Data Protection Regulation that occurred after January 26, 2023, when ZVOP-2 came into effect. In the case of violations that occurred before this date, the misdemeanor proceedings could only be initiated if they involved violations of those articles of ZVOP-1 that were still in effect after the implementation of the General Data Protection Regulation, making it difficult in some cases to determine which regulation was more lenient for the perpetrator. Therefore, there were fewer misdemeanor proceedings conducted by the Information Commissioner in 2023 than there would have been if ZVOP-2 had been in effect in 2022.

In 2023, the Information Commissioner received six judgments from district courts regarding requests for judicial protection filed by offenders against decisions on misdemeanors issued in 2019, 2020, and 2021:

- The request for judicial protection was fully granted, resulting in the decision being entirely changed to terminate the proceedings – 3,
- The request for judicial protection was partially granted, resulting in a lower fine being imposed on the offender or a unified sanction being imposed – 2,
- The request for judicial protection was rejected as unfounded – 1.

The Information Commissioner also received three judgments in which the higher court ruled on appeals against judgments rejecting requests for judicial protection, specifically:

- The judgment of the District Court was annulled ex officio regarding the sanction and was returned to the court for reconsideration in this respect – 2,
- The request for judicial protection was rejected as unfounded, and the judgment of the first-instance court was upheld – 1.

3.2.10 SELECTED CASES OF PERSONAL DATA PROCESSING

Below are presented some cases for which the Information Commissioner received a significant number of reports, complaints, official notifications, and questions.

The measure of labeling delivery bags is not necessarily required for monitoring delivery personnel in terms of compliance with traffic regulations.

The Information Commissioner addressed violations by two operators engaged in food delivery who implemented a measure of labeling delivery bags with visible identification numbers. The measure was intended to be preventive; its purpose was to ensure more consistent compliance with traffic regulations and to enable monitoring in the event of violations by individual delivery personnel by the police and municipal inspectors. As a legal basis, the operators invoked the execution of a contract for...

PROTECTION OF PERSONAL DATA

PAGE 60

in the execution of courier services (point (b) of the first paragraph of Article 6 of the General

Regulation) and legitimate interests (point (f) of the first paragraph of Article 6 of the General Regulation). The controllers asserted that their legitimate interest is the lawful, correct, and careful execution of deliveries. It should also be in the legitimate interest of the controllers to take care of their own assets (delivery bags) and to maintain a record of them.

The controllers claimed that there are no milder measures to achieve these goals or that measures such as, for example, city center closures, systematic monitoring using GPS, notifying couriers, and increased supervision by the police and municipal wardens are ineffective or inadequate.

The Information Commissioner emphasized that this involves two different processing activities carried out by the controllers concerning the identification numbers of couriers, namely recording the identification numbers of couriers in the controllers' databases and transmitting personal data to the police and municipal wardens. Thus, the controllers should have provided a legal basis for both processing activities.

The controllers did not prove that the processing was objectively necessary for the execution of the contract. It is undisputed that couriers are also responsible for complying with the Road Traffic Safety Act; however, the contract for the provision of courier services is concluded for the delivery of food and other products and not for the purpose of complying with traffic regulations—this obligation arises directly from legislation. The Information Commissioner decided that the controllers did not prove that the processing of personal data by marking the couriers' bags with identification numbers was necessary and indispensable for monitoring couriers in terms of compliance with traffic regulations. The controllers did not provide reasons for the inadequacy or ineffectiveness of police supervision, which has all the authority to stop a courier and identify potential violations, or for increasing the number of wardens in the city center.

Regarding the legitimate interest, the Information Commissioner emphasized that it does exist; however, the controllers did not demonstrate the necessity condition for the realization of the legitimate interest, which is assessed in connection with the intended purpose of processing, nor did they verify or utilize other measures (as explained above). The Information Commissioner thus concluded that the controllers do not provide a legal basis for processing identification numbers placed on the external, visible side of delivery bags for the purpose of identifying couriers, and ordered the cessation of processing the identification numbers of couriers placed on delivery bags, namely that the controllers remove the identification numbers from the external, visible sides of all couriers' bags.

Video surveillance is generally prohibited from recording workplaces where employees usually work.

The Information Commissioner assessed the legality of video surveillance over workspaces in the establishment. The controller conducted video surveillance with seven cameras. One camera recorded food preparation, and the footage was streamed live on the establishment's website. The live streaming and posting of it online was interrupted by the controller during the procedure. The other functioning cameras recorded the entrance area, cash register, and tables for guests.

The controller demonstrated a legal basis for the entrance area (based on Article 77 of the ZVOP-2, which regulates video surveillance of access to official or business premises) and the cash register. However, it did not demonstrate a legal basis for recording guests in the establishment based on legitimate interests and workspaces under Article 78 of the ZVOP-2, as recording is not necessarily required for the safety of people and property or for the protection of business secrets; the purpose of protection is already achieved by recording the entrance, alarm systems, and direct supervision by the controller. Article 78 of the ZVOP-2 states that it is prohibited to record workplaces where employees usually work using video surveillance, unless this is necessary in accordance with the first paragraph of Article 78 of the ZVOP-2. Direct monitoring of events in front of the cameras may only be permissible if conducted by expressly authorized personnel of the controller. The Information Commissioner found that direct monitoring of events in front of the cameras was not carried out.

PROTECTION OF PERSONAL DATA

PAGE 61

that access to recordings was granted to the authorized personnel of the controller, specifically the proxy and part of the management. The proxy was also unable to demonstrate the traceability of the accesses to the recordings and, as a superior, unlawfully monitored the work of employees through live image access. The controller claimed that this was part of its business model, which allows guests

to observe food preparation, and emphasized that employees were informed about this. The controller did not demonstrate a legal basis for such processing of employees' personal data in accordance with Article 6 of the General Regulation. A written statement or possible consent from employees, as the weaker party in the contractual relationship, cannot constitute a lawful legal basis for such processing of personal data. Furthermore, the controller did not demonstrate a legitimate interest, as the rights of employees prevail over the described market model of the controller, which is solely aimed at the economic interests of the data controller and does not pass the so-called proportionality test. The goal of safe and healthy food preparation could have been ensured by the controller through another, less invasive measure that respects the expected privacy of employees in the workplace. The Information Commissioner called on the controller, among other things, to cease the transmission of live images to the employee's phone, to stop recording the food preparation workspaces and guest tables, and to adequately secure access to the recorder. Since the controller complied with all inspection measures, the Information Commissioner terminated the inspection procedure, and the identified past violation was addressed in misdemeanor proceedings.

In the register of actual owners, only the country of permanent and temporary residence of individuals can be published, but not the address of permanent and temporary residence.

The Information Commissioner addressed a complaint regarding the public disclosure of the address of the permanent and temporary residence of the representative of the institute, which is recorded in the register of actual owners. He also decided on an individual's appeal regarding the deletion of his data.

The issue in the case was whether the controller has a legal basis for publishing the address of the permanent and temporary residence of the complainant and whether it was consequently justified in rejecting his request for deletion. The controller argued that it is obliged to publish the data based on the Money Laundering and Terrorist Financing Prevention Act (ZPPDFT-2), which is why it cannot delete them under the third paragraph of Article 17 of the General Regulation. The Information Commissioner found that the controller justifies the publication based on a provision of the Regulation on the establishment, maintenance, and management of the Register of Actual Owners, but the obligation to publish the permanent and temporary residence does not arise directly from the law, only the country of permanent and temporary residence. He also emphasized that ZPPDFT-2 meets the requirements set out in ZVOP-2 regarding the legality of processing personal data, meaning that the law specifies the processing of personal data, types of personal data, categories of individuals, the purpose of processing personal data, and the retention period. The use of the regulation cannot be considered in parts that explicitly contradict the statutory provisions. In the past, there was indeed a legal basis for publishing the address of temporary and permanent residence under ZPPDFT-1, which, however, ceased to exist on July 11, 2020, when the Act on Amendments and Supplements to the Money Laundering and Terrorist Financing Prevention Act (ZPPDFT-1B) came into force. The controller thus has a legal basis only for publishing the country of permanent and temporary residence. By doing so, the controller violated Article 6 of the General Regulation and consequently acted contrary to Article 17 of the General Regulation in deciding on the request for the deletion of the individual's personal data, as it should have removed the data from the website in the absence of a legal basis. The Information Commissioner ordered the controller to disable access to the data regarding the address of the permanent and temporary residence of the complainant on its website. The controller must notify other controllers upon an individual's request for the deletion of his personal data to delete links to his personal data or their copies.

The complainant requested the controller (the police) to delete her personal data regarding a missing person from online media. The controller did not comply with her request, justifying that it is not responsible for the content and deletion of content from online portals. The complainant appealed against the controller's response, asserting that...

PROTECTION OF PERSONAL DATA

PAGE 62

that the controller, who published her photograph with the permission of her husband, must also ensure its removal from websites.

The second paragraph of Article 17 of the General Regulation stipulates that when the controller

publishes personal data and is obliged to delete the personal data in accordance with the first paragraph of Article 17 of the General Regulation, they must take reasonable measures, taking into account the available technology and the costs of implementation, including technical measures, to inform controllers processing personal data that the individual to whom the personal data relates requests them to delete any links to such personal data or copies thereof. The controller did inform other controllers of the fact that the missing person had been found; however, they did not fulfill the stated obligation, as they should have taken reasonable measures upon receiving the deletion request to also inform the controllers to whom they had forwarded the personal data that the applicant requests the deletion of their personal data.

The Information Commissioner emphasized in their decision that the purpose of the provision of the second paragraph of Article 17 of the General Regulation is to limit the dissemination of published personal data by submitting a request to the source, provided that the conditions for deletion are met, with the aim of enabling the individual to more easily and effectively protect their privacy. Additionally, it was emphasized that information about the missing person and the circumstances related to their disappearance can significantly affect their public image and infringe upon their dignity in the future. Therefore, it is understandable that a person who has been missing reasonably expects privacy regarding the fact of their disappearance. The purpose of notifying the police about the disappearance is to facilitate a quicker and broader search, which is no longer relevant once the person has been found. The police thus delete personal data from their website, but news about it may remain on online portals long after the individuals have been found. In this context, the Information Commissioner further emphasized that the police notification about missing persons does not have the nature of a public notice aimed at ensuring the transparent operation of the police in terms of the Access to Public Information Act (ZDIJZ).

The controller rectified the violations during the procedure; therefore, the Information Commissioner did not order measures to eliminate the consequences.

Monitoring the movement of individuals in spaces and on outdoor surfaces is not an acceptable purpose for implementing video surveillance.

The Information Commissioner addressed violations related to video surveillance over swimming pools and other business premises. The controller (thermal spa) implemented video surveillance with a total of 165 cameras, monitoring not only the entrances and exits from the premises but also the entire spaces and outdoor areas, which allowed them to monitor the movement of guests and employees. The controller stated that the video surveillance was introduced solely for the purpose of ensuring the protection of property and the safety of individuals, protecting movable property and equipment, securing official premises, and monitoring access to the facility, in accordance with the provisions of Article 75 of the Personal Data Protection Act (ZVOP-1) (which regulates video surveillance of access to official or business premises) and Article 77 of ZVOP-1 (which regulates video surveillance of workspaces).

They also conducted video surveillance in certain areas designated as nudist once a week for a limited time, in accordance with the stated purposes, adopted regulations, and swimming pool rules. The cameras in this area were installed due to requirements for drowning prevention at swimming pools, as it was said to involve specific architecture with many curves and dead angles, making it impossible to conduct quality monitoring from the lifeguard observation towers without video surveillance. A part of the area near the water body (sun loungers, entry into the water body) was also recorded for monitoring purposes and quicker intervention in case of slips, weakness, or heat shock (e.g., after sauna use), which was intended to ensure faster action by lifeguards. The controller also provided access to recordings or live footage at several locations.

PROTECTION OF PERSONAL DATA

PAGE 63

The controller justified the established video surveillance by the existence of legitimate interests (point (f) of the first paragraph of Article 6 of the General Regulation), namely ensuring safety from drowning, rapid response in case of accidents, eliminating hazards, and ensuring the safety of visitors and their property. It was stated that the regulation on measures for protection against drowning in swimming areas imposes not only protection against drowning but also the prevention of a wide range of other

hazards (e.g., continuous monitoring of bathing areas and pool decks, maintaining order, and eliminating causes that could lead to danger). Given that the needs of the regulation regarding the number of observation points and the number of lifeguards are met, it was considered that this takes into account all milder measures for achieving safety, which justifies the fact that by implementing video surveillance, it pursues a legitimate interest. The Information Commissioner found that the controller monitors the entire premises and outdoor areas with 110 cameras, which allows for monitoring the movement of guests and employees. The mentioned cameras display entire premises or parts of premises where there is no property that the controller could protect in any way (according to the provisions of Article 78 of the ZVOP-2 or in connection with legitimate interests), and they are used by guests and employees. Monitoring the movement of individuals within the premises is not an acceptable purpose for which video surveillance of business premises and outdoor areas could be conducted. Merely stating that rest areas, hallways, etc., are also covered, where an individual could faint, does not withstand legal grounds for conducting video surveillance. The controller could also ensure the safety of people and property by having cameras cover only areas of specific property (e.g., cash registers, work equipment, etc.) that cannot be protected by milder means, or parts of swimming areas and pool decks, in accordance with the provisions of the regulation.

Regarding the legitimate interest, the Information Commissioner emphasized that the first condition (the existence of a legitimate interest itself) has not been demonstrated, nor has the criterion of necessity and weighing of interests, as the establishment of video surveillance is not the most appropriate, suitable, and necessary measure for achieving the purpose, since this could be achieved in some areas with milder measures. Additionally, it was emphasized that it is a reasonable expectation for individuals that they are not under video surveillance when they are in public spaces, especially if these are used for recreation or leisure activities in areas where individuals gather and communicate, e.g., in cafes, parks, etc. In these public areas, the legitimate interests of individuals will thus prevail over the legitimate interests of the controller.

Regarding the monitoring of live footage, the Information Commissioner emphasized that the latter should be aimed solely at protecting property and the safety of people, which can only be achieved through continuous recording of live footage by an authorized person (e.g., a security guard, lifeguard, but not, for example, a manager, receptionist, etc.), who will be able to act appropriately and prevent greater damage or injury to a guest. The Information Commissioner found that video surveillance is illegal in the part where there is no legal basis for its implementation and ordered, by decision, the cessation of video surveillance with a total of 110 cameras.

The controller must demonstrate that the implementation of GPS tracking for the protection of legitimate interest is an appropriate and necessary measure.

The controller implemented GPS tracking of five company vehicles that its employees used to perform their work tasks. These are personal vehicles, vans, and trucks used for product delivery, installation and servicing tasks, commercial tasks, and other work duties. The company vehicles were used by sales representatives, installers, service technicians, delivery personnel, and also members of management. Employees were not allowed to use company vehicles for private purposes. GPS tracking was carried out using a transmitter in the vehicle and a special application, in which the system continuously recorded the route taken by the vehicle and also stored this data. The controller conducted GPS tracking in such a way that it fully monitored all trips of the company vehicles, regardless of who among the employees used the company vehicle; the user of GPS tracking could not turn it off. The controller informed employees about the implementation of GPS tracking, and the tracking of company vehicles was regulated by regulations.

PROTECTION OF PERSONAL DATA

PAGE 64

The Information Commissioner emphasized that the implementation of GPS tracking of vehicles undoubtedly involves the processing of personal data of individuals using those vehicles, as the individual operating the vehicle is always identifiable or at least identifiable. The operator can, in any case, determine, based on the data at their disposal, who among the employees is using or has used the company vehicle at a given time, which means that the individual to whom the location data pertains is undoubtedly identifiable. The implementation of GPS tracking resulted in the operator

creating a specific collection of personal data, which contained a large amount of location data of individual employees regarding their micro-location at a specific moment.

The operator claimed that the legal basis for processing the personal data of employees is the legitimate interests under point (f) of the first paragraph of Article 6 of the General Regulation, namely the protection of its property, the safety of workers, and the organization and rationalization of transport work processes.

Regarding the protection of its property, it stated that by implementing GPS tracking, it aims to protect company vehicles as well as the equipment and documents located in those vehicles. The Information Commissioner agreed that the protection of property certainly represents a legitimate interest; however, the operator did not demonstrate that the implementation of GPS tracking is an appropriate and necessary measure for the protection of this interest in the specific case. Namely, the operator implements GPS tracking when an employee is operating the vehicle, and thus both the equipment and property in the vehicle are under the direct and constant supervision of the employee, meaning that during this time, both the vehicle and the equipment are at least minimally threatened by potential theft. Such implementation of GPS tracking would not benefit the operator in the event of a burglary of the vehicle and theft of equipment and documents. A GPS transmitter could be an appropriate measure that helps track the vehicle in case of its theft if, for example, the employee could turn on the GPS device when parking the vehicle at a location where it could be at risk and turn it off again upon returning to the vehicle.

As a legitimate interest, the operator also mentioned the safety of workers, as it could be determined where the vehicle is located in the event of a traffic accident. The Information Commissioner emphasized that it would be unlikely that the vehicle would need to be located using the GPS system in the event of an accident, as the accident site is usually known. If the accident occurred in a more remote location, the driver could also report the accident and location via a mobile phone. The operator did demonstrate the existence of a legitimate interest; however, this could only contribute to the protection of employees in exceptional, hypothetical cases, the likelihood of which is minimal. Furthermore, the operator could achieve this purpose using other means that interfere less with informational privacy. It could, while considering the minimum amount of data, also implement GPS tracking for this purpose in such a way that the employee would turn on GPS tracking in the event of an accident and send the obligated party information about their location.

Regarding the legitimate interest in the organization and rationalization of transport work processes, the operator focused its justification on performing certain work tasks with company vehicles (e.g., the purpose of transporting goods and products and the needs for assembly and servicing), while it did not justify the use of the GPS system for performing other work tasks (e.g., driving members of the management). The Information Commissioner confirmed that the organization and rationalization or optimization of work processes represent a legitimate interest of the obligated party; however, the operator did not demonstrate in the proceedings that, given the circumstances, systematic and continuous tracking of all routes of company vehicles is truly necessary to achieve this legitimate interest and that this rationalization cannot be achieved by other means that would interfere less with the informational privacy of employees. Namely, employees perform their work tasks with a relatively small number of company vehicles, with business trips being planned in advance, which means that the operator is aware of which routes their employees are taking on a given day. The operator also did not demonstrate that unforeseen work tasks arising during the transport would constitute such a proportion that the obligated party could not coordinate them in other ways (e.g., by communicating with the driver, sending an SMS message, etc.). The operator could ensure the clients' awareness through other measures that interfere less with the informational privacy of employees, for example, by notifying them at the beginning of the trip and in case of delays, as employees on-site, unlike the director, can provide clients with more accurate and timely information about the arrival time, which cannot be inferred from the GPS system.

PROTECTION OF PERSONAL DATA

PAGE 65

The Information Commissioner concluded that the data controller did not provide an adequate legal basis for the processing of personal data and that the processing of location data is not in accordance

with the principle of data minimization. The existence of a legitimate interest is merely the first prerequisite for processing personal data based on this point; furthermore, the processing of personal data must be appropriate and necessary to achieve that legitimate interest, and the interests and fundamental rights and freedoms of the individual must not prevail over the legitimate interest. Certain purposes cannot be achieved at all by implementing GPS tracking, while for some purposes, the data controller could use this device if the obligated party collected and processed location data in accordance with the principle of data minimization, only to a limited extent and selectively (e.g., it could collect data on the location of vehicles parked in such a way that the employee using the vehicle turns on the GPS when parking and turns it off upon returning to the vehicle).

Consent of the individual for the processing of special categories of personal data must be voluntary, specific, informed, unambiguous, and explicit.

The data controller, through the service of the platform "Health Manager," provided users with an infrastructure that enables secure storage, editing, and management of their health data, as well as secure electronic communication and exchange of health data between the individual and their chosen healthcare provider. Within the online platform, individuals register and then upload, store, edit, and keep various data about their health status in the so-called personal health record (e.g., a medication diary, blood sugar and blood pressure levels, weight data, allergy information, diagnoses, and various health documentation, such as test results).

The data controller stated that the legal basis for the processing of personal data (storage, editing, and management) is personal consent. The individual provided consent on the website by checking the box next to the text "I agree to the general terms of use" after entering the required registration data. In addition to this text, there was also a document on the general terms and a link to information on personal data protection.

The individual's health documentation and all data related to their health fall under the so-called special categories of personal data. Their processing is generally prohibited unless one of the exceptions listed in the second paragraph of Article 9 of the General Regulation applies, for example, if the individual to whom the personal data relates has given explicit consent to the processing of such personal data for one or more specific purposes, unless Union law or the law of a Member State provides that the individual to whom the personal data relates may not deviate from the prohibition of processing in the first paragraph.

The consent of the individual to whom the personal data relates means any voluntary, specific, informed, and unambiguous action in the form of a declaration of will or clear affirmative action from which the individual's wishes can be inferred. The conditions for lawful consent are specified in Article 7 of the General Regulation. Thus, it is not sufficient for consent to exist as a legal basis; it must also be appropriate—voluntary, specific, informed, and unambiguous, and in the case of health-related personal data, also explicit.

In this specific case, the Information Commissioner found that the specific consent for the processing of health data as defined by the obligated party (i.e., by checking the box on the obligated party's website next to the text "I agree to the general terms of use") is not in accordance with the General Regulation, as it does not meet the conditions of voluntariness, specificity, unambiguity, and explicitness. The statement is indeed involuntary, as consent is given in connection with agreeing to the general terms of use, which the individual cannot negotiate. The processing of health-related personal data is not necessary for the mere provision of the obligated party's services (providing and ensuring the described online solution). Consent should also be specific, relating to one or more...

PROTECTION OF PERSONAL DATA

PAGE 66

intended and should be clearly and unambiguously separated from any consent for any other purpose of processing the individual's health data. Consent should also be unequivocal, meaning that consent cannot be obtained through the same act required for the acceptance of a contract or agreement to the general terms of service. The given consent should also be explicit, which refers to the manner in which the individual provides consent. Therefore, the individual must give an explicit statement of consent (e.g., in a written declaration).

Furthermore, the Information Commissioner has identified certain inconsistencies regarding the

information provided about the processing of personal data under Article 13 of the General Regulation. The individual must be clearly and timely informed about which of their personal data will be processed, for what purposes, who will process it, to whom and under what conditions it will be disclosed, and what the retention periods are. For example, it was found that the text of the General Terms for Patients does not clearly and unambiguously specify which functionalities are included in the so-called Basic User Package (only secure e-communication or also secure storage of health status data).

Thus, the Information Commissioner ordered the controller, by decision, to rectify the irregularities related to the implementation of the provisions of the General Regulation, namely that consent must comply with the requirements of the General Regulation. The controller was also ordered to correct or supplement the content of the documents of the general terms of use of the Health Manager software for users and the Information on the processing of personal data in such a way that the information about the processing of personal data is presented in a concise, clear, and understandable form and that all information about the processing of personal data from the first and second paragraphs of Article 13 of the General Regulation is evident in such a form.

The controller must provide the individual with information about the employees who process their personal data if this is necessary for the protection of their rights.

The applicant requested, based on Article 15 of the General Regulation, that the controller provide information about who processed their personal data in certain documents, specifically from the properties of Word documents. The controller rejected the request, as it assessed that the right to the names of specific employees at the controller who prepared the documents does not fall under the scope of the right from point (c) of the first paragraph of Article 15 of the General Regulation, which defines the right to information about users of personal data. The applicant insisted in the appeal that they have the right to information from the "version history" tab of the Word document properties.

The Information Commissioner found a violation of Article 15 of the General Regulation, as the controller's decision was unsubstantiated, and the controller was ordered as a measure to rectify the irregularities to reconsider the applicant's request based on Articles 12 and 15 of the General Regulation. The Information Commissioner emphasized in the decision that the judgment of the EU Court No. C 579/21 of June 22, 2023, indicates that an individual is generally not entitled to information about internal users if they performed processing actions under the direction of the controller and in accordance with its instructions. However, it also follows from the mentioned judgment that it is important to determine whether the employees at the controller actually acted on its behalf and for its account or whether they may have exceeded their employer's instructions regarding the processing of personal data. In this specific case, this was all the more important because the applicant claimed potential illegality in the processing of their personal data. The Information Commissioner emphasized that a categorical and blanket rejection of the right to information about users of personal data does not meet the standard of substantiation. An unsubstantiated decision prevents the individual from having an effective legal remedy. The applicant also requested information about the duration of the processing of their personal data, and the controller did not provide any explanation for the rejection of this part of the applicant's request, therefore the Information Commissioner ordered the controller to do so in the new procedure.

PROTECTION OF PERSONAL DATA

PAGE 67

The controller may not refuse access to an individual's personal data due to the connection of the data with an ongoing court proceeding.

The applicant requested access to her personal data and the data of her minor child, as well as certain information regarding the processing of their personal data. The documentation originated from a psychotherapy treatment process at a provider of such services and was related to an ongoing court proceeding. The controller did not decide on the applicant's request within the timeframe set out in Article 12 of the General Regulation, and due to its inadequate cooperation in the procedure with the Information Commissioner and the resulting prolonged process, the Information Commissioner decided to rule on the applicant's request in a full jurisdiction procedure (i.e., to decide on the applicant's request independently).

The Information Commissioner found in the procedure that certain documents held by the controller exist, while some personal data had been destroyed because the purpose of their storage had expired (in the case of recordings of therapeutic sessions), or they were not retained because the controller was not obliged to keep them (for example, under the rules on the storage of medical documentation) or believed that they should not be retained. In the procedure, the Information Commissioner rejected the controller's argument that this is an ongoing court proceeding and that only the court can decide on access to the documentation. The Information Commissioner determined that the controller did not act as an extended arm of the court, as a judicial assistant, or in any other capacity that would be analogous to the protected position of court experts (first and third paragraphs of Article 57 of the ZVOP-2). The controller also argued in the procedure that it would be necessary to appoint an expert of the appropriate field for the protection of the interests of the minor, but the Information Commissioner found that this was not necessary in this specific case. Furthermore, the conditions set out in Article 20 of the ZVOP-2, under which a request can be denied if there are specific and objective circumstances that would justify concluding that disclosing the minor child's personal data to one of the parents would cause harm to the minor, were not met. The Information Commissioner justified the decision, among other things, by referencing the provisions of the Family Code and all evidence presented in the course of the procedure.

The Information Commissioner then decided on the applicant's request, ordering the controller to provide those documents in its possession, while also instructing the controller to redact data that do not fall under the definition of personal data of the applicant or her minor daughter.

An individual may receive parts of written statements that directly refer to their actions, characteristics, and conditions within the scope of access.

The individual received an extraordinary termination of employment. He submitted a request to his former employer (a public health institution) for a copy of written statements (in the form of emails or as paper documents) that his former colleagues and superiors provided about him or in connection with his work and behavior and relationships with colleagues at work. The controller denied the request, justifying that it concerned private communication intended solely for personal clarification of the circumstances in the decision-making process regarding the extraordinary termination of employment. In the supervisory procedure, the Information Commissioner decided that the individual is entitled to all statements, but only to those parts that directly refer to his actions, characteristics, and conditions (e.g., inappropriate behavior and violations of safety rules and professional standards); among the approved records were also those expressing subjective opinions about the individual (e.g., that he is offensive, impossible, with an allegedly dark past). However, the individual is not entitled to those parts of the statements that relate solely to the actions, characteristics, and conditions of his colleagues and superiors (e.g., about the consequences they felt due to the individual's actions, about their reactions to the individual's actions, about their actions in relation to the individual). All statements were used in support of the decision regarding the extraordinary termination and were included in the file. Since the individual already knew in the request who provided which statement, he was also entitled to the personal names of the individuals who provided the statements.

PROTECTION OF PERSONAL DATA

PAGE 68

An individual is entitled to receive a photograph that shows their workplace

An individual received a termination of employment. They submitted a request to their former employer (a public health institution) for a photograph of their workplace, which was used in support of the termination process. The data controller rejected the request, claiming that it does not involve personal data and that the individual is not identifiable in the photograph. The Information Commissioner, in a supervisory procedure, decided that the individual is entitled to the photograph that shows their workplace (e.g., work tools, cabinets, and items on the cabinets), as the photograph depicts a specific area where the individual performs their work, particularly showing the individual's actions (used tools, substances, arrangement of items) and consequently a presumed violation of professional rules. Furthermore, the photograph was used as evidence of violations, and the individual can be indirectly identified through the data contained in the file related to the termination of employment.

The data controller must provide the individual with information about the specific purposes of

processing personal data

The individual requested an extract from the processing log at the police for all collections of personal data in which the individual appears, for a specified period. The processing log contained, among other data, personal names and IDs of internal users, but did not contain specific purposes. The data controller fully rejected the request. The Information Commissioner, in a supervisory procedure, decided that the police must disclose the lines (of processing) with the following data about the processing: time of processing and specific purpose, whereby the police must determine (create) the specific purposes for each of the lines based on internal inquiry and comparison with other collections of data. However, the individual is not entitled to the identity of employees (as there were no violations of personal data protection and this data was not important for the broader protection of the individual's rights).

PROTECTION OF PERSONAL DATA

PAGE 69

3.3 OTHER ADMINISTRATIVE PROCEDURES

3.3.1 PERMISSIBILITY OF IMPLEMENTING BIOMETRIC MEASURES

Biometric measures are governed by Articles 81, 82, 83, and 84 of the ZVOP-2. The processing of biometric personal data contrary to the provisions of the aforementioned articles of ZVOP-2 is prohibited.

If another law stipulates the processing of biometric personal data, it must, in addition to the conditions for the legality of processing personal data from the second or third paragraph of Article 6 of ZVOP-2, also specify the conditions for its use, and it may also limit the use of biometric personal data. It is prohibited to link collections of biometric personal data with other collections and to enable the portability of this data, unless stipulated by another law or consented to by the individual to whom the biometric personal data relates.

a) Biometric data in the private sector

The processing of biometric personal data in the private sector may be carried out in accordance with Article 83 of ZVOP-2 only if it is necessary for the performance of activities, for the safety of individuals, the safety of property, the protection of confidential data, or the protection of business secrets, and the actions of processing biometric personal data must be confirmed in accordance with Article 52 of ZVOP-2 (this involves establishing certification mechanisms for data protection and seals and labels for data protection to demonstrate that the processing actions by controllers and processors are in accordance with the General Regulation).

A private sector entity may also process biometric personal data for the purpose of protecting the accuracy of the identity of its clients (if this is stipulated by another law for the aforementioned purposes of protecting interests, if it is specifically stipulated by a contract, or if the parties have given explicit consent).

A private sector entity may process biometric personal data also on the condition that the processing actions of this data are under the exclusive control or authority of the client and confirmed in accordance with the competencies of the supervisory authority for confirmation from Article 52 of ZVOP-2, and if it allows the client to explicitly permit the processing of this data by other processors and controllers for the purpose of proving the accuracy of their identity. In this case, the client does not need to obtain a decision from the Information Commissioner.

Before the processing of biometric personal data begins, individuals must be informed in writing, and in the case of employees, the controller must conduct prior consultation with them regarding the proportionality of the processing.

ZVOP-2 also prohibits the acquisition of biometric personal data in connection with marketing, stipulating that in the context of marketing or similar business activities, biometric personal data must not be requested, obtained, or further processed in exchange for certain services, even if these services are free for the individual to whom the personal data relates.

A private sector entity intending to process biometric personal data must submit a description of the intended processing and the reasons for its introduction to the Information Commissioner before the processing begins (Form for the notification of biometric measures to the Information Commissioner).

The Information Commissioner, upon receiving the necessary information, decides within two months whether the biometric processing is permitted in accordance with the provisions of ZVOP-2. The deadline may be extended by up to two months, taking into account the complexity of the intended processing. The data controller may only implement biometric measures after receiving a decision from the Information Commissioner that permits the implementation of biometric measures. There is no appeal against the decision of the Information Commissioner, but an administrative dispute is permitted.

PROTECTION OF PERSONAL DATA

PAGE 70

It should be emphasized that Article 121 of the ZVOP-2 in the transitional provisions regarding certification stipulates that the Slovenian Accreditation will begin to carry out accreditation procedures on January 1, 2024. Until the commencement of accreditation procedures under this law, actions of processing by controllers and processors that must obtain a certificate for processing actions in accordance with the provisions of this law are considered compliant with the criteria from the certification mechanism. Controllers submit applications for certification and applications under the second sentence of the first paragraph of Article 83 of this law within six months after the expiration of the deadline from the first paragraph of this article. Processing actions for which an application for certification has been submitted within the deadline from the previous sentence are considered compliant with the criteria from the certification mechanism until December 31, 2024.

b) Biometric Data in the Public Sector

The processing of biometric personal data in the public sector can only be determined by law in accordance with Article 82 of the ZVOP-2 if it is strictly necessary for the safety of individuals, the safety of property, or for the protection of confidential data, for the identification of missing or deceased individuals, or for the protection of trade secrets, and these purposes cannot be achieved by milder means.

The processing of biometric personal data in the public sector is exceptionally permissible under the condition that the processing actions of this data are certified in accordance with the competencies of the supervisory authority for certification under Article 52 of the ZVOP-2 in a manner that ensures the processing and use of this data by the individual under their exclusive control or authority and allows them to explicitly permit the processing of this data by other processors and controllers for the purpose of proving the accuracy of their identity.

The processing of biometric personal data can also be determined by law if it concerns the fulfillment of obligations from a binding international treaty or for the identification of individuals when crossing state borders.

The processing of biometric personal data in the public sector can also be determined by law for the purpose of identifying individuals when issuing electronic identification means in accordance with the law regulating electronic identification means, and if such identification has been requested by the individual.

In the public sector, the processing of biometric personal data in relation to entry into a building or parts of a building can exceptionally be introduced by another law, carried out with the appropriate application of the fourth, fifth, and sixth paragraphs of Article 83 of this law, if it is strictly necessary for the safety of individuals, the safety of property, the protection of confidential data, or the protection of trade secrets. This means that for these purposes, a decision from the Information Commissioner must be obtained, individuals must be informed in writing, and when it concerns employees, the controller must conduct prior consultation with them regarding the proportionality of the processing.

In 2023, the Information Commissioner received two applications for the issuance of permits for the introduction of biometric measures in the private sector. The introduction of biometric measures was approved in both cases due to the protection of the accuracy of the identity of the applicant's clients.

3.3.2 LINKING PERSONAL DATA COLLECTIONS

The Information Commissioner was responsible for issuing prior consent for linking personal data collections under ZVOP-1, and thus managed these procedures until the implementation of ZVOP-2 (i.e., until January 26, 2023).

The linking of personal data collections is governed by Articles 84, 85, and 86 of ZVOP-1. Article 84 of ZVOP-1 stipulates that if at least one of the personal data collections to be linked contains sensitive personal data or if the consequence of linking would be the disclosure of sensitive data, or if linking is...

****Note:**** It is pointed out that the term "accreditation" is incorrectly used in this context in ZVOP-2.

PROTECTION OF PERSONAL DATA

PAGE 71

the necessary use of the same linking sign, linking without prior permission from the Information Commissioner is not allowed. The Information Commissioner allows the link based on a written application from the personal data controller if it determines that adequate protection of personal data is provided. The procedures and measures for protection must be appropriate in relation to the risk posed by the processing and the nature of the personal data being processed. In addition to determining the adequacy of personal data protection, the Information Commissioner must also conduct a substantive test when deciding on the issuance of permission for linking personal data collections to ascertain whether there is an appropriate legal basis for linking the collections. In the context of linking personal data collections, only those personal data specified by applicable legislation may be shared or processed. Linking collections represents automatic and electronic linking of personal data collections maintained by controllers for various purposes, such that certain data is automatically or upon request transferred or included in another linked collection or in multiple linked collections. Personal data collections are linked if certain data from one collection is directly included in another collection, thereby changing (increasing, updating, etc.) the second collection; this may involve a one-way flow of data transfer.

In 2023, the Information Commissioner did not receive any applications for permission to link personal data collections. In relation to applications received in 2022, it issued three decisions, namely two favorable and one unfavorable. The application was denied because there was no appropriate legal basis for the intended linking of personal data collections. Additionally, the Information Commissioner issued two decisions on dismissal, one in a case because the party did not assert any of its rights or legal interests or could not be a party in the proceedings, and in the other case, it dismissed the application because the ZVOP-2 no longer grants it the authority to issue prior permission for linking personal data collections.

The linking of personal data collections is now defined in Article 87 of the ZVOP-2, which specifies the linking of collections of only certain data from official records and books. Article 87 of the ZVOP-2 states that when specific types of personal data, personal data related to criminal convictions and misdemeanors, income data in accordance with the law governing income tax, data on an individual's assets in accordance with the law governing the exercise of rights from public funds, data on real estate owned by an individual in accordance with other laws, data or information on creditworthiness in accordance with the law governing the central credit register, and official records in accordance with the law governing the tasks and powers of the police, and the law governing the prevention of money laundering and financing of terrorism, are processed in official records or public books, they may only be linked to each other or with other collections if such linking is explicitly provided by law. The controller or processor must conduct an impact assessment (Article 35 of the General Regulation) before starting the linking of collections and must consult with the Information Commissioner in advance (Article 36 of the General Regulation). Therefore, with the implementation of the ZVOP-2, the Information Commissioner no longer issues decisions regarding the linking of collections.

The ZVOP-2 does not specifically regulate the linking of official records and public books that do not contain the aforementioned types of personal data, which means that the linking of other official records and public books is permissible provided that there is a legal basis for such processing from the first paragraph of Article 6 of the General Regulation and that adequate protection of personal data is ensured, including the provision of a processing log as per Article 22 of the ZVOP-2.

PROTECTION OF PERSONAL DATA

PAGE 72

3.3.3 TRANSFER OF PERSONAL DATA TO THIRD COUNTRIES

The General Regulation defines the transfer of data to third countries and international organizations in

Chapter V. The transfer is permitted if one of the following legal bases exists:

1. The European Commission issues a decision that the country, territory, specific sector in the country, or international organization to which personal data is transferred provides an adequate level of protection (Article 45);
2. The data exporter provides appropriate safeguards based on Articles 46 and 47;
3. It concerns specific cases defined in Article 49, in which deviations are possible.

According to the General Regulation, the authorization of the Information Commissioner for the transfer of data to third countries or international organizations is no longer required in most cases. Obtaining authorization or a decision from the supervisory authority regarding the adequacy of the safeguards from Article 46, which serve as the basis for the transfer of data, is only necessary in the following cases:

- When the transfer of data to a third country is based on contractual provisions that the data exporter and data importer themselves determine as appropriate safeguards (point (a) of the third paragraph of Article 46);
- When the transfer of data occurs between public authorities based on provisions that are inserted into administrative agreements (point (b) of the third paragraph of Article 46);
- If the data is transferred based on binding corporate rules, these must be approved in advance by the competent supervisory authority (first paragraph of Article 47).

Transfers of personal data are also regulated in the ZVOP-2, which, however, only pertains to a very narrow circle of processing of personal data, specifically only to those processes that are carried out in areas outside the application of EU law, that is, in areas that are fully or partially under the independent jurisdiction of the Republic of Slovenia. This includes areas such as national security and defense, and also the processing of data about deceased individuals. Therefore, the provisions of ZVOP-2 regarding transfers apply only to controllers such as SOVA, OVS, and the Ministry of Defense, and in the context of international civil missions, also to the Ministry of Foreign Affairs, as well as to controllers who wish to transfer data about deceased individuals to a third country, etc. For all other controllers and processors who are subject to the General Regulation, only the provisions of Chapter V of the General Regulation apply in full, that is, Articles 44 to 49 of the General Regulation.

In 2023, the Information Commissioner did not receive any applications regarding the transfer of data to third countries.

Guidelines detailing the regulation of transfers of personal data to third countries and international organizations under the General Regulation and ZVOP-2 are published on the website of the Information Commissioner. The guidelines are accessible at this link.

On July 10, 2023, the European Commission adopted a decision on the adequacy of the protection of personal data based on the framework for data privacy protection between the EU and the USA (EU-US Data Privacy Framework – DPF). The decision indicates that the USA provides an adequate level of protection (comparable to the EU) for those personal data that are transferred from the EU to American companies in accordance with the new framework for data privacy protection between the EU and the USA. Based on the adequacy decision, personal data from the EU can be safely transferred to those companies in the USA that participate in the framework for data privacy protection between the EU and the USA, without the need to implement additional protective measures for data protection in accordance with Article 46 of the General Regulation. American companies can join the framework for data privacy protection based on a commitment to fulfill a detailed set of obligations regarding privacy protection, such as the requirement to delete personal data when they are no longer necessary for the purpose for which they were collected, and to ensure continuous protection when personal data is shared with third parties.

A list of companies participating in the framework is publicly available on the website of the U.S. Department of Commerce (<https://www.dataprivacyframework.gov/s/participant-search>). Individuals from the EU have several legal remedies available if American companies do not handle their personal data correctly, including free independent dispute resolution mechanisms. Regarding the collection and use of their data by American intelligence agencies, they have access to an independent and impartial legal protection mechanism, which includes the newly established Data Protection Review Court (DPRC). The latter is intended for independent investigations and resolution of complaints,

including by adopting binding remedial measures.

The adequacy decision is available on the European Commission's website: https://commission.europa.eu/system/files/2023-07/Adequacy%20decision%20EU-US%20Data%20Privacy%20Framework_en.pdf.

PROTECTION OF PERSONAL DATA

PAGE 74

3.4 PREPARATION OF OPINIONS AND EXPLANATIONS

3.4.1 GENERAL EXPLANATIONS

Based on Article 57 of the General Regulation, Article 76 of the ZVOPOKD, and Article 56 of the ZVOP-2, the Information Commissioner issues non-binding opinions, explanations, and positions on issues related to the protection of personal data, thereby contributing to the awareness of controllers and processors as well as the general public. In 2023, the Information Commissioner advised 2,580 individuals and legal entities who approached him with questions regarding the protection of personal data. The Information Commissioner issued 1,011 written opinions and referrals to opinions (of which 925 were written opinions, and in 86 cases, he advised applicants by phone or provided brief referrals). Opinions issued after the entry into force of the ZVOP-2 are published on the website <https://www.ip-rs.si/mnenja-zvop-2/>. Users can browse opinions issued under the ZVOP-1, before the General Regulation came into effect, and access opinions issued after the implementation of the General Regulation (and before the application of the ZVOP-2). Opinions are categorized into as many as 73 substantive areas, with more than 8,000 opinions published. The Information Commissioner encourages consultation or the provision of oral answers to questions, which is why, in 2023, a duty state supervisor for the protection of personal data was available every working day at the office to answer questions by phone. In 2023, state supervisors provided advice by phone to 1,569 individuals and organizations.

3.4.2 OPINIONS ON REGULATIONS

The Information Commissioner provides opinions on regulations in accordance with point (c) of the first paragraph of Article 57 of the General Regulation, Article 56 of the ZVOP-2, and Article 76 of the ZVOPOKD, which stipulate that the supervisory authority advises the National Assembly, the government, or ministries, as well as other institutions and bodies on legislative and administrative measures related to the protection of rights and freedoms of individuals in the processing of personal data or provides preliminary opinions, explanations, and positions on the compliance of provisions of legislative proposals and other regulations with laws and other regulations governing personal data, as well as issues regarding the protection of personal data. In 2023, the Information Commissioner prepared 93 opinions on proposals for amendments to laws and on proposals for new laws and other regulations. The Information Commissioner still noted a lack of awareness among the proposers of regulations introducing new complex forms of personal data processing or extensive personal data processing using modern technologies regarding the necessity of thorough preliminary analysis and addressing the risks that such processing entails. In accordance with the new provisions of the ZVOP-2, controllers must prepare an impact assessment for certain personal data processing under Article 35 of the General Regulation or conduct prior consultation with the Information Commissioner under Article 36 of the General Regulation (more on this in Chapter 3.5.3). In 2023, the Information Commissioner provided opinions, comments, or participated in the preparation of the following regulations (for some, he provided multiple opinions):

- Proposal for the Law on the Digitalization of Healthcare,
- Proposal for the regulation of media development in the new Media Act,
- Proposal for the new Energy Act (EZ-2),
- Proposal for the Law on Amendments and Supplements to the Law on the Execution of Criminal Sanctions,
- Legislative proposals in the area of the introduction of the digital euro and open finance, published by the European Commission on June 28, 2023,
- Proposal for the Law on Judicial Protection Procedures for Former Holders of Qualified Bank Obligations,

PROTECTION OF PERSONAL DATA

- Proposal for the Act on Amendments and Supplements to the Act on Court Experts, Court Appraisers, and Court Interpreters,
- Proposal for the Act on Amendments and Supplements to the Act on Mandatory Insurance in Traffic,
- Proposal for the Act on the Judiciary,
- Proposal for the Act on Detective Activities,
- Proposal for the Act on Amendments and Supplements to the Act on Regulating the Labor Market,
- Proposal for the Act on Emergency Measures in the Field of Health Care,
- Proposal for the Act on Renewal, Development, and Provision of Financial Resources,
- Proposal for the Act on Courts,
- Proposal for the Act on Amendments and Supplements to the Act on the Judicial Council,
- Proposal for the Act on Amendments and Supplements to the Act on Economic Companies,
- Proposal for Amendments to Articles 135.a, 135.b, and 135.c of the Act on the Organization and Financing of Education,
- Proposal for the Act on Tolling,
- Proposal for the Act on Amendments and Supplements to the Act on Local Elections,
- Proposal for the Act on Personal Assistance,
- Proposal for the Regulation on the Processing of Data from Records on Mobility Abilities and Morphological Characteristics in the Act on the Organization and Financing of Education,
- Constitutional Review Proposal,
- Proposal for the Act on Amendments and Supplements to the Act on Primary Schools,
- Proposal for the Act on Public Economic Services for Environmental Protection,
- Proposal for the Act on the Implementation of the Regulation (EU) on the Single Market for Digital Services,
- Proposal for the Act on Amendments and Supplements to the Act on the Financial Instruments Market,
- Proposal for the Act on Public Employees,
- Proposal for the Act on Amendments and Supplements to the Act on Value Added Tax,
- Proposal for the Act on Amendments to the Act on the Resolution and Forced Termination of Banks (ZRPPB-1A),
- Proposal for the Act on Buyers and Servicers of Non-Performing Bank Loans,
- Proposal for the Act on Common Foundations of the Salary System in the Public Sector,
- Proposal for the Act on the Central Credit Register,
- Proposal for the Act on Amendments and Supplements to the Act on Railway Traffic,
- Proposal for the Act on Long-Term Care,
- Proposal for the Regulation on the Unified Information System in the Field of Public Procurement,
- Proposal for the Act on Amendments and Supplements to the Act on Foreign Affairs,
- Proposal for the Regulation on Amendments and Supplements to the Regulation on Technical Inspections of Motor and Trailer Vehicles,
- Proposal for the Regulation on Authorizations for Data Processing in the Central Register of Patient Data,
- Proposal for the Act on the Health Information System,
- Proposal for the Act on the Health Insurance Institute of Slovenia,
- Proposal for the Ratification of the Protocol Amending the Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data,
- Proposal for the Act on Aviation,
- Proposal for the Regulation on the Costs of Familiarization with Personal Data,
- Proposal for the Act on Amendments and Supplements to the Act on Game and Hunting,
- Proposal for the Regulation on Technical Conditions that Video Electronic Identification Means Must Meet,
- Proposal for the Act on Amendments and Supplements to the Act on Maturity,
- Proposal for the Act on Amendments and Supplements to the Act on Higher Professional Education,
- Proposal for the Regulation on Free Flight,

- Proposal for the Regulation on the Implementation of Agricultural Policy Interventions for the Year 2023,
- Proposal for the Act on the Regulation of Certain Issues Related to Offenses Committed During the Validity of Measures Due to the Infectious Disease COVID-19,
- Legal Basis for the Processing of Data of Members of Beekeeping Societies under the Regulation on Implementation.

PROTECTION OF PERSONAL DATA

PAGE 76

interventions in the beekeeping products sector from the strategic plan of the Common Agricultural Policy

2023–2027, which defines the implementation of interventions in the beekeeping products sector,

- Proposal for a Regulation on the implementation of scientific research work in accordance with the principles of open science,

- Proposal for the Rules on the manner of implementing Article 220 of the Electronic Communications Act,

- Proposal for the Act on Amendments and Supplements to the Act on the Tasks and Powers of the Police.

3.4.3 REQUEST FOR ASSESSMENT OF CONSTITUTIONALITY AND LEGALITY

The Information Commissioner may initiate a procedure for the assessment of the constitutionality or legality of regulations based on Article 23.a of the Constitutional Court Act (ZUstS) if a question of constitutionality or legality arises in connection with the procedure it is conducting. In 2023, the Information Commissioner conducted an appeal procedure due to a violation of the right to access health documentation under Article 41 of the Health Services Act (ZPacP). In addressing the appeal, the Information Commissioner encountered issues related to the existing legal framework regarding the physician's right to withhold information (the so-called therapeutic privilege or the physician's duty of confidentiality).

Article 41 of the ZPacP stipulates, among other things, that a patient has the right to unobstructed access to and copying of health documentation relating to them in the presence of a physician or another healthcare worker or healthcare collaborator, while also considering the provisions of the first paragraph of Article 22. The first paragraph of Article 22 of the ZPacP states that a patient may only exceptionally be denied information about their health condition if the physician assesses, based on the circumstances, that such notification would cause serious health harm, unless the patient, who is capable of making decisions in their best health interest, expressly requests to be fully informed about their health condition. The reasons for withholding information must be documented separately in the health documentation.

In the specific case, the patient submitted a request to the healthcare provider for access to health documentation under Article 41 of the ZPacP, but the provider assessed that access to this documentation would cause serious health harm to the patient, and therefore denied the request. The patient then submitted an explicit request for access to the health documentation (considering the first paragraph of Article 22 in connection with Article 41 of the ZPacP). The provider also denied this request, justifying it by stating that the patient was not capable of making decisions in their best interest. The Information Commissioner assessed in the appeal procedure that this decision was not adequately justified, and therefore annulled the decision and returned it to the healthcare provider for reconsideration. The provider again denied the patient's request without further justification, and the patient filed an appeal with the Information Commissioner.

According to the legal framework, a patient who would suffer serious health harm from access to health documentation could access this documentation if they submitted an explicit request, provided they are capable of making decisions in their best health interest. The Information Commissioner believes that the limitation of the right to access health documentation, as derived from the first

paragraph of Article 22 in connection with the eighth paragraph of Article 41 of the ZPacP, is inconsistent with the third paragraph of Article 38 of the Constitution in connection with Articles 2, 15, 34, 35, and the third paragraph of Article 51 of the Constitution, as the concept of "capability of making decisions in one's best health interest" is too vague and indeterminate, and such a limitation of the constitutional right to access one's personal data is disproportionate and contrary to Article 23 of the General Regulation in relation to Article 18 of the Personal Data Protection Act (ZVOP-2).

Right to access personal data and health documentation

An individual's right to access personal data relating to them, which also includes the right to access health documentation, is a constitutional right. The Constitution of the Republic of Slovenia in the third paragraph of Article 38 stipulates that everyone has the right to be informed about the collected personal data relating to them and the right to judicial protection against their misuse. The General Regulation in Article 15 further...

PROTECTION OF PERSONAL DATA

PAGE 77

specifically defines the right of access for the individual to whom the personal data relates; the aim of this right is to enable the individual to have control over their personal data. The individual thus has access to data related to their health, e.g., data in their medical records, which includes information such as diagnoses, test results, procedures, etc. The individual's right to be informed about their health documentation also stems from the individual's right to dignity, self-determination, and autonomy (Article 35 of the Constitution in relation to Article 34 of the Constitution) and from the right to voluntary treatment or the prohibition of forced treatment (paragraph three of Article 51 of the Constitution). Human rights and freedoms may only be limited by the rights of others and in cases specified by the Constitution. According to established constitutional jurisprudence, interventions in the protection of personal data are permissible if they comply with the principle of proportionality.

Limitations on the right to one's own personal data are permissible only exceptionally under the provisions of the ZVOP-2 and the General Regulation. According to Article 23 of the General Regulation, any legislative measure that limits the right of access must respect the essence of fundamental rights and freedoms and must be a necessary and proportionate measure in a democratic society to ensure, among other things, the protection of the individual to whom the personal data relates. It is also specified what each such legislative measure must contain, e.g., specific provisions regarding the purposes of processing or types of processing; types of personal data; the extent of the imposed limitations; protective measures to prevent abuse or unlawful access or transfer, etc. The Information Commissioner believes that the contested regulation of the specified conditions does not meet these requirements.

Provisions of the Constitution that are violated

a) Principle of clarity and precision of regulations

The principle of the rule of law requires, among other things, that regulations are clear and precise so that the content and meaning of the norm can be unequivocally determined. Norms must be such that they can be implemented, do not allow for arbitrary action, and unequivocally and sufficiently precisely define the legal status of the subjects to which they relate. According to the Information Commissioner, the contested provisions of the ZPacP cannot be clearly defined in substance even with interpretation, primarily due to the term "capacity to decide in one's best health interest" from the first paragraph of Article 22 of the ZPacP. Neither the ZPacP nor any other law specifies when a patient is capable of making decisions in their best health interest. Point 19 of Article 2 of the ZPacP only states that the capacity to make decisions about oneself is the capacity of the patient to independently assert rights under this law, particularly to decide on the implementation of a medical intervention or health treatment. A patient is capable of making decisions about themselves if, based on their age, maturity, health status, or other personal circumstances, they are able to understand the meaning and consequences of asserting rights under this law, especially consent, refusal, or withdrawal of refusal of medical intervention or health treatment.

The capacity to make decisions about oneself is thus linked to the so-called consent or refusal capacity, which means the ability to consent to a medical intervention or to refuse it, and depends on

the ability to reason when making decisions (the ability to understand the meaning and consequences of one's actions). This assessment is independent of the civil legal capacity of the individual, as the requirements for recognizing the reasoning necessary for acknowledging legal capacity are higher than those required for recognizing consent capacity (even a patient who has been deprived of legal capacity can give a consent statement for treatment in a psychiatric hospital under special supervision).

The limitation of the right to access health documentation in the ZPacP is not tied to "the capacity to make decisions about oneself" or to "the capacity to care for one's rights and interests without harm to oneself," but rather to the indefinite, unclear, and open concept of "capacity to decide in one's best health interest." The legislator has thus introduced an indefinite legal concept that is neither defined in the ZPacP nor is it commonly used in regulations in the field of health care. The assessment is therefore left to the discretion, interpretation, and evaluation of the health service provider or physician. Since the standard is so indefinite that it allows for excessive varying interpretations, it can lead to reduced predictability of the legal status of patients and an unjustified interference with the rights of individuals. Furthermore, in practice, the concept

PROTECTION OF PERSONAL DATA

PAGE 78

equated with the concept of causing serious health damage in such a way that the conditions regarding the ordinary and explicit request are equalized.

b) Principle of Proportionality

The contested regulation constitutes an interference with the right to access one's own health documentation; therefore, the interference must comply with the principle of proportionality. The patient's awareness of their health condition is a necessary condition for exercising the right to actively participate in the choice of treatment method. The concealment of truth interferes with the autonomy and dignity of the patient, prevents the exercise of the right to self-determination, and contradicts informed consent. A patient who is not informed or not sufficiently informed cannot actively participate in their treatment or may even make decisions in error regarding their health condition. The Information Commissioner believes that the exception to the right to be informed in connection with the right to access health documentation should be interpreted extremely restrictively, as a broader interpretation of this exception could lead to a severe infringement of the right to self-determination, personal dignity, and the protection of personal data. In the case of an explicit request for complete information about their health condition and a request to access their own health documentation, the healthcare provider is generally obliged to allow the patient to access the entire health documentation. If the patient explicitly requests to be informed about their health condition, the healthcare provider must comply with the request, even if they believe that informing the patient may result in health damage regardless of possible consequences. In this case, the patient assumes responsibility for any potential health damage incurred.

The requirement that the ability to validly submit such an explicit request is tied to the ability to decide in the best health interest is, at first glance, disproportionate, as it does not limit itself to patients who are legally incapacitated or to patients who are unable to make decisions about themselves, but rather to a different, legally undefined, and stricter assessment of the patient's ability who wishes to access their health documentation.

From the perspective of the patient's right to autonomy in decision-making regarding treatment and the prohibition of forced treatment, it is disproportionate to restrict the right of an individual capable of making decisions about themselves to access health documentation. If an individual assumes the risk of serious health damage, they should be allowed access to their health data, even if the doctor believes that this is not in their best interest and may lead to a deterioration of health. The patient has the right to know their health condition so that they can make decisions based on that knowledge. Due to inadequate rights to be informed and to access health documentation, other patient rights may also be endangered or even undermined, such as the right to participate, the right to make independent decisions about treatment, and the right to respect for previously expressed wishes.

Based on the above, the Information Commissioner believes that the existing legal regulation of the

right to access health documentation is unconstitutional, as it violates the principle of proportionality and the principle of clarity and precision of legal norms and constitutes a serious infringement of constitutionally protected rights to access personal data and health documentation, as well as to dignity, self-determination, and autonomy.

The full texts of the submitted requests for the assessment of constitutionality and legality are available on the website of the Information Commissioner:

<https://www.ip-rs.si/zakonodaja/zahteve-ip-za-presoj-ustavnosti-oz-zakonitosti-predpisov>.

PROTECTION OF PERSONAL DATA

PAGE 79

3.5

COMPLIANCE AND PREVENTION

With the enactment of the ZVOP-2 at the end of January 2023, a new regulation was presented to the obligated parties, which they must understand and comply with. Therefore, the year 2023, from the perspective of preventive activities of the Information Commissioner, was largely dedicated to raising awareness among the obligated parties regarding ZVOP-2. The adoption of the new law was addressed through various preventive activities, such as telephone and written consultations, updating content on websites, revising guidelines, preparing infographics, conducting free training sessions, and communication via social media. The Information Commissioner prepared several free training sessions on the new ZVOP-2, attended by more than 1,000 participants, and we also expedited the issuance of written opinions for individuals and obligated parties, as well as provided telephone consultations.

In 2023, we began implementing coordinated compliance activities in collaboration with other supervisory authorities for the protection of personal data regarding the status and operation of data protection officers, strengthened cooperation with data protection officers, and prepared additional requirements for accreditation, which is a prerequisite for the commencement of issuing certificates in the field of personal data protection.

In addition to preventive activities, the Compliance and Prevention Sector of the Information Commissioner also provides support activities to other sectors, both regarding information technology and assistance to the inspection supervision sector; among other things, it develops certain internal applications, maintains and upgrades the intranet of the Information Commissioner, and carries out numerous other preventive activities, which are described below.

3.5.1 NEW OBLIGATIONS OF DATA CONTROLLERS UNDER ZVOP-2

ZVOP-2, as a national regulation, governs certain substantive areas according to the provisions of the General Regulation, such as the use of health, biometric, and genetic data, some procedural aspects (e.g., the procedure for imposing sanctions and legal remedies), and the relationship to other areas and rights (e.g., access to public information, use of personal data for research, archival, and statistical purposes). In addition, ZVOP-2 regulates additional conditions for data protection officers, modifies the regulation of video surveillance (newly regulates video surveillance in public areas, prohibits the use of facial recognition systems and license plate recognition in public areas, etc.), specifies requirements regarding traceability (processing logs), and other areas. ZVOP-2 must not alter the provisions of the General Regulation, as the regulation must be applied directly, and obligated parties must consider that both the General Regulation and ZVOP-2 are applicable, and the provisions of ZVOP-2 must be interpreted in accordance with the provisions of the General Regulation. For easier understanding of the novelties of ZVOP-2, we have also prepared an overview of changes compared to the previous law (ZVOP-1).

PROTECTION OF PERSONAL DATA

PAGE 80

Amendment

Brief Explanation

Biometrics

The new regulation on biometrics (Articles 80 to 84). The processing of biometric personal data, contrary to the ZVOP-2, is prohibited. Another law may stipulate the processing of biometric personal data and the conditions for its use, but it may also restrict the use of biometric personal data. It is

prohibited to link collections of biometric personal data with other collections and to enable the portability of this data, unless stipulated by another law. In the private sector, the limitation of permissible purposes remains, not only over employees but also, under certain conditions, over clients. In the public sector, biometrics must be regulated by law, and the requirement for a decision from the Information Commissioner remains in the private (and partially in the public) sector (unless the biometrics are under the control of the individual), with an added prohibition on obtaining biometric personal data in connection with marketing.

Definitions

The definitions from the General Regulation (Article 4) apply, in addition to new (e.g., linking) or amended (e.g., public sector) definitions from ZVOP-2:

- supervisory authority,
- supervisory persons,
- public sector,
- private sector,
- linking sign,
- court case,
- law,
- state security,
- criminal records,
- misdemeanor records,
- information society service,
- linking of data collections.

Recording of Entries

into and Exits

from Workspaces

The regulation is similar to that in ZVOP-1. Article 85 of ZVOP-2 stipulates that access to personal documents is permitted and specifies what may be recorded: personal name, number and type of official identification document, residential address, employment, type and registration number of the vehicle, and date, time, and reason for entering or exiting the premises. The vehicle registration number has been added, and the retention period has been shortened from 3 years to 2 years from the end of the calendar year.

Genetic Data

The new regulation in Article 81 of ZVOP-2 stipulates that genetic data of an individual (e.g., DNA material) may be processed when stipulated by another law, for the purposes of providing healthcare, or when processing is necessary for the execution of a contract concluded exclusively for the processing of genetic data in favor of the contracting party, who is the individual.

Exception for Family

and Private Use

The exception for family and private use (paragraph 1 of Article 7 of ZVOP-1) remains substantively unchanged and is regulated in paragraph 2 of Article 3 of ZVOP-2.

Exceptions Regarding Members of Certain Organizations

Exceptions regarding data on members of a political party, trade union, association, or religious community, as well as for personal data controllers with fewer than 50 employees, no longer apply.

Catalogs and Register

of Collections

The obligations regarding the acceptance of catalogs and the registration of collections in the register of collections with the Information Commissioner cease to apply; the obligation to accept records of activities under Article 30 of the General Regulation remains.

Direct Marketing

(Articles 72 and 73 of ZVOP-1) – the articles cease to apply

For direct marketing to individuals via electronic means (e.g., email, SMS, etc.), including marketing by phone and using telephone directories, the provisions of the Electronic Communications Act

(ZEKom-2) apply; for marketing by regular mail, the General Regulation applies. ZVOP-2 no longer regulates this specifically or otherwise.

Processing of Contact

Data

New provisions regarding the processing of contact data (Article 93 of ZVOP-2) are established. For the purposes of organizing official meetings, training, etc., and making public statements, except for conducting direct marketing, the use of individuals' contact data from publicly accessible sources or in the context of performing their public tasks is permitted, provided that individuals have voluntarily disclosed them or given consent.

PROTECTION OF PERSONAL DATA

PAGE 81

A set of data is defined: personal name, telephone number, email address or other communication number/identifier, employer/organization data, and data about the field of work, position, function, club membership, or individual hobbies. For the purposes of informing the public, a person from the public or private sector may process, including publication: personal names, titles, photographs, and videos of individuals obtained at events organized by this person within the scope of their tasks, authority, or activities, unless the individual has prohibited such processing.

Processing of Personal Data and Access to Public Information

Entities under the Access to Public Information Act (ZDIJZ) provide personal data to the public if such data is public by law or if there is a prevailing public interest for their disclosure in accordance with ZDIJZ. When the law stipulates the public nature of data or when it concerns data that is public information, the controller who holds such data may publicly disclose it (Article 74 of ZVOP-2).

Processing of Personal Data and the Media

The new regulation under Article 83 of ZVOP-2. Processing for the purposes of informing the public by the media, literary, artistic, or research creation, serious criticism, defense of a right, or protection of a legitimate interest and education is permissible if: the individual has given consent for processing, publication, or disclosure; the individual has already publicly disclosed or made available their personal data; the data has already been lawfully accessible to the public; the data was obtained based on the individual's presence in publicly accessible places or events where the individual cannot reasonably expect privacy protection given all circumstances; it concerns a lawful publication of an opinion or value judgment, and the publication is necessary to substantiate that opinion or value judgment; the personal data was obtained in another lawful manner; the public interest in informing the public outweighs the right to information and freedom of expression, or as stipulated by another law. The enforcement of individuals' rights takes place before the courts; unlawful disclosure of personal data is not permissible for the purposes of exercising freedom of expression.

Processing for Archival Purposes

Is permitted if stipulated by law. An individual does not have the right to access their own data in archival material under Article 15 of the General Regulation if providing information or copies of their personal data would require a manifestly disproportionate effort. The rights of the individual to rectify personal data due to inaccuracy or outdatedness, to erasure, to restriction of processing, to data portability, and to exercise the right to object (as defined by the General Regulation) are limited. An individual who claims inaccuracy or outdatedness of their personal data has the option to provide a supplementary statement indicating contrary facts, which is attached to the archival material or appropriately marked on the material where this statement is located. Article 71 of ZVOP-2 does not apply if the law governing the protection of documentary and archival material and archives stipulates otherwise.

Processing for Research Purposes

Processing of personal data for research (within the entity) remains permissible. Research organizations obtain personal data, including special categories of personal data, if such processing is permitted by another law or if the individual has not prohibited processing. Researchers must submit a description of the research ("elaborate"), and Article 69 of ZVOP-2 stipulates what it must contain and attach an impact assessment if required by the General Regulation. The controller may refuse to provide data under certain conditions. Individuals are not informed about processing for these

purposes unless the law stipulates otherwise. Data that was the subject of research is destroyed or irreversibly anonymized at the end of the research, except in exceptional cases. Research results are published in anonymized form, and exceptionally in pseudonymized form if publication of data in anonymized form is not possible for technical reasons or due to the pursuit of research objectives. There is also the possibility of contacting individuals to obtain consent for participation in the research (Article 70).

Processing for Statistical Purposes

Similar to the regulation for processing for archival purposes (limitations on individual rights, basis in sectoral law) – governed by Article 72 of ZVOP-2.

Publication of Contact Information

Article 106 of ZVOP-1 replaces Article 92 of ZVOP-2, which specifies which employee data may be publicly disclosed (e.g., on a website) or provided to the public. Individuals from the public or private sector may provide and publicly disclose: personal name, title or function, official telephone number, and official email address of leading individuals and those employees whose work is necessary for business dealings with clients.

Contractual Processing

ZVOP-2 does not significantly change the provisions of the General Regulation that replaced the requirements of ZVOP-1 regarding contractual processing. ZVOP-2 provisions regarding contractual processing in terms of regulating the mutual relationship and the rights and obligations of controllers and...

PROTECTION OF PERSONAL DATA

PAGE 82

processors is not otherwise regulated – the General Regulation applies, and processors must be aware that both the provisions of the General Regulation and numerous provisions of ZVOP-2 (e.g., regarding the protection of personal data that is the subject of the procedure, regarding processing logs and the security of personal data in the area of special processing, etc.) also apply to them.

Authorized persons for data protection (DPO)

In addition to the entities obligated under the General Regulation, an authorized person must be appointed by the entities under Article 22 of ZVOP-2 and some other subjects due to the broader definition of the public sector (e.g., private kindergartens and schools with public programs). A deadline is set for registration, publication, and notification of data to the Information Commissioner (8 days); those already appointed do not need to be reported again. ZVOP-2 only sets basic requirements: legal capacity, knowledge/experience, no criminal record; the DPO of a state authority must be from the public sector, while in other state authorities and in the private sector, the DPO can be external (from the public or private sector, by contract). There must be no conflict of interest, which is defined more precisely (e.g., information system manager, head of information security, director, etc.); specific provisions apply to certain authorities (e.g., courts, administrative units, ministries, trade unions).

Disclosure of personal data

In the public sector, data is disclosed if there is a basis in accordance with the General Regulation and based on the request under the first paragraph of Article 41 of ZVOP-2, unless another law provides otherwise. The recipient may process personal data only for the purpose for which it is disclosed, and it is provided free of charge unless the law provides otherwise. In the private sector, if there is a basis and an appropriate request. Article 41 defines the request, which must contain the following information: applicant, legal basis, purpose, which data is being disclosed, case number, indication of the authority, form, and method of acquisition; a deadline of 15 days from the complete request is set for disclosure, and in case of refusal/silence, the applicant may request a decision from the supervisory authority or has the option of judicial protection. The regulation does not interfere with the right to review and copy the file; traceability of disclosure is required (two years).

Linking of personal
data collections –
different regulation

A definition of linking has been added (Article 5); there is no longer a requirement for notification and obtaining a decision from the Information Commissioner; an explicit legal basis is only required for the exhaustively listed collections of personal data. An impact assessment must be made before linking, and consultation with the supervisory authority is required (Article 87 of ZVOP-2).

Transitional provisions

☐

ZVOP-2 allows for different time periods for adjustment (from the date of entry into force, i.e., January 26, 2023), namely:

☐

Special measures for ensuring the security of personal data in the area of special processing (Article 23) must be established within three years.

☐

The minister responsible for justice, in agreement with the minister responsible for health, after obtaining the prior opinion of the supervisory authority, shall adopt the regulation on charging costs within three months (fifth paragraph of Article 17).

☐

Authorized persons appointed by the heads of authorities within ministries before the entry into force of ZVOP-2 continue to perform the duties of the authorized person under ZVOP-2.

☐

Misdemeanor proceedings that were initiated with the Information Commissioner or in courts before the entry into force of ZVOP-2 shall be concluded in accordance with ZVOP-1, unless ZVOP-2 is more lenient for the perpetrator. Inspection supervision procedures initiated based on ZVOP-1 continue in accordance with ZVOP-2.

☐

The list of third countries from Article 66 of ZVOP-1 (transfer of data to third countries) is repealed.

☐

With the entry into force of this law, the Register of Personal Data Collections at the Information Commissioner ceases to operate.

☐

The keeping of processing logs shall be aligned with Article 22 of ZVOP-2 within two years.

☐

Slovenian accreditation shall begin the accreditation procedures on January 1, 2024; operators of applications shall submit them within six months after the deadline from the first paragraph of Article 121.

☐

Video surveillance in vehicles intended for public passenger transport shall be aligned with the provisions of Article 79 of ZVOP-2 within six months.

☐

There is no need to report information again if the data on authorized persons has not changed.

☐

The following shall cease to apply:

PROTECTION OF PERSONAL DATA

PAGE 83

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Regulation on the Methodology for Maintaining the Register of Personal Data Collections (Official Gazette of the Republic of Slovenia, No. 28/05 and 30/11);

-

Regulation on Obtaining Necessary Information for Deciding on the Transfer of Personal Data to Third Countries (Official Gazette of the Republic of Slovenia, No. 79/05);

-
Regulation on Charging Costs for Exercising the Right of an Individual to Access Their Own Personal Data (Official Gazette of the Republic of Slovenia, No. 85/07 and 5/12).

□

Until changes to the provisions regarding the amounts and ranges of fines established by the law governing offenses come into effect, fines for violations under Article 83 of the General Regulation are imposed in accordance with Article 83 of the General Regulation.

Transfers of Personal Data to Third Countries

The list of third countries under the Personal Data Protection Act (ZVOP-1) is repealed, and the relevant regulation remains in effect for the subjects to whom the General Regulation does not apply; otherwise, the provisions of the General Regulation apply.

Whistleblower with Special Status

If a person reports violations of their rights, they may obtain the status of a whistleblower with special status. The application must be submitted in accordance with the General Administrative Procedure Act (ZUP), and the supervisory authority has three months to make a decision, keeping the applicant informed of actions taken and the status of the case (see Articles 30 to 34 of ZVOP-2).

Retention Period for Personal Data

Article 21 of ZVOP-1 remains substantively unchanged. Article 43 of ZVOP-2 contains similar provisions, with a new requirement that the data controller must periodically and in a documented manner verify, considering the nature of the processed data and risks, whether the provisions on limiting the retention period are being observed.

Sanctions

The penal provisions of ZVOP-1 cease to apply; with the adoption of ZVOP-2, it will be possible to impose sanctions under the General Regulation, in the amounts specified by the regulation. Penalties for violations of the provisions of ZVOP-1 are specified, and penalties may also be imposed on responsible persons (in addition to legal entities).

Traceability of Personal Data Processing

ZVOP-2 refers to traceability of processing as "processing logs," which are explicitly required for certain collections (Article 22 of ZVOP-2). It specifies what must be recorded in them, for which processing actions, for what purposes they may be used, and a shorter retention period (Article 22 of ZVOP-2). Traceability is also required for access to and use of video surveillance recordings (Article 76 of ZVOP-2).

General Judicial Protection of Individual Rights

Newly regulated in Article 11 of ZVOP-2. An individual may request judicial protection of their rights at any time during the violation, without prior assertion of rights under other provisions of this law or the use of other legal remedies.

In addition to the cessation of the violation and the restoration of the lawful state, an individual may also request compensation for damages through judicial protection. If the violation has ceased, the individual may file a lawsuit to establish that the violation existed.

The Administrative Court decides according to the Administrative Dispute Act, and the individual may include a compensation claim in the lawsuit.

In proceedings before the Administrative Court, the public is excluded unless the court decides otherwise at the request of the individual for justified reasons. This does not apply to proceedings against controllers or processors regarding the processing of personal data in the area of state security.

Professional Supervision

Professional supervision is defined in more detail (Articles 89, 90, and 91 of ZVOP-2). The professional supervisor processes all personal data that are processed by the data controllers over whom they exercise professional supervision; they have the right to access, print, transcribe, or copy, and are obliged to protect their confidentiality. In the report or assessment upon completion, they only record those personal data that are necessary to achieve the purpose of professional supervision. The costs of access, printing, transcribing, or copying are borne by the controller. Provisions for notification and the possibility of contacting other persons are specified. If special categories of personal data are

processed, an official record or other official documentation is made in the matter of the authority.

Enforcement of Individual Rights

Regarding the rights or requests of individuals, the General Regulation and Chapter 2 of Part I of ZVOP-2 (Articles 12 to 20) apply. The General Administrative Procedure Act (ZUP) is applied mutatis mutandis, and the deadlines from the General Regulation apply. ZVOP-2 specifies: the procedure for handling requests (Articles 13 and 14), the components of the decision (Article 15). When the controller complies with the request, they do not issue a separate decision but make an official record of it.

PROTECTION OF PERSONAL DATA

PAGE 84

the record and informs the individual of the decision. When the controller does not comply with the request, it issues a decision that, in addition to the elements required by the Administrative Procedure Act (ZUP), also includes the elements specified by the Personal Data Protection Act (ZVOP-2). If the individual requests it, the controller may also inform them of the personal data orally. The provision of information regarding personal data is free of charge (unless it involves obviously unfounded or excessive costs; in this case, the controller may comply with the request and charge reasonable costs, i.e., only the material costs of providing information, messages, responses, or executing the requested action; the regulation will govern the amount of costs, the method of charging, and notification about costs). The individual must be informed of possible costs in advance.

Protection of personal data of deceased persons

The provisions are similar to those in ZVOP-1, but partially modified. Data about deceased persons is provided to users who are authorized by law for processing and to those users who demonstrate a legal interest in asserting rights before public sector entities. Upon their request, it is also provided to the spouse, cohabiting partner, children, parents, or heirs, unless the deceased individual has expressly prohibited the controller from disclosing this information in writing or unless another law provides otherwise. The use of data for scientific research, historical research, educational, statistical, or archival purposes, as well as for publication or other processing in historical and other educational publications, is also regulated.

The provisions of ZVOP-2 apply to personal data of deceased persons for 20 years after their death, unless another law provides otherwise.

Video surveillance

The purposes of implementing video surveillance remain similar, as does the requirement to publish (in more detail) a notice, inform employees, and adopt a written decision on the implementation. There is no longer a specific regulation for video surveillance in multi-apartment buildings (blocks); the notice must contain more information (some of which can be online), and it is prohibited in hotel rooms and similar spaces where a higher level of privacy is reasonably expected. New regulations are established for video surveillance of passenger traffic and video surveillance in public areas. Video surveillance may only be used by authorized personnel, and traceability of use and access must be maintained. In the case of surveillance within workplaces, consultation with union representatives is required, while for road surveillance, an impact assessment and the opinion of the Information Commissioner are required. The use of automatic license plate recognition systems and biometrics in public areas is prohibited unless another law provides otherwise.

Protection of sensitive personal data during transmission via unprotected electronic channels

There is no longer a requirement that sensitive personal data (e.g., health data, union membership) must be encrypted when sent via unprotected electronic channels (e.g., via regular email).

Protection of personal data subject to proceedings

ZVOP-2 also contains provisions relating to the protection of personal data that are subject to proceedings (Article 21 of ZVOP-2) – this concerns when and how data controllers must protect requested personal data in the event that certain personal data is required in a specific procedure (e.g., inspection, in the procedure for an individual's request for access to their own data, etc.). It is essential that the obligated party must not delete or alter the necessary data while the procedure is

ongoing (until the decision becomes final).

PROTECTION OF PERSONAL DATA

PAGE 85

3.5.2 NOTIFICATION UPON THE ADOPTION OF ZVOP-2

In 2023, the Information Commissioner continued numerous preventive activities aimed at ensuring compliance with regulations without the need for the introduction of inspection procedures. A significant part of the activities focused on raising awareness among the general and professional public regarding the changes brought about by ZVOP-2, as this means that the obligated parties must comply with both the General Regulation and ZVOP-2.

The Information Commissioner first prepared a comprehensive content overhaul of the website, intending to explain in an understandable manner what ZVOP-2 regulates, when the obligations under ZVOP-2 come into effect, and what the transitional provisions are, as well as to provide a comparison of the provisions of ZVOP-1 and ZVOP-2. The website was updated, and explanations of individual key parts of ZVOP-2 were published, along with links to guidelines and other useful materials.

Information on key aspects of the new law was updated, namely³:

- Consent,
- Contractual processing,
- Video surveillance,
- Biometrics,
- Data security,
- Reporting security breaches,
- Authorized persons for personal data protection (DPO),
- Data protection impact assessments,
- Informing individuals about processing,
- Linking personal data collections,
- Transfer of personal data to third countries and international organizations,
- Record of processing activities,
- Rights of individuals,
- Powers of the Information Commissioner,
- Inspection supervision or supervisory procedures,
- Codes of conduct.

Particular attention in 2023 was also given to the revision and updating of the guidelines of the Information Commissioner due to the adoption of ZVOP-2. The following revised guidelines were published⁴:

- Guidelines for administrators of multi-apartment buildings,
- Guidelines on the use of cookies and similar tracking technologies,
- Guidelines regarding the implementation of video surveillance,
- Guidelines for event organizers,
- Guidelines regarding biometrics under ZVOP-2,
- Guidelines regarding the transfer of personal data to third countries and international organizations.

3.5.3 ASSESSMENTS OF IMPACTS ON PERSONAL DATA PROTECTION

Assessments of impacts on personal data protection are one of the key tools of the principle of accountability, aimed at the timely identification and management of risks associated with personal data protection. Impact assessments are particularly important when it comes to new projects that foresee mass processing of personal data, especially when involving the use of modern technologies, vulnerable groups of individuals, or the processing of special categories of personal data. In the preliminary consultation process, as defined by Article 36 of the General Regulation, obligated parties can submit their assessments of impacts on personal data protection for prior opinion to the Information Commissioner, thus obtaining views and recommendations regarding the prepared impact assessments. This is particularly relevant in the case of large-scale processing.

Individual items on the list contain hyperlinks to the relevant section on the website of the Information Commissioner.

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The guidelines are available at the link: <https://www.ip-rs.si/publikacije/priro%C4%8Dniki-in-smernice/>.

PROTECTION OF PERSONAL DATA

PAGE 86

projects that involve extensive processing of personal data, one of the key tools to timely and comprehensively address the risks of potential violations of personal data protection during the implementation of the project. The opinion of the Information Commissioner may highlight unidentified risks and inadequate measures for managing these risks, and by timely risk management, the obligated parties can avoid significant costs of remedial measures, high penalties for violations, and damage or even loss of reputation with clients and the public.

An important novelty in the field of impact assessments was primarily brought about by the provision of the third paragraph of Article 24 of the Personal Data Protection Act (ZVOP-2), which introduces so-called legislative impact assessments. This provision requires the proposers of regulations that establish the processing of personal data for which an impact assessment must be prepared to conduct a legislative impact assessment and submit it for preliminary consultation to the Information Commissioner. Consequently, the number of received impact assessments regarding personal data protection has significantly increased. While 14 opinions on impact assessments were issued in 2022 (for comparison, only six opinions were issued in 2021), in 2023, the number of issued opinions on impact assessments more than doubled – the Information Commissioner issued 29 opinions in the preliminary consultation process.

ZVOP-2, in addition to legislative impact assessments, establishes additional obligations regarding impact assessments, specifically concerning the following areas:

- keeping records of processing activities and impact assessment (Articles 22 and 24 of ZVOP-2),
- processing personal data for research purposes (Article 69 of ZVOP-2),
- video surveillance of road traffic (Article 80 of ZVOP-2),
- impact assessment when linking personal data collections (Article 87 of ZVOP-2).

The area of national security is also specifically regulated, whereby for the processing of personal data in the field of national security, the competent authority in the field of national security prepares an impact assessment with the appropriate application of the provisions of this article.

In 2023, the Information Commissioner issued opinions in the preliminary consultation process regarding the following topics on so-called project impact assessments:

- Opinion regarding the impact assessment on personal data protection related to the development of a platform in the field of preventing money laundering,
- Opinion regarding the impact assessment related to the introduction of an intelligent analytics system for counting objects in front of information screens,
- Opinion regarding the impact assessment on personal data protection related to the information system of the state attorney's office,
- linking collections in the public sector,
- Opinion regarding the impact assessment related to the video surveillance of public areas,
- Opinion regarding the impact assessment on personal data protection related to the establishment of a parking system using a license plate recognition system (ANPR),
- Opinion regarding the impact assessment related to personal data protection in the establishment of a business analytics system in the state administration,
- Opinion regarding the impact assessment on data protection in relation to the electronic acquisition of data from the Land Registry in the processes of cultural heritage protection based on the Cultural Heritage Protection Act (ZVKD-1),
- Opinion regarding the impact assessment related to the protection of personal data processed within the digital platform of a smart city,
- Opinion regarding the impact assessments related to the video surveillance of public areas (city markets),
- Opinion regarding the impact assessment on data protection related to the application of the

misdemeanor authority,

- Opinion regarding the impact assessment on personal data protection related to the installation of an automatic barrier at the entrance to a landscape park,

PROTECTION OF PERSONAL DATA

PAGE 87

- Opinion regarding the impact assessment on personal data protection related to the establishment of a multimedia contact center for client information.

In 2023, we issued opinions regarding the following legislative impact assessments:

- Opinion regarding the impact assessment on data protection related to Article 12 of the Draft Law on Amendments and Supplements to the Companies Act (ZGD-1L; EVA 2023-2180-0001),
- Opinion regarding the impact assessment on data protection related to the Draft Law on Amendments and Supplements to the Law on the Supervision of the State Border (two opinions),
- Opinion regarding the impact assessment on data protection related to the Draft Law on Temporary Protection of Displaced Persons (two opinions),
- Opinion regarding the impact assessment on data protection related to the proposal for the Law on Automated Data Acquisition on the Processing of Personal Data (two opinions),
- Opinion regarding the impact assessment on data protection related to the proposal for the Law on Amendments and Supplements to the Law on Financial Operations, Insolvency Proceedings, and Forced Termination,
- Opinion regarding the impact assessment on data protection related to the Draft Law on Amendments and Supplements to the Law on the Court Register (EVA 2022 2030 0007),
- Opinion regarding the impact assessment on data protection related to the draft proposal for amendments to the ZOFVI – regulation of the processing of personal data from collections on mobility capabilities and morphological characteristics maintained by schools under sectoral laws, and the corresponding impact assessment regarding personal data protection,
- Opinion regarding the impact assessment on data protection related to the proposal for the Law on Aviation,
- Opinion regarding the impact assessment on personal data protection related to the proposal for the Law on Emergency Measures in the Field of Health Care,
- Opinion regarding the impact assessment on personal data protection related to the Draft Law on the Health Information System.

We assess that the inclusion of the requirement for legislative impact assessments on personal data protection in ZVOP-2 (Article 24) has significantly influenced the higher quality of regulations in terms of respecting the right to personal data protection, but challenges are evident in the timeliness of preparing legislative impact assessments.

Infographic regarding the impact assessment on personal data protection in the preparation of regulations.

PROTECTION OF PERSONAL DATA

PAGE 89

3.5.4 AUTHORIZED PERSONS FOR DATA PROTECTION

The designation of authorized persons for data protection (English: Data Protection Officer; DPO) represents an important duty, especially for larger controllers and processors of personal data. The authorized person should perform advisory and supervisory tasks in the field of personal data protection and act as an internal auditor for personal data protection, who, in addition to monitoring, alerts controllers and processors to their obligations and educates and raises awareness among employees. By the end of 2023, the Information Commissioner had been notified of 3,340 authorized persons for data protection. Information about the authorized person for personal data protection can be easily communicated and corrected using the online form at

<https://www.ip-rs.si/pooblascene-osebe>. We estimate that the majority of obligated entities have fulfilled their duties regarding the submission of data about authorized persons to the register of authorized persons; therefore, from the perspective of the register, it is now predominantly about

maintenance activities in the event of changes to the data (e.g., upon the dismissal or appointment of new authorized persons).

3.5.5 EDUCATIONAL AND AWARENESS ACTIVITIES

In 2023, the Information Commissioner continued to provide users with essential information about key areas of legislation in a user-friendly manner on the subpage Key Areas, where individual topics (e.g., contractual processing of personal data) are addressed in an understandable way, and users have key information about this area in one place, references to relevant articles of the General Regulation and ZVOP-2, and links to useful materials such as guidelines (from the Information Commissioner and EOVP), infographics, samples, and forms.

The Information Commissioner also prepared three new infographics (assessments of the impact on personal data protection in the preparation of regulations (legislative impact assessments), on the approval and accreditation under the General Regulation and ZVOP-2, and on the concept of personal data). Obligated entities can freely use these infographics as part of their educational activities.

In 2023, the Information Commissioner regularly issued opinions for the general and professional public – issuing 1,011 written opinions in response to requests from individuals and organizations and 93 comments on regulations. If an opinion was issued on the impact assessment along with the opinion on the proposed regulation, the opinion on the impact assessment was also published. We have also revamped the search engine for written opinions, so it is now possible to search separately for opinions from the time before the General Regulation, after the adoption of the General Regulation, and before the adoption of ZVOP-2, as well as for opinions issued after the adoption of ZVOP-2. In addition to written opinions, 1,569 consultations were also conducted by phone.

The European Data Protection Day, celebrated annually on January 28, was marked by the Information Commissioner in 2023 with the organization of an event focused on the implementation of the new Personal Data Protection Act (ZVOP-2). The Information Commissioner presented the essential challenges during the application of the General Data Protection Regulation without ZVOP-2 and with ZVOP-2, followed by a roundtable with experts in the field of personal data protection. Participants presented their views on the process of adopting ZVOP-2, individual provisions of the law, the imposition of sanctions before and after the adoption of ZVOP-2, and significant novelties for obligated entities, individuals, and supervisory authorities.

In 2023, the Information Commissioner also awarded certificates to organizations that obtained certification under the ISO/IEC 27001:2013 standard in the field of information security in the past year.

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<https://www.ip-rs.si/zakonodaja/reforma-evropskega-zakonodajnega-okvira-za-varstvo-osebni-podatkov/klju%C4%8Dna-podro%C4%8Dja-uredbe/>

6

Opinions are available at the link: <https://www.ip-rs.si/mnenja-zvop-2/>.

7

Opinions are published at the link: <https://www.ip-rs.si/zakonodaja/pripombe-informacijskega-poobla%C5%A1%C4%8Denca-na-predloge-predpisov/>.

PROTECTION OF PERSONAL DATA

PAGE 90

In 2022, a record number of organizations – 30 – obtained certification. By obtaining the certificate, recipients demonstrate a high level of awareness regarding the importance of information protection and, consequently, personal data protection, and systematically invest in appropriate measures to ensure data security. The Information Commissioner promotes the most established standard in the field of information protection and, thus, personal data protection by granting special recognitions.

Traditionally, the Privacy Ambassador award was also presented, which for the year 2022 was awarded to Assoc. Prof. Dr. Blaž Markelj, Head of the Department of Information Security at the Faculty of Security Sciences of the University of Maribor, for successfully connecting stakeholders, organizing current conferences, and working with youth in the field of information security.

As every year, a large number of pro bono lectures on personal data protection were also conducted,

with 73 such lectures held in 2023. The Information Commissioner paid significant attention to raising awareness among data controllers regarding the obligations introduced by the ZVOP-2: among other things, several repetitions of lectures for the public sector were organized, attended by more than 1,000 participants, and a special seminar was also organized on the topic of exercising individuals' rights under the General Regulation and ZVOP-2. Representatives of the Information Commissioner actively participated in conferences, seminars, and other events.

The Information Commissioner shares information, positions, and opinions also through social media platforms Facebook and LinkedIn, where it primarily highlights important news in the field of privacy protection and publishes links to relevant publications. Every month, subscribers to the e-newsletter receive a newsletter with links to current content, opinions, and other publications related to its activities. On the LinkedIn network, which is intended for professionals, the Information Commissioner's posts are followed by 1,871 followers, while on Facebook, which is primarily aimed at the general public, there are 2,232 followers. In 2023, the Information Commissioner:

- published 52 messages on LinkedIn,
- published 36 posts on Facebook, and
- sent 12 newsletters.

3.5.6 PREVENTIVE ACTIVITIES FOR COMPLIANCE

In 2023, the Information Commissioner also carried out preventive activities for compliance (privacy sweep), participating in the first coordinated enforcement action (Coordinated Enforcement Framework – CEF) of the European Data Protection Board (EDPB) on the topic of data protection officers. An invitation to complete a coordinated questionnaire was sent to the entire registry of data protection officers, and we received nearly 1,000 responses. Data protection supervisory authorities then analyzed the situation in their respective countries and prepared measures to improve the situation, as outlined in the unified report. The list of recommendations and measures includes proposals for increasing the resources that organizations allocate to the work of data protection officers, more training, and measures to avoid conflicts of interest.

The Information Commissioner also conducted a preventive activity to ensure compliance in the area of implementing GPS systems in companies in the public utility sector; the measure was addressed to more than 100 data controllers through the Chamber of Public Utilities, and the activity was necessary primarily because these systems are increasingly used in this area, while issues arise in the absence of explicit legal regulation, particularly regarding the respect for the principles of proportionality and transparency.

The report is available at the following link:

https://www.edpb.europa.eu/system/files/2024-01/edpb_report_20240116_cef_dpo_en.pdf.

PROTECTION OF PERSONAL DATA

PAGE 91

At the end of 2023, a preventive activity was also carried out to ensure compliance in the area of informing individuals (Article 13 of the General Regulation) regarding the processing of personal data in speed measurement, during which we addressed 45 data controllers in the field of municipal and inter-municipal warden services, inspectorates, and agencies. Informing individuals about the processing of personal data, as required by Articles 13 and 14 of the General Regulation, remains one of the areas where we observe significant shortcomings in practice, as the information provided to individuals is often not comprehensive. Additionally, it appears that more attention needs to be paid to the manner of informing, as Article 12 of the General Regulation requires that information for individuals be provided in clear and understandable language and in an easily accessible manner.

PROTECTION OF PERSONAL DATA

PAGE 92

3.6. INTERNATIONAL COOPERATION

3.6.1 COOPERATION IN THE EUROPEAN DATA PROTECTION BOARD

The European Data Protection Board (EDPB) is an independent European body established by the General Data Protection Regulation; its main objective is to ensure consistent, coordinated, and effective implementation of personal data protection rules across the European Union. The EDPB is

composed of representatives from national supervisory authorities from all EU member states, including Slovenia, as well as Iceland, Liechtenstein, and Norway, which are part of the European Economic Area (EEA). The primary purpose of the EDPB is to protect the fundamental rights of individuals through personal data protection in the digital age, to enable the free flow of personal data within the EU, while ensuring their protection. Slovenia's participation in the board represents an important part of its efforts to promote international cooperation in the field of personal data protection. In 2023, the presidency of the EDPB was taken over by Anu Talus, the head of the data protection supervisory authority from Finland.

The key competences of the board within the framework of cooperation procedures of supervisory authorities are:

- the adoption of legally binding decisions of the board within the compliance mechanism regarding national supervisory authorities, to ensure consistent application of the General Regulation;
- the adoption of general guidelines for a more detailed definition of the conditions of European data protection legislation, thereby providing its stakeholders with a consistent interpretation of their rights and obligations;
- advising the European Commission on data protection issues and the preparation of European regulations in the field of data protection;
- promoting cooperation and the exchange of experiences among national data protection supervisory authorities. The compliance mechanism, as defined in the General Regulation, takes place through:
 - the issuance of opinions by the EDPB to ensure consistent application of European data protection legislation (according to Article 64 of the General Regulation), including in certain cases regarding the adoption of a list of processing activities subject to the requirement for a data protection impact assessment; regarding codes of conduct with cross-border implications; and in certain cases regarding the approval of criteria for authorizing a monitoring body for compliance with the code of conduct; regarding the establishment of standard provisions on data protection concerning data transfers to third countries; regarding the approval of contractual clauses or binding corporate rules;
 - the resolution of disputes between supervisory authorities (according to Article 65 of the General Regulation), e.g., regarding conflicting positions on the content of a decision in cross-border cases; on which supervisory authority is the lead in a specific cross-border procedure; and in cases of non-compliance with the board's opinion by a specific supervisory authority;
 - the resolution of urgent procedures (according to Article 66 of the General Regulation) by adopting temporary measures in exceptional cases when action is necessary to protect the rights and freedoms of individuals.

The EDPB is divided into two main parts, namely the plenary session and expert subgroups. The plenary session is the decision-making body of the EDPB, responsible for adopting guidelines, opinions, recommendations, and other documents related to personal data protection. Representatives of the Information Commissioner actively participated in 15 plenary sessions in 2023. Expert subgroups were established specifically to address significant issues related to personal data protection. Their members also operate within various working groups established according to the need for coordination on specific topics. In 2023, representatives of the Information Commissioner participated in 11 regular expert subgroups and in 12 special working and coordination groups or committees on specific topics. They attended 147 meetings.

The plenary session meets monthly, as do the expert subgroups, to discuss current issues related to personal data protection and, depending on their area of work, prepare guidelines and opinions of the

board, as well as address current challenges, with...

PROTECTION OF PERSONAL DATA

PAGE 93

which individual supervisory authorities encounter and which are significant in the broader European context, either due to cross-border data processing or due to important issues of uniform interpretation of European regulations. Representatives of all supervisory authorities, including representatives of the Information Commissioner, participate in these meetings either physically in Brussels or virtually. The meetings and thus the cooperation of all supervisory authorities within the EDPB are essential for ensuring consistent implementation of the General Regulation across the EU and for coordinating the efforts of national authorities for effective personal data protection. By participating in these meetings, Slovenia contributes to the development of important guidelines and recommendations regarding personal data protection and stays informed about the latest findings in this rapidly evolving field. The Expert Subgroup on Borders, Travel, and Criminal Prosecution plays a key role in addressing complex legal and technical issues related to cross-border criminal prosecution and security cooperation in the field of personal data protection. It focuses on providing guidelines on topics such as: the Directive on Criminal Prosecution (the so-called LED Directive), cross-border requests for e-evidence, decisions based on adequacy decisions regarding the transfer of personal data to a third country or international organization, access of law enforcement and national intelligence agencies in third countries to data, passenger data records, and border controls. Its work is important for ensuring effective cross-border cooperation among law enforcement authorities and coordinating their efforts while safeguarding the fundamental rights and freedoms of individuals.

The Expert Subgroup on Compliance, E-Government, and Health is responsible for preparing guidelines and recommendations regarding codes of conduct, certification, and accreditation. In addition, the subgroup focuses on ensuring compliance with public law and e-government policies and addressing concerns related to the processing of personal data for scientific research and health purposes. The subgroup works closely with the Expert Subgroup on Technology, thereby ensuring that practices related to data protection impact assessments are included in its work; it also collaborates with this group on issues of privacy by design and by default.

The Expert Subgroup on Cooperation primarily focuses on ensuring effective cooperation mechanisms among supervisory authorities established by the General Regulation. Its main tasks include providing guidelines on procedural issues related to the cooperation mechanism and examining international mutual assistance and other cooperation tools for enforcing the General Regulation outside the EU.

The Expert Subgroup on Enforcement is responsible for ensuring effective enforcement of the General Regulation. In this regard, it analyzes practical experiences with Chapters VI, VII, and VIII of the General Regulation and determines whether additional guidelines and clarifications are needed.

Furthermore, the subgroup monitors supervisory activities and provides guidelines on practical issues related to inspections, including exchanging opinions on specific cases. The subgroup works closely with the Cooperation Subgroup to update existing cooperation procedures and ensure effective implementation of inspections. The subgroup is tasked with guiding the practical application of Chapters VII and VIII of the General Regulation and also collaborates closely with the Working Group on Administrative Fines. The subgroup is also responsible for procedures under Articles 65 and 66 of the General Regulation concerning cross-border cases.

The Expert Subgroup on Financial Matters focuses on the area of enforcing the principles of personal data protection in the financial sector. This includes a range of issues such as automatic exchange of personal data for tax purposes, the impact of the so-called FATCA (Foreign Account Tax Compliance Act) on personal data protection, and the interplay between the European Payment Services Directive (PSD2 Directive) and the General Regulation. The subgroup also deals with balancing personal data protection with obligations imposed by regulations on anti-money laundering (AML) and counter-terrorism financing (CTF).

PROTECTION OF PERSONAL DATA

PAGE 94

The expert subgroup on international transfers deals with ensuring the secure cross-border transfer of

personal data. The subgroup reviews decisions of the European Commission regarding which countries offer adequate measures for the protection of personal data and is also responsible for preparing guidelines for public authorities and other organizations regarding compliant transfers of personal data outside the EU. The subgroup also addresses the use of certification and codes of conduct as appropriate tools for transfer and provides information on how the provisions of the General Regulation align with other regulations when data is transferred internationally. Additionally, subgroup members exchange information on the review of Binding Corporate Rules (BCR) and ad hoc contractual clauses in accordance with Article 64 of the General Regulation.

The expert subgroup for information technology users focuses on the development and testing of practical information technology tools used by the EDPB. It collects user feedback on information technology systems and adjusts them accordingly. The subgroup also discusses other business needs, such as tele- and video conferencing systems, the IMI system (Internal Market Information System), and other tools to support the work of the board.

The expert subgroup on key provisions focuses on providing guidelines on the fundamental concepts and principles of the General Regulation. The subgroup offers guidelines on key provisions in Chapters I and II of the General Regulation, which cover the scope of the regulation and its fundamental principles, as well as guidelines for Chapters III and IV, which address the rights of individuals and the role of the Data Protection Officer (DPO), and also guidelines for Chapter IX of the General Regulation, which addresses specific cases of processing, such as processing for archiving purposes or processing in the public interest.

The expert subgroup on social media focuses on analyzing social media platforms and the functions they offer, such as user targeting, personalization, user identity verification, analytics, and content publishing. In doing so, they assess the activities of personal data processing related to such functionalities and the potential risks that such processing poses to the rights and freedoms of individuals. The subgroup also develops guidelines and collects examples of best practices for the use and offering of social media functions, particularly for economic or political purposes. Members of the subgroup also assist other subgroups by suggesting important topics for oversight and collaborating with them to develop a range of other EDPB guidelines or update existing guidelines.

The expert subgroup on strategic advice provides guidance on important issues affecting the entire EDPB. This includes discussions on the board's strategy and its work programs for various expert subgroups. Members of the subgroup also help clarify issues that other expert subgroups may not be able to resolve. The expert subgroup on strategic advice acts as a support system for the entire EDPB, providing strategic direction on key issues to ensure the effective implementation and enforcement of the General Regulation.

The expert subgroup on technology focuses on issues related to the protection of personal data in the use of modern technologies in the digital age. The subgroup prepares guidelines on topics such as e-privacy, encryption of personal data, data protection impact assessments (DPIA), and data breach notifications (DBN notifications). The subgroup also monitors emerging technologies and innovations in society and assesses potential privacy risks they may pose. The subgroup also provides opinions on technological matters that are important for other expert subgroups.

In 2023, the EDPB published several general guidelines, for example:

- Guidelines 02/2023 on the technical scope of Article 5 of the ePrivacy Directive, which explain which technical processes and operations, particularly in light of new technologies, fall within the scope of the directive.
- Guidelines 01/2023 on Article 37 of the Directive on the protection of individuals in the processing of personal data,

PROTECTION OF PERSONAL DATA

PAGE 95

processed by competent authorities for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or enforcing criminal sanctions. The guidelines clarify the rules regarding the transfer of data to third countries by competent authorities.

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Updates to the Guidelines 05/2021 regarding the interplay of Article 3 of the General Regulation and provisions concerning transfers to third countries, which explain the relationship between the territorial application of Article 3 and the rules on data transfer. The guidelines contain specific examples for data controllers.

•

Updates to the Guidelines 07/2022 on certification as a tool for data transfers, providing clarifications regarding the practical application of this tool when it comes to transfers of data to third countries. The guidelines complement Guidelines No. 1/2018 on certification, which generally cover the area of validation under the General Regulation.

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Updates to the Guidelines 03/2022 on misleading patterns and social networks, which explain what constitutes misleading patterns on these platforms and how they violate the provisions of the General Regulation, as well as providing recommendations.

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Following a public consultation, the final version of Guidelines 01/2022 regarding the right of access to one's own data was adopted.

In the area of advising the European Commission on data protection issues and the preparation of European legislation in the field of data protection, the EDPB in 2023 worked on the following areas:

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The EDPB prepared Opinion 5/2023 regarding the draft decision on the adequacy of the EU-U.S. data privacy framework, emphasizing essential supplements to the data protection system in the U.S. and a new mechanism for defending rights accessible to individuals. At the same time, the opinion expresses concerns regarding the implementation of individual rights, further transfers, the scope of exceptions, and temporary mass data collection, as well as the functioning of the defense mechanism in practice.

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The EDPB, together with the European Data Protection Supervisor, issued an opinion on the proposal for a regulation on the digital euro as a central bank digital currency. The digital euro is intended to provide individuals with the ability to make payments electronically, online, and offline, serving as an additional means of payment alongside cash. The opinion highlights aspects of personal data protection in the use of the digital euro and provides various recommendations. Individuals should always have the option to choose between paying with the digital euro or cash.

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The EDPB prepared a letter regarding data sharing under the legislation for preventing money laundering and terrorist financing (AML/CTF).

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The EDPB adopted a report on the implementation of the General Regulation, issued as part of the evaluation regularly conducted by the European Commission. The report indicates that the implementation of the General Regulation over the past five and a half years has been successful and that it is premature to consider changes to the regulation. At the same time, the EDPB emphasizes the urgent need for the swift adoption of the so-called procedural regulation, which will more specifically prescribe the procedures for cooperation in cross-border supervision. The EDPB stresses that supervisory authorities need sufficient resources to carry out their responsibilities.

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The EDPB, together with the European Data Protection Supervisor, issued Opinion 01/2023 on the proposal for a regulation establishing additional procedural rules regarding the enforcement of Regulation (EU) 2016/679. The regulation is intended to more specifically prescribe procedural steps and ensure compliance in cross-border supervisory procedures that leading and concerned authorities will have to follow.

In the context of promoting cooperation and the exchange of experiences among national data protection supervisory authorities, the EDPB conducted dispute resolution procedures by the committee under Article 65 of the General Regulation and adopted two binding decisions, as presented in section 3.2.8 (in the cases of Meta and TikTok).

In 2023, the EDPB also adopted an urgent binding decision under Article 66 of the General Regulation,

concerning the processing of personal data by Meta Ireland Limited, regarding the legal bases on which the company processes users' personal data for the purpose of behavioral advertising. The binding decision indicates that in this case, the processing cannot be based on the legal basis of a contract.

PROTECTION OF PERSONAL DATA

PAGE 96

with the user or based on the legitimate interest of the company. Based on this decision, the Irish supervisory authority has adopted a final decision, which is available in the register of final decisions under Article 60 of the General Regulation.

In addition to the listed tasks, the EDPB also issues opinions on compliance (so-called consistency opinions) under Article 64 of the General Regulation regarding all questions of general application of the provisions of the General Regulation and questions that have effects in more than one Member State. National supervisory authorities may request the EDPB for an opinion on these matters when it concerns:

- processing actions for which a data protection impact assessment (DPIA) is required,
- codes of conduct related to processing activities,
- criteria for the accreditation of certification bodies and certification criteria,
- standard contractual clauses for the protection of personal data, and
- binding corporate rules.

Opinions on compliance are binding for the relevant supervisory authorities and must be taken into account when making final decisions on the matter, thereby helping to ensure that the implementation of the General Regulation is consistent across the EU. In 2023, the EDPB issued 37 such opinions, specifically on binding corporate rules (27), certification criteria (1), criteria for the accreditation of certification bodies (6), and codes of conduct (3). Among the issued opinions is Opinion 38/2023 regarding the criteria for the accreditation of certification bodies, which was prepared by the Information Commissioner in accordance with the third paragraph of Article 43 of the General Regulation. Following the adoption of ZVOP-2, preparations for the processes of accreditation and certification under the General Regulation have also commenced in Slovenia.

As part of its strategy for enhanced cooperation among supervisory authorities between 2021 and 2023, the EDPB established a support group of experts aimed at providing substantive support to EDPB members in their supervisory activities regarding issues where they may require additional assistance. The experts come from various fields of personal data protection, covering expertise in areas such as cloud services, anonymization techniques, behavioral advertising, artificial intelligence, digital law, etc. The purpose of establishing this group is to strengthen cooperation and solidarity among members by exchanging and enhancing expert knowledge across the EU and collectively addressing the operational needs of individual supervisory authorities.

In addition to the above, the EDPB, in accordance with its strategy for enhanced cooperation, has also begun to operate within the framework of a coordinated joint supervisory action, which provides a structure for recurring annual coordination of supervisory measures regarding a specific topic. The goal is to promote compliance, empower individuals to whom personal data relates, and raise awareness among all stakeholders through joint measures and actions in the area that the EDPB selects as a priority for that year.

The theme of the coordinated joint supervision for 2023 was the position of data protection officers (so-called DPOs). A total of 25 supervisory authorities from the EU participated in the coordinated supervisory action, including the Information Commissioner. The report of the coordinated action is available on the EDPB website and highlights some concerns and challenges. The results of the action are generally encouraging, as most data protection officers assert that they possess the necessary knowledge and skills to perform their duties and that they receive regular training. They have clearly

defined tasks according to the General Regulation and state that necessary consultations are conducted with them and that their opinions are taken into account quite well. However, for some data protection officers, their work is also a challenge, and therefore the report lists recommendations for organizations on how to strengthen the role of data protection officers and how to comply with the General Regulation.

In 2023, representatives of the Information Commissioner also participated in numerous working groups.

9

https://www.edpb.europa.eu/our-work-tools/consistency-findings/register-decisions/2023/enforcement-notice-matter-meta_en

10

For more information on the call from the EDPB and topics, see: https://edpb.europa.eu/system/files/2022-02/call_for_expressions_of_interest_support_pool_of_experts.pdf.

11

https://www.edpb.europa.eu/our-work-tools/our-documents/other/coordinated-enforcement-action-designation-and-position-data_en

PROTECTION OF PERSONAL DATA

PAGE 97

and in coordination groups covering specific key areas. A few groups are briefly presented below. The Working Group on Administrative Fines is preparing guidelines to ensure the consistency of calculations of administrative fines in specific procedures in accordance with the General Regulation. The purpose of these guidelines is to ensure clarity and consistency in the calculation of administrative fines across the EU, in order to ensure fair and uniform accountability of all controllers and processors for violations of the General Regulation, regardless of where in the EU the processing of personal data takes place. In preparing the guidelines, the Working Group also considers the proportionality of administrative fines and other factors that may affect their calculation, such as the nature and severity of the violation and the financial resources of the organization. In 2023, the Working Group revised Guidelines No. 04/2022 on the calculation of administrative fines in accordance with the General Regulation, which serve to harmonize the methodology that supervisory authorities should use when calculating the amount of administrative fines for potential violations of personal data protection. The Cookie Working Group focused on analyzing various legal issues and potential violations related to the implementation of cookies on websites. The aim of the Working Group was to provide support for national activities in conducting such oversight by formulating a joint report. The purpose of the Working Group was to harmonize the procedure for monitoring websites in relation to cookies and to achieve as uniform an interpretation of the rules by all competent supervisory authorities as possible. At the beginning of 2023, the group issued a joint report, highlighting practices in the use of cookies that do not meet the requirements of applicable legislation (in this regard, the Information Commissioner updated its guidelines on cookies):

1. The consent mechanism does not include a button to reject cookies in the first step.
2. Pre-checked boxes in consent mechanisms do not meet the requirements of valid consent.
3. Valid consent is not possible when the option to reject cookies is presented only in text or in a link that is not graphically as prominently displayed as the button for confirming consent or is located outside the area where consent can be given.
4. Valid consent is not possible when the option to reject is provided by a button, but the contrast between the button color and the text is so low that this option is difficult to read.
5. Cookies cannot be loaded on the legal basis of legitimate interest under the General Data Protection Regulation.
6. Cookies are incorrectly classified as essential.
7. There is no icon, button, or link for the subsequent withdrawal of consent.

The Working Group on 101 complaints focused on the unified and coordinated action of supervisory authorities regarding 101 identical complaints filed with multiple supervisory authorities concerning the use of Google Analytics and Facebook Connect services, which involve the transfer of personal data to

third countries. The task of the Working Group was primarily to analyze the received complaints and ensure close cooperation among committee members so that the decisions of individual supervisory authorities in similar cases would be coordinated. This Working Group also published a final report in 2023, explaining the aspects of data transfer to third countries that websites using the mentioned tools must consider, as well as how they can demonstrate their compliance with the principle of accountability.

The EDPB, in response to the supervisory activities of the Italian supervisory authority regarding ChatGPT,

12

https://edpb.europa.eu/our-work-tools/documents/public-consultations/2022/guidelines-042022-calculation-administrative_en

13

https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en

14

<https://www.ip-rs.si/publikacije/priro%C4%8Dniki-in-smernice/smernice-po-splo%C5%A1ni-uredbi-o-varstvu-podatkov-gdpr/smernice-o-uporabi-pi%C5%A1kotkov-in-podobnih-sledilnih-tehnologij>

15

https://www.edpb.europa.eu/system/files/2023-04/edpb_20230328_report_101task_force_en.pdf

PROTECTION OF PERSONAL DATA

PAGE 98

whose users are in all EU member states, in 2023 established a new working group ChatGPT, aimed at coordinating issues related to the compliance of generative artificial intelligence with

the General Regulation.

The contact group for access to documents is a working group of members of the EDPB from national supervisory authorities, acting as contact points for coordinating requests for access to documents in accordance with Regulation (EC) No. 1049/2001 of the European Parliament and Council of 30 May 2001

on public access to documents of the European Parliament, Council, and Commission. The group's tasks

include defining and exchanging best national practices regarding the handling of requests for access to public information by supervisory authorities, as well as exchanging information and cooperating in procedures related to such requests.

The DPO network has an advisory role, advising the committee and specifically the supervisory authorities,

as it provides independent opinions on matters related to the protection of personal data. Although the network prepares decisions for the committee, at the national level, each supervisory authority is individually responsible for making its own decisions.

The communication network brings together members of supervisory authorities who coordinate issues

related to public communication and ensure mutual information among supervisory authorities (e.g., mutual information on more prominent cases, coordinating joint responses and press releases, coordinating translations of documents into national languages, coordinating and informing about EDPB events, participating in the preparation of the EDPB annual report, etc.). In 2023, the communication network participated in the preparation of the Data Protection Guide for small and medium-sized enterprises.

3.6.2 COOPERATION IN OTHER SUPERVISORY BODIES OF THE EUROPEAN UNION

In 2023, the Information Commissioner actively participated at the EU level in five working bodies dealing with the oversight of personal data protection implementation within major EU information systems, namely:

- at coordination meetings of the EDPS and national data protection authorities for supervision of SIS II,

- at coordination meetings of the EDPS and national data protection authorities for supervision of VIS,
- at coordination meetings of the EDPS and national data protection authorities for supervision of CIS,
- in the joint supervisory authority for customs,
- at coordination meetings of the EDPS and national data protection authorities for supervision of Eurodac.

In 2023, a report on the premature deletion of data in VIS was adopted within the supervision of personal data processing in VIS, regulated by Article 25 of Regulation (EC) No. 767/2008 of the European Parliament and Council of 9 July 2008 on the Visa Information System (VIS) and the exchange of data between member states on short-stay visas.

A representative of the Information Commissioner participated in October 2023 in the evaluation of the implementation of the Schengen legal framework in the field of data protection in Latvia.

16

https://www.edpb.europa.eu/sme-data-protection-guide/respect-individuals-rights_en

PROTECTION OF PERSONAL DATA

PAGE 99

3.6.3 COOPERATION IN OTHER INTERNATIONAL BODIES

CONSULTATIVE COMMITTEE T-PD

Within the framework of the Council of Europe, the representative of the Information Commissioner also participated in 2023 in the Consultative Committee established by the Council of Europe Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data (Convention No. 108), abbreviated as Committee T-PD. At the plenary sessions in June and November, the Committee discussed the status of countries' accession and the process of adopting the Protocol amending this convention (the so-called Convention 108+). Slovenia became the 26th country to ratify Convention 108+ on June 20, 2023. As every year, the Committee reviewed reports on international and global cooperation of the Council of Europe regarding the protection of personal data, reports from supervisory authorities for the protection of personal data from member states of the Council of Europe on developments and achievements in this field, as well as information provided by supervisory authorities on Data Protection Day. The Committee actively addressed current topics, including the processing of personal data in the context of elections and exceptions and limitations to the fundamental principles of personal data protection under Convention 108+. It adopted two modules of sample contractual clauses for the international transfer of personal data: the first is intended for transfers from one controller to another, and the second for transfers from a controller to a processor. It also issued guidelines on the protection of personal data in processing for the purposes of preventing money laundering and financing of terrorism and awarded the Stefano Rodotà prize.

GLOBAL PRIVACY ASSEMBLY

The Global Privacy Assembly (GPA), which brings together the efforts of more than 130 privacy and data protection supervisory authorities from around the world, focused in the past year particularly on the challenges of effective international cooperation among supervisory authorities and various aspects of action regarding privacy protection in the use of modern technologies. In accordance with strategic guidelines based on efforts to establish an international framework of privacy protection standards and to strengthen various forms of cooperation in the implementation of oversight, the GPA in 2023 addressed, among other things, the area of privacy protection in the digital economy, ethical dilemmas and privacy risks, and individuals' rights in the use of artificial intelligence, as well as consumer rights protection. The conference is led by an executive committee, whose members in 2023 included representatives from the Mexican, Korean, German, Bulgarian, and Moroccan supervisory authorities, the supervisory authority of Bermuda, and the state of Jersey. Among the more significant resolutions adopted at the last conference in 2023, which took place in Bermuda and which the Information Commissioner did not attend, are the resolution addressing challenges in the use of artificial intelligence in employment, the resolution on the use of health data in scientific research, and the resolution on generative artificial intelligence systems.

INTERNATIONAL WORKING GROUP ON DATA PROTECTION IN TECHNOLOGY (IWGDPT)

The International Working Group on Data Protection in Technology (IWGDPT; the so-called Berlin group) is one of the longest-standing international groups in the field of personal data protection, having brought together representatives of information commissioners and data protection and privacy authorities from around the world since 1983. It was established at the initiative of the Information Commissioner of Berlin and has gradually expanded its activities from the telecommunications domain to other technological areas. The opinions adopted by the group are an important contribution to the International Conference of Information Commissioners, guiding the work of supervisory authorities and regulators, and providing recommendations to developers, vendors, and users of various technological solutions.

Website of IWGDPT:

<https://www.bfdi.bund.de/EN/Fachthemen/Gremienarbeit/Berlin-Group/Berlin-Group-node.html>

PROTECTION OF PERSONAL DATA

PAGE 100

In 2023, a document on the topic of smart cities (Working Paper on “Smart Cities”¹⁸) was adopted. Smart cities represent a trend that is emerging worldwide, driven by the desire to leverage the possibilities of digitalization for better city management through advanced services such as intelligent transportation systems, improved management of parking spaces and waste, ensuring safety, more efficient energy use, and other advanced services. Smart cities are based on extensive data collection and analysis, and personal data is often included among the data collected. Therefore, it is essential that all fundamental principles of personal data protection are considered from the very design stage of advanced solutions, which is crucial for building trust in new services. The International Working Group on Data Protection in Telecommunications (IWGDPT) calls on all stakeholders in its document to adhere to the principles of embedded and default data protection and to implement solutions in accordance with the provided recommendations.

In 2023, a document on telemetry and diagnostic data (Working Paper on Telemetry and Diagnostic Data¹⁹) was also adopted, addressing the use of diagnostic and telemetry data in mobile and desktop operating systems and applications (also relevant for internal aspects within organizations) for purposes not related to the primary uses of the device or application, such as resolving user issues, monitoring operational efficiency, ensuring quality, and improving and developing services and products. Vendors and manufacturers integrate diagnostic functionalities for various purposes—from reporting errors during crashes to, for example, detecting the use of unlicensed cartridges and nearly constant and extensive monitoring of the device or application. The scope of collected data ranges from basic configurations to complete memory copies. IWGDPT recommends that manufacturers and vendors first acknowledge that such data often falls under personal data (even if the purpose of data collection is not the direct identification of an individual), advises them to clearly define and document the purposes of data collection and the types of data they collect, so they can justify processing and substantiate the proportionality of processing, and to limit the scope of data collected for these purposes.

In 2023, IWGDPT continued its work on working documents concerning central bank digital currencies, artificial intelligence, data sharing, synthetic data, and neurotechnologies. The latter poses a particular challenge for privacy, as these technologies aim to literally read our brain waves, so to speak, thoughts, and the ability to influence them. The sectors of potential applications are numerous: healthcare, sports, research and development, work environments (e.g., detecting concentration, fatigue, customer relations, etc.), gaming and entertainment, marketing, education, migration control, and crime prosecution. The devices under development are either embedded or wearable, with conscious or unconscious effects on individuals. Consequently, calls are already emerging for a reconsideration of the scope of the right to privacy and potentially defining new neuro-rights, including the right to cognitive privacy (the right to keep one’s thoughts to oneself).

INITIATIVE 20i7

Data protection authorities from Croatia, North Macedonia, Montenegro, Kosovo, and Slovenia met in Peja, Kosovo, at the fifth annual meeting of the Initiative 20i7, which was established at the initiative of the Information Commissioner to exchange experiences among supervisory authorities from the former Yugoslavia and to bring them closer to the EU.

At the meeting, the supervisory authorities adopted a joint statement emphasizing the necessity of exchanging practices and positions in the areas of personal data protection, such as video surveillance, personal data security breaches, data protection officers, impact assessments regarding personal data protection, and data transfers to third countries. The supervisory authorities highlighted the importance of mutual cooperation, which is particularly crucial in times of rapid technological development, such as the development of artificial intelligence, where timely responses from regulators are key to ensuring an adequate level of fundamental human rights and transferring knowledge from EU member states to countries aspiring to join the EU. The heads of supervisory authorities will therefore continue with both annual meetings and bilateral collaborations, as well as joint cooperation when there is a need for collective action regarding public awareness and other stakeholders or the need to implement supervisory measures. In 2024, the meeting of the initiative will be hosted by Croatia.

PROTECTION OF PERSONAL DATA

PAGE 102

3.7 GENERAL ASSESSMENT OF THE STATE OF PERSONAL DATA PROTECTION

The Information Commissioner has performed tasks in the field of personal data protection as mandated by the General Data Protection Regulation and other laws governing the processing or protection of personal data. The General Regulation, which has been directly applicable in all EU member states since May 25, 2018, necessitated the adoption of a new Personal Data Protection Act (ZVOP-2), which was only adopted on December 15, 2022, and came into effect on January 26, 2023, thus at the beginning of the period under review.

With the adoption of the new ZVOP-2, the Information Commissioner has also become competent to impose sanctions for violations prescribed by the General Regulation. These violations are imposed as fines for misdemeanors on legal entities, sole proprietors, and individuals who independently carry out activities, in accordance with the provisions of ZVOP-2.

A significant novelty introduced by ZVOP-2 regarding supervisory procedures is the supervisory procedures in which the Information Commissioner addresses complaints from applicants in a special position. In these supervisory procedures, the Information Commissioner exclusively addresses violations asserted by individuals who believe that the processing of personal data by the controller or processor violates the provisions of the General Regulation, ZVOP-2, or other laws governing the processing or protection of personal data.

During the period under review, the Information Commissioner received 1,146 complaints or initiatives for the initiation of inspection procedures, of which 686 inspection procedures were initiated, and additionally, the Commissioner participated as the relevant supervisory authority in 270 inspection procedures under Article 60 of the General Regulation (cross-border cooperation procedure).

The complaints received and processed by the Information Commissioner in 2023 were filed for similar reasons as in previous years. The majority of complaints were filed due to unlawful disclosure and transmission of personal data to unauthorized persons, implementation of video surveillance, use of personal data for direct marketing purposes, unlawful or excessive collection of personal data, unlawful access to personal data collections, and inadequate provision of personal data security. Regarding the handling of complaints related to the implementation of video surveillance, it is again important to highlight the issue of video surveillance in workplaces, which is often carried out for the purpose of monitoring employees and in a manner that directly transmits the events in front of the cameras to the personal computers or mobile phones of the management, which is contrary to the legally permissible purposes for implementing video surveillance in workplaces. Many complaints also pertained to video surveillance conducted by individuals who installed cameras on their properties. In these cases, it is generally considered that the individual conducts video surveillance solely for their own domestic purposes, and therefore the General Regulation (to which the competence of the Information Commissioner is bound) does not generally apply. The Information Commissioner is only competent in such cases when the individual conducts video surveillance in the course of professional or commercial activities, when recordings of individuals are transmitted to unauthorized third parties, or when they are published on the internet, or if the video surveillance involves recording public spaces. It is important to note that for the initiation of proceedings against an individual conducting video

surveillance with cameras installed on their properties, specific evidence of unlawful video surveillance must be provided (e.g., specific video footage or screenshots), meaning that the individual is actually recording areas that are not their property or that they are using the recordings for purposes that exceed domestic use, and that the recordings are of such quality that they allow for the identification of individuals. This is significant because entry into a dwelling is not permitted without a court order due to the constitutional provision of the inviolability of the dwelling, and furthermore, the mere initiation of an inspection procedure against an individual constitutes an intrusion into their privacy.

The Information Commissioner, when addressing complaints received from individuals, finds that these are in many cases filed due to a misunderstanding of the provisions of the General Regulation and that filing

PROTECTION OF PERSONAL DATA

PAGE 103

complaints are often filed against controllers who, when collecting or obtaining personal data, do not provide individuals with clear, understandable, and easily accessible information, as required by Articles 12, 13, and 14 of the General Regulation.

Ensuring concise, clear, understandable, and easily accessible information as stipulated in Articles 13 and 14 of the General Regulation has, despite the awareness-raising efforts directed at controllers and the templates of such notifications prepared and published by the Information Commissioner on its website, remained one of the frequently identified violations in 2023. The information that must be provided to individuals when collecting their personal data is specified in Articles 13 and 14 of the General Regulation, allowing individuals to learn who the data controller is, for what purposes and on what legal basis the personal data is processed, who the recipients of the personal data are, how long the data is retained, etc. In 2023, the Information Commissioner received and addressed seven cases of unlawful communication or other unlawful processing of personal data concerning patients, which were sent to it by healthcare providers based on Article 46 of the Patients' Rights Act, as well as 183 official notifications of personal data security breaches sent to it by data controllers based on Article 33 of the General Regulation.

Data controllers most frequently sent official notifications of personal data security breaches to the Information Commissioner due to unlawful disclosure or transmission of personal data to unauthorized or incorrect persons, unauthorized access to personal data due to software errors or abuse of authority by employees, and loss or theft of personal data carriers (e.g., personal computers and USB drives). Recently, notifications of personal data security breaches due to cyberattacks or breaches of information systems with ransomware have become increasingly common, which causes significant costs and problems for data controllers who have not implemented appropriate technical and organizational measures to ensure the security of personal data processing, particularly in terms of ensuring the ability to restore the availability and accessibility of personal data in a timely manner. In addition to addressing inspection complaints, reported unlawful processing of personal data concerning patients, and official notifications of personal data security breaches, the Information Commissioner in 2023 also received and processed 251 complaints from applicants in a special position under Article 77 of the General Regulation and Article 30 of the ZVOP-2. Of these, 130 complaints were filed due to suspicion of unlawful processing of the complainant's personal data, while 121 were due to suspicion of violation of the complainant's rights, specifically 75 due to suspicion of violation of the right of access to their own personal data, 41 due to suspicion of violation of the right to erasure, four due to suspicion of violation of the right to rectification, and one due to suspicion of violation of the right to object.

In the area of patients' rights, the Information Commissioner addressed 14 complaints regarding the violation of the right to access one's own health documentation (Article 41 of the ZPacP) and 12 complaints regarding the violation of the right to access health documentation after the patient's death (Article 42 of the ZPacP).

In 2023, the Information Commissioner also addressed nine complaints from individuals filed under the ZVOPOKD, specifically one due to suspicion of unlawful processing of the complainant's personal data, seven due to suspicion of violation of the right of access to their own personal data, and one due to suspicion of violation of the right to erasure and rectification.

In the fourth paragraph of Article 41 of the ZVOP-2, the Information Commissioner was also granted the authority to decide on complaints from applicants who were denied access to personal data from official records or public books by the controller. In 2023, the Information Commissioner addressed four such complaints.

Similar to previous years, in 2023, the Information Commissioner, in addition to addressing reports and complaints in accordance with the annual work plan, conducted regular and systematic inspection oversight, during which it particularly monitored the obligations of the obligated entities:

PROTECTION OF PERSONAL DATA

PAGE 104

1. Lawfulness of processing personal data and compliance with general principles for processing personal data;
2. Adequacy of procedures and measures to ensure the security of personal data as per Articles 25 and 32 of the General Regulation, and the related adequacy of internal acts by which controllers and processors prescribe these procedures;
3. Implementation of the provisions of the General Regulation governing the provision of information on the processing of personal data (Articles 13 and 14), contractual processing of personal data (Articles 28 and 29), and maintaining records of processing (Article 30);
4. Lawfulness of video surveillance within workplaces and the related lawfulness of direct monitoring of events in front of cameras, adequacy of written decisions on the introduction of video surveillance, and adequacy of notifications regarding its implementation.

Similar to previous instances, violations have again been found to be mostly due to a lack of knowledge or misunderstanding of the regulations governing the processing of personal data. Some identified violations were the result of negligent or inadequate provision of security for personal data and their intentional unlawful processing by the management or employees of personal data controllers (this includes unlawful access to personal data collections, disputed processing of personal data for direct marketing purposes, and unjustified implementation of video surveillance in workplaces for the purpose of monitoring employees).

The Information Commissioner must report in the annual report, based on the second paragraph of Article 62 of the ZVOP-2, on cooperation with other authorities in conducting inspections under this law and on proposed and conducted inspections under Article 38 and the fourth paragraph of Article 63 of this law. The Information Commissioner has cooperated most with the Agency for Communication Networks and Services of the Republic of Slovenia, with which it collaborated in the field of electronic communications, and with the Office of the Government of the Republic of Slovenia for Information Security, with which it collaborated in ensuring privacy protection and information security in the field of electronic networks, systems, services, and information, as well as in related discussions on security threats and incidents. Inspections conducted under Article 38 of the ZVOP-2 relate to the area of special processing defined in Article 23 of the ZVOP-2. These are inspections of information systems in which personal data specified in laws governing internal affairs, financial administration, citizenship, the Slovenian Intelligence and Security Agency, defense, healthcare, mandatory health insurance, enforcement of rights from public funds, and criminal and misdemeanor records are processed, as well as for information systems in which personal data of more than 100,000 individuals are processed based on the law, when the controller or processor carries out extensive processing of special categories of personal data as its primary activity, and when special categories of personal data of more than 10,000 individuals are processed. For the area of special processing, the transitional provision of Article 116 of the ZVOP-2 applies, according to which controllers and processors are obliged to align the processing of personal data included in the first paragraph of Article 23 of the ZVOP-2 with the provisions of Article 23 of this law within three years from the entry into force of the law, that is, no later than January 26, 2026. However, this does not prevent the Information Commissioner from already conducting inspections of the controllers of these information systems. The processing of personal data in these systems, due to the nature and volume of personal data, poses particularly high risks due to the danger of intentional or unlawful destruction, loss, alteration, and unauthorized disclosure or access, noting that the aforementioned Article 116 of the ZVOP-2 does not exempt controllers and processors of such systems from ensuring the security of personal data

and reporting personal data breaches in the manner already imposed on them by Articles 25, 32, 33, and 34 of the General Regulation. Due to detected suspicions of non-compliance of personal data processing with the provisions of the General Regulation and considering the findings from already conducted inspections at controllers and processors in the area of special processing, the Information Commissioner, in 2023, in accordance with the annual plan for inspection supervision, conducted six inspection procedures primarily related to: ensuring accessible rights and informing employees of the obligation to ensure security, traceability of personal data processing in ongoing matters, general provision of personal data security, verification of suspicion of unauthorized access to the database, and potential transfer or deletion of these personal data. In accordance with the fourth paragraph of Article 63 of the ZVOP-2, the Human Rights Ombudsman could inform the supervisory authority.

PERSONAL DATA PROTECTION

PAGE 105

proposed the implementation of inspection oversight at any controller or processor. In 2023, the Information Commissioner did not receive such a proposal from the Human Rights Ombudsman. In the area of oversight and cooperation in cross-border cases of personal data processing, the number

of cases handled by the Information Commissioner each year is sharply increasing. In 2023, the Information Commissioner was involved in 524 cooperation procedures under Articles 60 and 61 of the General Regulation concerning controllers engaged in cross-border personal data processing. In 274 newly

initiated cooperation procedures for cross-border oversight under Article 60 of the General Regulation, the Information

Commissioner acted as the concerned authority (under Article 56 of the General Regulation), while in three cases,

it acted as the lead authority. The General Regulation introduced formalized cooperation procedures for data protection supervisory authorities in EU and EEA member states, where the oversight procedure

in cross-border personal data processing cases is led by the so-called lead authority, which collaborates

with other data protection authorities. It also established mechanisms for mutual assistance and joint action

by data protection authorities in EU member states. In the cross-border procedures in which the Information

Commissioner participated, 221 draft decisions were issued in 2023 under Article 60 of the General Regulation,

and two draft decisions were issued by the Information Commissioner as the lead supervisory authority.

291 procedures were concluded with a final decision under Article 60 of the General Regulation.

In 2023, the Information Commissioner also participated in 247 mutual assistance procedures among supervisory authorities under Article 61 of the General Regulation. It received 219 requests from other authorities,

and in 44 cases, it provided opinions regarding the implementation of the provisions of the General Regulation.

The Information Commissioner sent 28 requests for cooperation to other authorities in the EU.

Cooperation in cross-border inspection oversight, as introduced by the General Regulation, is undoubtedly one of the key innovations and enhancements, particularly in terms of the unified operation of

supervisory authorities in various EU and EEA member states. However, such cooperation presents a significant

challenge for the Information Commissioner, as well as for other supervisory authorities, in terms of additional

necessary resources, both financial and human, as the increase in cases is indeed growing year by year: in 2021,

there were a total of 216 cooperation procedures under Articles 60 and 61 of the General Regulation, in 2022

there were 368 such procedures, and in 2023, there were already 524 procedures.

In 2023, three binding decisions were also adopted under Articles 65 and 66, which are addressed by the

European Data Protection Board (EDPB), in which the Information Commissioner also participates. The

dispute procedure in the case of TikTok Technology Limited, headquartered in Ireland, concerned issues

related to the processing of personal data of registered minor users of TikTok (ages 13–17), specifically

violations of the principle of fairness due to misleading patterns used by the network in the user registration

process, and due to violations of the principle of default data protection due to inadequate age verification

of users. The EDPB analyzed TikTok's practices regarding two pop-up windows used by the network during

user registration and video sharing. In both cases, the design of the pop-up window encouraged minor users

to select less privacy-friendly settings. In the final decision, the Irish supervisory authority imposed a fine

of 345 million euros on TikTok for these violations.

The dispute procedure in the case of Meta Platforms Ireland Limited, headquartered in Ireland, concerned

the legality of transferring personal data of Facebook users to the United States at a time when the so-called

Privacy Shield was annulled by the EU Court, an agreement that provided the basis for the transfer of personal data to the U.S. In the final decision, the Irish supervisory authority imposed a fine of 1.2

billion

euros on the entity due to identified violations, namely for transferring user data to the U.S. without a legal

basis, the highest fine imposed under the General Regulation.

The European Commission, in 2023, adopted a new decision on the adequacy of personal data protection

based on the framework for data privacy protection between the EU and the U.S. Based on the adequacy decision,

personal data from the EU can be safely transferred to those companies in the U.S. that participate in the framework for data protection.

PROTECTION OF PERSONAL DATA

PAGE 106

data privacy between the EU and the USA (EU-US Data Privacy Framework – DPF), and there is no need to introduce additional protective measures for data protection in accordance with Article 46 of the General Regulation.

In 2023, an urgent binding decision was also adopted, whereby the EDPB instructed the Irish data protection authority as the leading supervisory authority to take final measures regarding Meta Ireland Limited (Meta IE) within two weeks and to prohibit the processing of personal data for behavioral advertising based on contract and legitimate interest. The urgent binding decision was made at the request of the Norwegian data protection authority.

In the area of compliance and prevention, it is necessary to highlight some novelties introduced by the ZVOP-2, which represent significant new obligations for the obligated parties, of which they must be adequately informed, and which consequently influenced the direction of the preventive activities of the Information Commissioner in 2023.

At the beginning of 2023, even before the implementation of ZVOP-2, the Information Commissioner

prepared a comprehensive content overhaul of the website, aiming to clearly explain what ZVOP-2 regulates, when the obligations under ZVOP-2 come into effect, what the transitional provisions are, and to provide a comparison of the provisions of ZVOP-1 and ZVOP-2. Updated information was provided on key aspects of the new law, namely:

- Consent,
- Contractual processing,
- Video surveillance,
- Biometrics,
- Data security,
- Reporting security breaches,
- Authorized persons for personal data protection (DPO),
- Data protection impact assessments,
- Informing individuals about processing,
- Linking personal data collections,
- Transfer of personal data to third countries and international organizations,
- Record of processing activities,
- Rights of the individual,
- Powers of the Information Commissioner,
- Inspection supervision or supervisory procedures,
- Codes of conduct.

The following updated guidelines were also published:

- Guidelines for administrators of multi-apartment buildings,
- Guidelines on the use of cookies and similar tracking technologies,
- Guidelines regarding the implementation of video surveillance,
- Guidelines for event organizers,
- Guidelines regarding biometrics under ZVOP-2,
- Guidelines regarding the transfer of personal data to third countries and international organizations.

For better awareness, a concise overview of the changes in ZVOP-2 compared to the provisions of ZVOP-1 was also prepared.

Increased awareness will be necessary in the area of data protection impact assessments, where

• Individual items on the list contain hyperlinks to the relevant section on the Information Commissioner's website.

• The guidelines are available at the link:

<https://www.ip-rs.si/publikacije/priro%C4%8Dniki-in-smernice/>.

• The overview of changes is available at:

<https://www.ip-rs.si/zakonodaja/zakon-o-varstvu-osebni-podatkov/zvop-2>.

PROTECTION OF PERSONAL DATA

PAGE 107

The provision of the third paragraph of Article 24 of the ZVOP-2 introduced the so-called legislative impact assessments and requires proposers of regulations to conduct a legislative impact assessment in cases where the law stipulates the processing of personal data for which an impact assessment must be prepared, and to submit it to the Information Commissioner for so-called preliminary consultation. In 2023, the Information Commissioner provided 13 opinions on the received legislative impact assessments, which mostly followed the methodology prepared for this purpose.

The purpose of legislative impact assessments is to consider in a timely manner how to appropriately take into account the fundamental principles of personal data protection when determining the text of the law, even before the final text of the articles is formed. These considerations (e.g., what purposes the law pursues, what set of personal data is necessary, what safeguards must be included in the law, whether it involves the linking of databases, the determination of retention periods, etc.) are described in the impact assessment and sent to the Information Commissioner for opinion (the so-called preliminary consultation), based on which a (more) final text of the articles is then formed, and the law can proceed to inter-ministerial coordination. Ideally, the preparation of the impact assessment is a

kind of preliminary phase before the final formulation of specific legal provisions; however, sometimes, understandably, due to urgency, this occurs in parallel with the actual formulation of the legal regulation.

To assist the obligated parties, the Information Commissioner has prepared an infographic explaining the purpose and process of preparing legislative impact assessments. In relation to legislative impact assessments, we find that not all proposers of regulations have fully embraced this obligation, and in certain cases, impact assessments are prepared too late, that is, after the text of the regulation has already been largely determined. We assess that legislative impact assessments regarding the protection of personal data positively contribute to timely addressing risks from the perspective of personal data protection in the adoption of regulations, thereby enhancing their quality.

The Information Commissioner specifically warns that proposers must pay attention to the requirements of the second paragraph of Article 6 of the ZVOP-2 when preparing legislative impact assessments regarding the components that laws governing the processing of personal data due to the fulfillment of a legal obligation, public interest, or exercise of public authority should contain. Specifically, the law should stipulate the processing of personal data, the types of personal data that will be processed, the categories of individuals to whom these personal data relate, the purpose of their processing, and the retention period of personal data or the period for regular review of the need for retention. If possible, the law should also specify the users of personal data, individual processing actions and procedures, and other measures to ensure lawful, fair, and transparent processing.

The ZVOP-2, in addition to legislative impact assessments, establishes additional obligations regarding impact assessment for the following areas:

- keeping processing logs and impact assessment (Articles 22 and 24 of the ZVOP-2),
- processing personal data for research purposes (Article 69 of the ZVOP-2),
- video surveillance of road traffic (Article 80 of the ZVOP-2),
- impact assessment when linking personal data collections (Article 87 of the ZVOP-2).

The area of national security is also specifically regulated, whereby for the processing of personal data in the field of national security, the competent authority in the field of national security prepares an impact assessment with the appropriate application of the provisions of Article 24 of the ZVOP-2. We assess that the expansion of the obligation to prepare impact assessments for certain obligated parties is a novelty; however, we believe that over time, this important instrument of the principle of accountability will yield good results.

With the adoption of the ZVOP-2, the area of certification and related accreditation under the General Regulation has also gained significant momentum. The latter allows for certain processes of personal data processing (e.g., human resources function, loyalty club, mobile application) to be certified, thereby demonstrating a high level of compliance with the legislation. Certification is under the General Regulation.

23

The infographic is available at:

https://www.ip-rs.si/fileadmin/user_upload/Pdf/infografike/infografika%20-%20DPIA.pdf

PROTECTION OF PERSONAL DATA

PAGE 108

regulation is voluntary, but it does not affect the powers of supervisory authorities for the protection of personal data.

Before the adoption of ZVOP-2, such certification was not possible; with the adoption of ZVOP-2, it was decided that the accreditation of bodies that will carry out certification (so-called certification bodies) will be conducted by the Slovenian Accreditation, while additional requirements for accreditation criteria will be prescribed by the Information Commissioner. At the end of 2023, the Information Commissioner prepared such requirements and sent them for opinion to the EDPB in accordance with the provisions of the General Regulation. We estimate that certification in this area will be possible in the second half of 2024; for easier understanding of the relevant procedures, the Information Commissioner prepared a special infographic.²⁴

It should be emphasized that certification, which is otherwise voluntary according to the provisions of the General Regulation, is mandatory for entities in the field of biometrics according to the provisions of ZVOP-2. Entities from the private sector wishing to use biometrics must obtain a certificate or certification issued by an accredited certification body during the certification process. We estimate that this provision may cause quite a few problems in practice, as certification under the General Regulation—and thus also the accreditation of bodies for certification that would issue certificates—is voluntary and not mandatory. In the absence of interest from certification bodies to obtain accreditation, which requires considerable resources and expertise, it will not be possible to certify the processing of biometric personal data. The transitional provision in Article 121 of ZVOP-2 partially addresses this issue, as processing for which an application for certification is submitted by July 1, 2024, is considered compliant with the criteria from the certification mechanism until December 31, 2024. After this period, however, entities that should obtain a certificate will not be able to ensure compliance if certification procedures are not available. It is worth mentioning that in other EU countries, the processes of accreditation and certification are mostly in the initial phases. The interest in certification is particularly present in the field of providing various information solutions, such as software maintenance and mobile applications.

Authorized persons for the protection of personal data also play an important role in ensuring the principle of accountability and thus compliance. In this regard, in 2023, the first coordinated enforcement action (Coordinated Enforcement Framework – CEF) of the European Data Protection Board (EDPB) took place, in which practically all supervisory authorities in the EU participated in analyzing the situation and implementing other measures in this area. The Information Commissioner decided to approach the coordinated action as a preventive compliance activity (privacy sweep), within which we sent an invitation to complete a coordinated questionnaire to the entire registry of authorized persons and received nearly 1000 responses. The supervisory authorities for the protection of personal data then analyzed the situation and prepared measures to improve the state of affairs. The coordinated action of cooperation at the European level showed that more attention needs to be paid to questions regarding whether authorized persons are adequately supported and trained, whether they perform the expected tasks in the areas of supervision, consulting, and awareness-raising, and whether there is a potential conflict of interest either due to performing tasks that do not fall within the duties of the authorized person or as external authorized persons due to providing other services.²⁵ Given the success of the coordinated action, such an action will continue in 2024, specifically on the topic of individuals' rights to access their own personal data.

The Information Commissioner has strengthened cooperation with authorized persons for the protection of personal data and organized a consultation with authorized persons for the protection of personal data at ministries at the end of 2023, which are among the key entities regarding the protection of personal data due to managing numerous large collections of personal data as well as preparing legislative changes. Participants agreed that such cooperation is beneficial, and we will continue with such meetings in the future, focusing on certain particularly highlighted sectors, such as education and healthcare, as these sectors (according to the requirements of the General Regulation and ZVOP-2 regarding the appointment of

24

Available at the link:

https://www.ip-rs.si/fileadmin/user_upload/Pdf/infografike/Infografika%20potrjevanje_akreditacija.pdf.

25

The report is available at the link:

https://www.edpb.europa.eu/system/files/2024-01/edpb_report_20240116_cef_dpo_en.pdf.

PROTECTION OF PERSONAL DATA

PAGE 109

of authorized persons) represent the largest part of the register of authorized persons.

We also assess that preventive compliance activities are a very effective tool for achieving compliance in areas where systemic irregularities, deficiencies, or violations are noticeable.

In particular, they are a suitable tool where the group of obligated entities is known or identifiable, where there are associations of obligated entities that can assist in the distribution of materials, and

where materials such as guidelines, infographics, and samples are already available to help obligated entities achieve compliance.

As emphasized at the annual international conference of information commissioners, most obligated entities do not wish to violate the law and expose themselves to sanctions; however, they have difficulties understanding the legislation and its implementation, which makes preventive activities of supervisory authorities very important. It should not be overlooked that supervisory and punitive activities of supervisory authorities are also important – we assess that the absence of the possibility to impose fines under the General Regulation due to delays in the implementation of the Personal Data Protection Act (ZVOP-2) has had a significantly negative impact on the overall level of compliance among obligated entities, as an important element of enforcement has been absent.

From the perspective of compliance and prevention, the Information Commissioner has developed an extensive set of instruments and tools over the years, which (in addition to those already mentioned) influence the level of awareness and thus the understanding and respect for legislation. Therefore, it will continue to issue guidelines, infographics, opinions, regularly inform the public through its website, social media, and newsletters, collaborate with partner organizations, award recognitions on Data Protection Day, organize free lectures, and participate in relevant professional consultations and conferences.

The Information Commissioner also participates in various working groups of the European Data Protection Board (EDPB) and thus contributes to the formulation of key guidelines, recommendations, and decisions regarding the protection of personal data. Representatives of the Information Commissioner actively participated in 2023 in 11 regular expert subgroups and in 12 special working and coordination groups or committees on specific topics, as well as in 15 plenary sessions. In total, they attended 147 meetings.

In 2023, the EDPB contributed to the interpretations of numerous provisions of the General Regulation with guidelines and recommendations, e.g., with guidelines on the technical scope of Article 5 of the ePrivacy Directive and with guidelines on Article 37 of the Directive on the protection of individuals in relation to the processing of personal data, which competent authorities process for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or enforcing criminal sanctions. In the area of advising the European Commission on data protection issues and the preparation of European regulations in the field of data protection, the EDPB prepared an opinion in 2023 regarding the draft decision on the adequacy of the EU-U.S. data privacy framework, expressing concerns regarding the implementation of individuals' rights, further transfers, the scope of exceptions, and temporary mass data collection, as well as the functioning of the defense mechanism in practice. Together with the European Data Protection Supervisor, the EDPB prepared an opinion on the proposal for a regulation on the digital euro as a central bank digital currency. The opinion highlights aspects of personal data protection in the use of the digital euro and provides various recommendations. Individuals should always have the option to choose when paying with the digital euro or cash. Together with the European Data Protection Supervisor, the EDPB also prepared an Opinion on the proposal for a regulation establishing additional procedural rules regarding the enforcement of Regulation (EU) 2016/679. The regulation is expected to specify procedural steps in more detail and ensure compliance in cross-border supervisory procedures that leading and concerned authorities will have to follow. Numerous opinions were also adopted in compliance procedures regarding certification and accreditation mechanisms.

Meetings and thus cooperation among all supervisory authorities within the EDPB are essential for ensuring consistent implementation of the General Regulation across the EU and for effective supervision in the field of personal data protection. The EDPB also prepared a statement on closer cooperation among supervisory authorities in implementing strategic supervisory cases. As part of its strategy for enhanced cooperation among supervisory authorities, the EDPB established a Support Pool of Experts, aimed at providing substantive support to EDPB members in their supervisory activities. In 2023, the EDPB also launched a new working group on ChatGPT, aimed at coordinating compliance issues of this generative artificial intelligence provider with the General Regulation.

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